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Ashadha 13, 1941(Saka)

LOK SABHA DEBATES

(English Version)

First Session

(Seventeenth Lok Sabha)

(Vol. II Contains Nos. 11 to 20)

LOK SABHA SECRETARIAT

NEW DELHI

04.07.2019

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04.07.2019

LOK SABHA DEBATES

LOK SABHA

Thursday, July 04, 2019/Ashadha 13, 1941 (Saka)

The Lok Sabha met at Eleven of the Clock.

[HON. SPEAKER *in the Chair*]

…*(Interruptions)*

[Translation]

HON. SPEAKER: Question No. 181. Shri Ramcharan Bohra.

…*(Interruptions)*

[English]

SHRI T. R. BAALU (SRIPERUMBUDUR): I have given the notice of adjournment motion. Kindly allow us…(*Interruptions*). We want a word from you, that is all…(*Interruptions*). Sir, adjournment motion should be taken up first…(*Interruptions*).

[Translation]

HON. SPEAKER: You have put across your point. Please sit down.

…*(Interruptions)*

HON. SPEAKER: I will give a ruling in this regard after Question Hour.

…*(Interruptions)*

[English]

SHRI ADHIR RANJAN CHOWDHURY (BAHARAMPUR): Sir, only Baalu ji should be allowed…(*Interruptions*).

[Translation]

HON. SPEAKER: I will give ruling after Question Hour. Baalu ji. You will get the opportunity to speak.

…*(Interruptions)*

[English]

SHRI DAYANIDHI MARAN (CHENNAI CENTRAL): Sir, we have done as you asked us to do…(*Interruptions*). Now, the leaders should be allowed to raise the issue…(*Interruptions*). Please allow the adjournment motion to be discussed…(*Interruptions*)

HON. SPEAKER: I will allow you after Question Hour.

… (*Interruptions*)

04.07.2019
11.01 hrs

ORAL ANSWERS TO QUESTIONS

HON. SPEAKER: Question No. 181, Shri Ramcharan Bohra.

(Q.181)

SHRI RAMCHARAN BOHRA: Hon. Speaker Sir, I thank you for giving me an opportunity to speak. Hon. Minister gave a detailed answer on Biogas plant. I would like to ask the Hon. Minister through you.… *(Interruptions)*

Hon. Prime Minister in the previous 16th Lok Sabha provided 8 crore women.… *(Interruptions)*

HON. SPEAKER: Please ask pinpoint Question.

… *(Interruptions)*

SHRI RAMCHARAN BOHRA: I am asking, the question. I thank Hon. Prime Minister for providing gas stoves and cylinders to 8 crore women. In this matter, I would like to say through you to Hon. Minister that he has given all the details but he has given a subsidy of only 1600 rupees. It is very difficult to transport LPG cylinders to far flung areas due to which women face problems in cooking. Cutting trees for fire wood affects environment. There are four advantages of bio gas plant-to cook food in the kitchen.… *(Interruptions)*

HON. SPEAKER: Hon. Minister, please answer. Hon. Member you ask question only. You ask pin point question, don't deliver a speech.

…*(Interruptions)*

SHRI R.K. SINGH: Hon. Speaker, the subsidy is not 1600 rupees only, it is 7500 rupees and apart from that, for installation, it is 2500 rupees, the total amount being rupees ten thousand. This is for normal areas. The subsidy is more for North-Eastern regions. The subsidy for normal areas is around 41 per cent.

The cost of installation of biogas plant in 'normal' areas is around Rs. 19, 800/-, and we are providing a subsidy of around Rs. 10,000/-.

SHRI RAMCHARAN BOHRA: Hon. Speaker Sir, I would like to request the Minister through you that if biogas plants are installed in far flung areas then it will have 3-4 benefits. It will help the women and mothers to cook food easily in the kitchen. The urea and fertilizers used by farmers reduce the fertility of the soil but with this, it will not only create manure, but also increase the soil fertility; farmers will get remunerative price and will provide electricity too. I would like to submit to the Hon. Minister that the Hon. Prime Minister has announced to double the income of the farmers by 2022. If the plant is installed in the remote areas then it will benefit the farmers, provide electricity and if the farmers install biogas plant by farming clusters then it will generate income too. The youth will also be benefited too if they are encouraged to install bio-gas plants.

SHRI R.K. SINGH: Hon. Speaker Sir, Hon. Member has made good points. Installation of the biogas plant is a very good scheme for the farmers and the rural regions.

This year we have made a provision of 100 crore rupees for this purpose and we will set up 76 thousand biogas plants this time. If it progresses well then we will increase it. We have established 2, 84765 biogas plants in the last five years. We want to progress in this regard and we will succeed.

HON. SPEAKER: Hon. Member, Question No. 182 and 187 are of the same nature and if the House permits both can be clubbed.

SEVERAL HON. MEMBERS: Yes, Sir.

(Q.182, 187 and 192)

[Translation]

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SHRI AJAY MISRA TENI: Hon. Speaker Sir, at present, the issue of water conservation is widely being discussed in our country. Despite availability of adequate water, I appreciate public awareness programmes and the efforts being made by the HON. Prime Minister and the Minister of Jal Shakti for water conservation in accordance with the policy for finding solution before the emergence of crisis. I would like to know from the HON. Minister, through you, that according to a study there is sufficient rainwater available in our country. Out of the 4000 billion cubic metre rainfall in our country, around 2900 billion cubic metre rainwater gets wasted due to lack of proper rain water harvesting facilities or lack of potential and possibilities of conservation at some places. The Central Ground Water Board has explored the possibility of recharge and conservation of 2 thousand billion cubic metre water by recharging water directly in the ground water reservoirs. I would like to ask the Hon. Minister through you whether the Government is working on this scheme.

SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker Sir, first of all, I would like to thank the Hon. Member for appreciating the initiative taken by the Prime Minister and the Minister of Jal Shakti in this direction. This is absolutely true that we receive 4000 billion cubic metre rain water every year. There are many countries in the world which have maintained the water balance despite receiving very less rainwater or snowfall as compared to our country. Hon. Member is also correct in pointing out that the storage capacity, whether it is surface water storage or total replenishment of ground water, is comparatively low in comparison to the rainfall received. The Central Ground Water Institute working under the Ministry of Jai Sakti has taken the responsibility of doing aquifer mapping of the whole country with this vision. Hon. Prime Minister has written a letter to all the Sarpanchs of the country that we should store house water in the house, village water in the village and field water in the field. There

is a need to turn it into a mass movement. Certainly, if it becomes a mass movement, we can make India secure in term of water provided by the nature.

SHRI AJAY MISSRA TENI: Hon. Speaker Sir, as per my knowledge, 85 percent of water in the country is used in agriculture. But due to lack of awareness, people do not switch off the bore wells till the electricity supply continues and use more water from canal than what is required. Through you, I want to know from the hon. Minister whether he will consider banning some special crops in those areas of the country where the ground water level is declining with a view to saving water.

SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker Sir, about 85 percent of the country's total water resources are used in agriculture sector. It is a fact that the water Productivity of our country is very low as compared to that of the whole world. I had also said in reply to the discussion on this topic in the Rajya Sabha that the amount of water that is used in the production of rice in our country, compared to this about one eight part of the water is being used in other countries of the world to produce rice. Definitely it is true that due to free electricity, there is unnecessary misuse of water for irrigation which can be avoided. Wherever we talk about water conservation, we only talk about saving domestic water that is used for domestic purpose but comparatively we are paying less attention to agriculture which is a biggest consumer of water. Through you, I would like to bring to the notice of the house and the country, I believe, that if a particular state has done a great job in this regard, this message should be disseminated across the country though this house. Haryana Government has formulated a policy for crop diversification and has decided to provide a subsidy of Rs. 2000 per hectare if the farmer grows maize instead of rice which has more water intensity consumption. Apart from this, it has been ensured that the assured procurement takes place for growing a particular crop. If someone grows maize crop, the state government will also make 100 percent procurement similarly,

sugarcane is the second largest water consuming crop, it should be grown only though drip. Such an initiative has been taken by Maharashtra government. Agriculture is a state subject. If all the states work together in this direction, then definitely we can provide water security to our country.

HON. SPEAKER: This is going to be a long debate on the issue pertaining to the Ministry of Jal Shakti. So I would request the hon. Ministry to reply to the question only, then you will get the opportunity to speak

Shri Kripal Balaji Tumane - Not Present.

Shri Sanjay Jadhav - Not Present.

HON. SPEAKER: If Dr. Sudhir Gupta allows, we can club question 192 as well?

SHRI SUDHIR GUPTA: Hon. Speaker, there are burning issues of the country on which a lot of work has been done in the 16th Lok Sabha under the leadership of Hon. Prime Minister Modi. A lot of work has been done in Madhya Pradesh also under the leadership of hon. Shivraj Singh Chouhan ji, I thank you for giving me an opportunity to speak on that subject. I would like to infrom the hon. Minister that central water commission has conducted a survey of 126 such silted dams. According to norms, one percent silt can get deposited every year or 100 years of time limit is fixed, but in some dams about 57 percent, 63 percent and 84 percent silt has been deposited in 22 years, 30 years and 37 years respectively.

In my Parliamentary constituency Mandsaur, there is Gandhisagar dam built on Chambal river. The world's largest Shyamgarh project worth 1700 crore has been developed there under the leadership of hon. Modi ji and state government. It is country's largest project involving micro irrigation. Beside, many other schemes for Chambal have been formulated and many more are in the pipeline. I would like to know whether the government of India will make any efforts to carry out test on the silting of dam?

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SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker, silting in reservoirs and dams is a natural process. When the dam is built and designed, the estimated age of the dam is considered as 100 years and its dead reservoir is built taking into account the amount of silt expected to be deposited in it in the next 100 years. But it has come to notice and as the hon. member has said 246 dams in the country have been surveyed out of the total number of dams. If we discuss this issue from this perspective, zero to one percent of sedimentation occurs every year which is natural and also on expected line. According to the hon. member, six dams have been notified where silting has been more than what should have been under the prescribed time limit. This is certainly a matter of concern but desilting is not techno-economically viable. Desilting has been done in some small dams using this type of technique. The Government has used this type of desilting in some dams through R.R.R plan or Drip plan. I would like to inform the House that apart from having concern about desilting, we all have to think about the reasons behind it. Deforestation and breach of embankments is the reason behind it. If we work at faster pace in this direction and the pace of plantation is accelerated then this problem can be solved.

[English]

SHRI BHARTRUHARI MAHTAB: Thank you, hon. Speaker, Sir. Hirakud reservoir on Mahanadi River is under duress today. Silting is one problem but irregular or no flow of water during non-monsoon season is a matter of concern. Can the Government ensure free flow of water to the reservoir from upstream? Did the Central Water Commission inform Odisha before allowing a number of barrages and dams on upstream of Mahanadi River which has choked the free flow of water to the Hirakud reservoir?

[Translation]

SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker, though this question is not directly related to the listed question. But when a dam is designed, or constructed, it is built only after doing complete study ensuring free and continual flow of water in its upstream or downstream. Whatever other information it available in this context, I will make it available to the hon. Member.

[English]

SHRI SUDIP BANDYOPADHYAY: Sir, preservation of water has become most important now-a-days. Even the Prime Minister has also expressed his concern. Sir, my question is very specific. The Government of West Bengal has introduced a scheme since last eight years, "*Jal Dharo Jal Bharo"* – Catch Water and Preserve Water. We are being benefitted by that scheme. So, my question is whether the Government of India has any proposal or plan to make a master plan for the coming days to face the challenge of this water crisis in the country.

[Translation]

SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker the way West Bengal has implemented 'Jal Dharo' scheme, the other state has also implemented similar schemes. I belong to Rajasthan where there is a high scarcity of water, a lot of work has been done there on the basis of Chief Minister Jal Swavalamban Yojana. Maharashtra had also taken an initiative like this. Gujarat had started 'Sujalam-Suflam' programme. 'Neeru Chettu and similar programs have been initiated by every state and results have come on expected lines. Under the leadership of hon. Prime Minister by making the ministry of Jal Shakti the nodal ministry of the country, a campaign named Jal Shakti Abhiyan has been started from the first day of this month. A team of Joint Secretary and above officers along with the officers of Central Water Commission and Central Ground Water Board, engineers and hydrologists have been sent to 256 districts. The team will

study on all subjects in 75 days and will consider how it can be made a mass-movement, beside it will also consult with stake-holders for public awareness in this direction. District collectors have been appointed as nodal officers for it. We are doing a detailed study in two phases. In the first phase, we are working on the area where the monsoon arrives and in the second phase we will work on the areas where the retreating monsoon arrives. So we have tried to work on both the areas.

However, states will have to come forward at this initial stage. The way other states like Gujarat, Maharastra and hon. member's state West Bengal have worked, in the same way, all the people will have to store house water in the house, field water in the field and village water in the village. As I said in my reply to the first question, I can say with confidence that water crisis in the country can be solved once for all.

[English]

DR. SHRIKANT EKNATH SHINDE: Hon. Speaker, Sir, India is the biggest consumer of groundwater, followed by China and the USA. Groundwater forms a larger share of India's agriculture and drinking water. It is said that India consumed more than 109 cubic kilometre groundwater between 2002 and 2008, double the capacity of the country's largest reservoir of the Upper Wainganga. The bore-wells are drying up; the aquifers are deep down. What is happening is that though the digging of 200 feet, like in the case of Maharashtra, is legally allowed, people go deeper, digging up to 1,000 feet? So, my question to the hon. Minister is whether the Ministry is planning to make a Central law since we have got a new Jal Shakti Ministry, defining uniform conditions for digging bore-wells across the country and also laying directives for making rainwater harvesting compulsory for those who request for a bore-well. *[Translation]* This will increase water recharge.

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SHRI GAJENDRA SINGH SHEKHAWAT: Hon. Speaker, I would like to inform the hon. member through you that according to the constitution water is a state subject. So, there is a very little scope of formulating any kind of direct legislation. I would like to inform the hon. member that India is a vast country and the aquifers of all states are different. Therefore, it is not possible to make a Uniform digging policy for bore well, but states have tried to develop a system in this direction. At present, the Hon. Green Court has banned the construction of tube wells for other than drinking water purpose, whether it is for industrial purpose or for agricultural purpose on the basis of its decision over exploited blocks.

[English]

SHRI A. RAJA: Hon. Speaker, Sir, a few years back, in my constituency, there was a big landslide because of flood. Two years back, in Chennai, there was a huge flood. Out of this experience, I came to know through the officers that in spite of low or average rainfall, the flood is getting higher and higher every year. It is because the water channels that lead to the water bodies are being blocked by illegal constructions and encroachments. This is a very important issue. Unless and until the encroachments are removed, the water bodies cannot be filled up with water for future generation. What will be the mechanism of the Government to remove all these encroachments to keep the water bodies intact? This is my first question.

[Translation]

HON. SPEAKER: Please ask only one question.

SHRI GAJENDRA SINGH SHEKHAWAT: As I have told in my replies to previous questions, that it is obviously a state subject. Definitely, it is a matter of concerrn. Hon. Member has asked the question about Chennai. ... *(Interruptions)*

[English]

SHRI A. RAJA: Out of my experience from Tamil Nadu, I am saying that it applies to the whole of India.

[Translation]

SHRI GAJENDRA SINGH SHEKHAWAT: If I talk about the phenomenon of entire country and more specifically about Chennai, now only 10th Part of the total ponds existed earlier in Chennai is left. The problem of encroachment prevails all over the country. Such type of problem prevails everywhere in water bodies in their catchment areas, villages or in cities but apparently state Government take decision in this regard.

HON. SPEAKER: I think several Hon. Member want to speak on this issue.

...(Interruptions)

SHRI ADHIR RANJAN CHOWDHURY: Hon. Speaker, Farakka Dam ....*(Interruptions)*

HON. SPEAKER: Please, wait for one minute only.

Several Hon. Members want to ask Supplementary Questions on water conservation and water. Hon. Prime Minister, The leader of our House, has also paid serious attention especially to water conservation and so the Ministry of Jal Shakti has been formed by combining few different ministers. I would like to urge upon the Minister of Parliamentary Affairs in view of the curiosity of all the hon. Members that a debate should be conducted on this issue so that most of the Hon. Members may speak on this subject.

THE MINISTER OF STATE IN THE MINISTRY OF PARLIAMENTARY AFFAIRS AND MINISTER OF STATE IN THE MINISTRY OF HEAVY INDUSTRY AND PUBLIC ENTERPRISES (SHRI ARJUN RAM MEGHWAL): Hon. Speaker, the Government is ready for it.

SHRI ADHIR RANJAN CHOWDHURY: Sir, the condition of Farakka Dam project is worsening in Bengal due to siltation. Now, the situation is that all the lock gates are not opened. He has told in his reply that, *[English]* "There is a need-based provision for desiltation of dams and desiltation works in three dams - two in Tamil Nadu and one in Uttarakhand." *[Translation]* So I want to know why the Farakka Dam project has not been included in it.

HON. SPEAKER: Hon. Minister, if you want to respond, it is alright. This question is not related to the original question.

SHRI GAJENDRA SINGH SHEKHAWAT: Sir, the need based provision, as mentioned, if the State Government. ...*(Interruptions)*

SHRI KRUPAL BALAJI TUMANE: Hon. Speaker, you have clubbed my question No. 187 with this question.

HON. SPEAKER: Hon. Member, you are late. I had called your name. I will allow you to ask question after the reply of the Hon. Minister.

SHRI GAJENDRA SINGH SHEKHAWAT: Sir, all the Dams and Reservoirs are the properties either of State Government or of the PSUs and if primary user or owner sends them requests. ...*(Interruptions)*

HON. SPEAKER: You are a senior Member. I request you to sit down. ...*(Interruptions)*

SHRI GAJENDRA SINGH SHEKHAWAT: Sir, as I have told that Farakka dam or Reservoir does not fall in that category. Primarily, Dam or Reservoirs are either owned by State Government or PSUs, or other Ministries ...*(Interruptions)*

HON. SPEAKER: Hon. Member, you are a leader, please, sit down.

...*(Interruptions)*

SHRI GAJENDRA SINGH SHAKHAWAT: Sir, the responsibility of management and maintenance of Farakka Dam is of the Ministry of Jal Shakti. In the cases of other dams, if the primary owner of the dam sends such types of request to us, work is done on such projects after getting their techno-economic study conducted and in case we find it appropriate to work on them.

HON. SPEAKER: Hon. Members, when you are called to ask questions, you should be present. That should be the system. All should go by the rules.

SHRI KRIPAL BALAJI TUMANE: Sorry sir, my question was 187, you clubbed it.

HON. SPEAKER: I have clubbed the question with the permission of the House, but before doing so, I had first called your name.

SHRI KRIPAL BALAJI TUMANE: Speaker sir, there are lakes or water bodies in rural areas which do not have any recognition anywhere. While going by the road we all see that there are such small ponds near the village, where all the people of the village including little children bath and wash clothes in the ponds because there is no water in the bore wells. Tap Water scheme is not for the villages. In the village, the farmers manage their water needs only with such water bodies.

My question to the minister is that the state government gives some money and help, but it is insufficient. I would like to know whether the central government is planning to make a special plan in coordination with the state government.

SHRI GAJENDRA SINGH SHEKHAWAT: Sir, the available schemes of the Government of India are like "Repair, renovation, rehabilitation, rejuvenation, and modernisation of traditional water bodies" through which the Government of the country has done the work of supporting the states in this direction. I would like to mention here that under the NREGA, if I mention last one year, 3043 crore

rupees were spent in this direction to support the State Government in the country, for such traditional water bodies, for maintenance of 2,21,777 water bodies for their desilting and water flow in that canal and their moderation.

(Q.183)

SHRI MANOJ KOTAK: Hon. Speaker Sir, my question is about the increased use of glass facade. As you know, a lot of measures are taken to prevent global warming, and ensure energy conservation. But today, whether it is a mall or a commercial building or a residential building, all these are covered with glass facade, which increases the use of energy and makes it difficult to supply required electricity. NEERI had a report, according to which, it increases the use of 17% energy. It not only increases the use of electricity but it also increases the heat due to global warming.

In his reply, the Hon. Minister said that there is an Energy Conservation Code for this, but when it is not followed, are there any plans to take strict measures against it? Hon. Minister may please enlighten about it.

[English]

SHRI HARDEEP SINGH PURI: I would like to thank the hon. Member for focusing our attention on this issue. Glass clearly has an aesthetic value but there is no evidence to suggest that the use of glass facade in buildings *per se* results in extra consumption of energy. In fact, the studies that have been conducted or the work that has been done by the Bureau of Indian Standards in terms of the National Building Code or in making the Model Building Bye Laws, show that in fact a glass building, if properly designed and properly located, can have beneficial effects. Therefore, those who are utilising glass facade, either in the residential segment or in the commercial area, would normally want to satisfy themselves before using it.

A reference has been made to a Study by IIT Delhi which says that it consumes four times more energy. I have personally read that Study Mr. Speaker, Sir. There is no such conclusion in that Study. This is a popular narrative, and if I may submit, not an entirely accurate narrative. In fact, glass buildings facing south use more energy, those facing north use less energy and those which are facing east or west use equal amount of energy. If you use glass in terms of double glazing and insert certain gas into them, like Argon or Crypton, the evidence is that the building consumes less energy.

I would urge the hon. Members and all others to let me know if there is any study done in India or outside which demonstrates that the use of glass façade is actually contributing to global warming. Insofar as global warming is concerned, all of us sitting in the room are contributing to global warming which could be seen in terms of the rise in the temperature of the earth and sea water.

Our effort all along has been to construct buildings which are environmentally sustainable and friendly. If there is any evidence which comes that glass façade has the opposite effect, we would certainly look at that evidence.

[Translation]

SHRI MANOJ KOTAK: Hon. Speaker, Sir, the hon. Minister has said that nothing substantial has been found in IIT Report. America is trying to put complete ban on glass facade in New York City and a Bill has also been introduced there in this regard. The Hon. Minister has said that norms have been made as per energy conservation building code but my very specific question was that whether the Government proposes to take any stringent steps against the builders if they do not follow those norms?

Secondly, there was on incident of fire in a coaching institution in Surat few days back. At that time there was problem during safety operation due to glass facade. Therefore, its ban is also necessary due to security measures. Rules

are made for such buildings but builders do not construct buildings according to those norms. In the incident of Surat, we have seen that many children died as there were coaching institutes there. I therefore, request the Hon. Minister to tell us as to what should be done for compliance of such norms.

[English]

SHRI HARDEEP SINGH PURI: Sir, the Bureau of Indian Standards, in IS 16231, covers selection methodology on the basis of properties related to light, energy, fire and safety. These have to be followed. If there are any instances where the prescribed norms are not followed, that would be at the risk that the builder would be taking but, if there is a violation, we would be happy to look at it.

Similarly, the National Building Code of 2016 provides for use of glass, based on its thermal properties, to optimise solar load while taking care of safety concerns. My own Ministry has drafted these bye laws.

The hon. Member shifted his attention from IIT Delhi to the United States and referred to a Bill which is before the legislators. I am not aware of that Bill but I would be happy to look at it. I can tell him that I am not aware of any move to ban buildings *per se*. I had the privilege of serving as India's Ambassador and as Permanent Representative to UN.

I lived for five happy years in an entirely glass building, the Trump Tower, on Second Avenue on 46. I would be surprised if that building was going to be banned and particularly right now. But all I would say is that we have worked out a certain Code, which is called ECBC. About 12 States have adopted that Code. The Code becomes mandatory. We only design the template. Once that template is accepted by the States, it becomes mandatory. After making all these by-laws, these will then be implemented by the States. But let me again reiterate, as my distinguished colleague, the hon. Minister of Jal Shakti did earlier, that these are

all State subjects and we can only design an eco-system here and then look to the States to implement them.

But again, I want to assure the hon. Member that should he have any difficulties on any utilisation of glass, which proceeds in a manner which is violating any prescribed norm, I would be happy to sit down with him and look at that issue. But I am not aware of anyone having brought to our attention the need to move in a direction which seeks to curb the use of glass. Thank you very much. …(*Interruptions*)

[Translation]

HON. SPEAKER: Hon. Minister, you please do not respond.

...(Interruptions)

[English]

PROF. SOUGATA RAY: I am happy that the hon. Minister had spent five happy years in Trump Towers in New York. But what he is saying goes against common sense.

It is evident that if you use glass in the façade of a building, more light comes in and that means energy for using light becomes less. But since glass admits more heat, cost for air-conditioners would be more.

Now-a-days there is this concept of 'green building'. The hon. Minister in his reply has nowhere mentioned the need for green building. All his reports are dated: IIT studies dated July, 2011; the National Building Code is dated 2016; Model Building By-laws are dated 2016. In view of the many apprehensions expressed by people about using glass for the newly coming up shopping malls, multi-storey residential buildings and office buildings, I would like to know specifically from the hon. Minister whether the Ministry would notify green

building laws and make it compulsory for all big builders, who are influential, throughout the country.

SHRI HARDEEP SINGH PURI: I am happy to take this discussion into the realm of common sense.

Let me tell the hon. Member that there are glass facades. For instance, the least and the most disadvantage of these are very clear. As I have already mentioned, in double glazing, if you insert argon or krypton gas, that will have cooling effect. …(*Interruptions*)

PROF. SOUGATA RAY: These are inert gases.

SHRI HARDEEP SINGH PURI: If I may be allowed to complete, I may be able to also respond on the doctrine of common sense. Let me say that the most energy consuming is the clear-cut glazing. That is the most energy consuming.

Then, there is a low E1 glazing; there is a low E2 glazing; and there is an absorptive glazing which absorbs a lot of heat. Then, there is a reflective glass. In fact, today, we are utilising what is called a Green Rating for Integrated Habitat Assessment where we rate green buildings. Our entire effort in the urbanisation is to empanel technologies which are green technologies. It is our assessment that the India of 2030 …(*Interruptions*). The answer to the question is specific to the question because the question referred to an IIT study. I have to answer that. If the question had been on green technology, I am willing to have a discussion with the hon. Member.

I am now trying to - at the level of common sense – inform the hon. Member that a mix of different components can be used. We have clear evidence that a mall constructed with concrete using different components like aluminium, compost, bricks, glass, etc., in fact, can be far more damaging to the environment than a well-constructed glass building.

So, in other words, we have to ensure that the aesthetics of glass is also anchored in green technology. In fact, all our recommendations on the use of technologies and use of materials are based on green building protocol. In fact, the entire effort is anchored on that. Therefore, the answer was specific to the question. We can only formulate a template. We have it and 12 States have accepted it. I will encourage the other States to accept them as well.

(Q. 184)

[Translation]

SHRI SUSHIL KUMAR SINGH: Hon. Speaker Sir, the Hon. Minister has admitted in reply to my question that as per the feasibility found for renewable energy in the country and the survey made in this regard, there is a feasibility of having 1097 giga watt renewable energy in the country. The target fixed by the Ministry by the year 2022 is only 175 giga watt, which is only 16 per cent of the total possibility. Now, the achievement till the year 2018-19 is only 50 per cent of the target. I am elected from Bihar where there is very high potential of it. If we see the data of Bihar, there is possibility of 11200 mega watt in solar energy only. The installed capacity is only 144 mega watt till date. It is very less if we see the average of the country. The possibility in the whole country and the installed capacity is 33470 mega watt, whereas in Bihar, it is only 148.85 mega watt. The Standing Committee of the Ministry of Energy in its 39th report, which was presented in Lok Sabha on March, 2018, has stated that *[English]* roof-top systems are not remunerative for consumers due to high maintenance cost and delay in disbursement of subsidy.

[Translation]

HON. SPEAKER: Hon. Member, you please ask your question, do not read the report of the Committee.

SHRI SUSHIL KUMAR SINGH: Hon. Speaker, Sir, I am not reading the report of the Committee, I am reading only one line of it. The Committee has also stated that the system of implementing is very long and difficult that it is not creating any awareness and people are not installing it on roof-top. A large number of farmers of Bihar and especially those of my Parliamentary Constituency want to set up solar parks on their land, which is drought-affected area, Plateau region rocky area and barren land. If the Government takes their land on rent or lease, then there can be no other cultivation except power generation. It would also be an effective step in realising of the vision of our Hon. Prime Minister for doubling the income of our farmers by the year 2022. I would like to know from the Hon. Minister about the efforts of the Government in this direction where there are such lands and where solar energy can be generated by setting up solar parks, which will also benefit the farmers, and power will be producedas as well?

HON. SPEAKER: Hon. Minister, Sir, please give your reply. Hon. Member, this is Question Hour. The Question Hour should be run as per convention.

SHRI R. K. SINGH: Hon. Speaker, the Hon. Member has asked 3-4 questions in his supplementary. I would reply to these 3-4 questions and reply to the question related to Bihar. The first question is what is our achievement at the National level? I would like to tell the Hon. Member that we have set the target that we would add 1 lakh 75 thousand mega watt renewable energy capacity by the year 2022. Our total installed capacity is 3 lakh 58 thousand mega watt. We want to add about 50 per cent of 1 lakh 75 thousand mega watt in about 4-5 years.

Now ,the situation is that today we have 80 thousand-mega watt installed capacity of our renewable energy. 24-thousand mega watt is under installation, it means work has been allotted and it is under installation. It has become 1 lakh 4 thousand mega watt. We have achieved 40 thousand megawatt in different stages, so it has become 1 lakh 44 thousand mega watt. We would not only achieve our target but also cross it by the year 2022.

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Hon. Speaker, Sir, I would like to inform my colleague that the speed of India in the renewable energy sector is equal to the countries with the highest speed in this sector in the world. It means the speed with which India is adding capacity is the highest in the world. It has been done at National level. I would like to tell you in respect of Bihar that since the year 2016 till date, I have written seven letters to the Government of Bihar and asked them to send their proposals for solar parks. Till date no proposal has come from them. I have told their officials two-three times. Hon. Member has rightly said that there are lands in their area and also in surrounding areas where we can set up solar parks. The energy generated there will also help Bihar as Bihar is deficit in energy. We give about 5 thousand mega watt to Bihar from Central sources and Bihar's own generation is very less. They also need it but we have not received any proposal from them in this regard. I would like to suggest the Hon. Member to send proposal from their State Government in this regard. We will feel happy. Hon. Member, I have already written and asked them in this regard. If the Hon. Member and the remaining other members co-operate, then we would get proposal from them.

Hon. Speaker, Sir, I would like to say one more thing. I have not completed my reply yet. He has raised three-four questions; I would reply all of them. There is an important reply for farmers. This is not only important for the farmers of Bihar, it is important for the farmers of the whole country. We have sanctioned a scheme, under which farmers can install solar panels upto 2 mega watt capacity on their barren land and we will purchase that power. If the farmer uses his land to install that and give it at the rate of 30 paise per unit, for which we are fixing the rate around 3 rupees 60 paise per unit, then he would also earn one lakh rupees per acre per annum. The income of the farmers would not only double but it would become triple. We would launch it in the next 15-20days. It is a very good scheme for the farmers of the whole country.

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SHRI SUSHIL KUMAR SINGH: Hon. Speaker, Sir, being satisfied and happy with the reply of the Hon. Minister, I would like to state that he has mentioned about a scheme for the farmers but I must make it clear that the farmers do not have any capital or fund and they are already under debt.

SHRI R.K SINGH: We have taken care of that.

HON. SPEAKER: Hon. Minister, please sit down, let him complete his question.

SHRI SUSHIL KUMAR SINGH: Sir, my question is not been complete yet. I would like to state that 90% solar lights installed under MPLAD through trained Solar Mitras are not working. There is no one for their maintenance and that agency also does not take any responsibility which has installed these lights. Till date only thirty one thousand, ninety two Solar Mitras are trained. This is a very small number. In such a large country with a population of 130 crore, please train about lakhs of Solar Mitras so that they can get employment. What is the Government's scheme for them? Through you, I would like to know from the Hon. Minister.

SHRI R. K. SINGH: Hon. Speaker Sir, the Hon. Member has again asked two questions in one supplementary question.

HON. SPEAKER: But the Hon. Member has asked the right question.

SHRI R. K. SINGH: I would reply both the questions asked by the Hon. Members.

Hon. Speaker, the first question of the Hon. Member was that how can a farmer invest if he does not have capital? We have made arrangement for this also and this is what I wanted to tell the Hon. Member. This is not only important for Bihar but also for the whole country. We have made this arrangement that it is not necessary that the farmer should install two mega watt solar panel with his

own capital. He can give his land to any developer and if he gives it to any developer, the developer will give him 30-35 paise per unit for that and the farmer would earn one lakh rupees. If he himself wants to install then he would earn 3.5-4 rupees per unit. So far as training of solar mitras is concerned, we had set a target of training about 50 thousand solar Mitras in the first phase. We have achieved the target of training 31 thousand solar Mitras. We will increase it. We have 5 training centres in Bihar. There is a need to speed up their work. Only 1159 persons have been trained in Bihar till date. We will also increase it.

(Q. 185)

SHRI KAPIL MORESHWAR PATIL: Hon. Speaker Sir, the Hon. Minister in his reply to my Question has said that in the year 2012, PAT cycle-1 was started for conservation of energy, which was completed in the year 2015. It also saved energy and saved from 31 million tonne carbon dioxide emission. Through you, I would like to know from the Hon. Minister that in my Parliamentary Constituency, Bhiwandi, there is a very big business of textile. The textile business is in great problem due to high rate of power. I want to know whether the Government is considering providing power at cheaper rate and to save power and also to run the whole textile business by using solar energy for the facility of the persons engaged in the textile business. A private company is supplying power and due to this reason, people are facing much difficulty. Therefore, if it is converted into solar energy then it will facilitate the people. If the Government is considering in this regard then please tell us the details thereof. Whether there is any place in the country where solar energy is being used to run textile industry?

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SHRI R.K. SINGH: Hon. Speaker Sir, there are two schemes in this regard and both can be fruitful. The first scheme is related to captive power plant. Industries together can set up captive power plant. We have open access policy and power can be generated by setting up Solar Captive Power Plant, second thing is that individual unit should be set up on its own land or at rooftop. Both these will benefit them. For this, we will provide necessary help.

SHRI KAPIL MORESHWAR PATIL: Sir, in my Parliamentary constituency there are sheds of around 8 lakh looms. I would like to know from the Hon. Minister that our Hon. Prime Minister has started Swachchhta Abhiyan. I would like to know whether there is any scheme of the Government to generate power from textile waste and link it with the Deen Dyal Upadhyay Yojana and generate power to supply it to the businessmen there? If this can be done then people of that area can get a great relief.

SHRI R. K. SINGH: Hon. Speaker Sir, our plan is regarding co-generation. We also provide subsidy per Megawatt under co-generation scheme. Industries of that area can also install co-generation and use waster for that. We will also provide the admissible subsidy.

(Q. 186)

SHRI CHANDAN SINGH: Hon. Speaker Sir, thank you very much for giving me an opportunity to speak.

Sir, I am going to speak for the first time in this House, therefore, I need your blessings and protection.

Sir, in the above said years the Government had announced to adopt Make In India Policy in the country. It directly means that now priority will be given to the production sector in the country. Actually this was also necessary and helpful for the economy of the country and also to provide employment to the youths of the country.

I welcome this policy from the core of my heart but when I find sickness increasing in small and medium industries then I want to know whether the Government has considered the reasons responsible for this and what are these reasons? And what are the efforts made by the Government to overcome this.

SHRI NITIN JAIRAM GADKARI: Hon. Speaker Sir, the contribution of MSME is 29 per cent in the total GDP of our country. If our country has to progress and develop then this sector is the most important sector. In the industrial development of China, Japan, Korea also MSME had a very big share. Therefore, the Government has given special priority to this. It needs to be mentioned here that there are many reasons for closing some industries such as *[English]* lack of demand, shortage of working capital, cost of working capital, non-availability of material, power shortage, marketing problems, labour problems and management problems. *[Translation]* At the same time, we are also trying to solve this problem. I have just now taken the charge. We have formulated many schemes and the most important thing is that the industries under SSI, who are also supplying materials to public corporation, do not get their payments even after one year, one and a half year, and two years. Interests increase and due to this reason, units have to face problems. We have solved this problem and opened a portal and action can be taken under against them this Act. If anyone raises any complaint on that portal in a proper way that somebody has not made his payment, then there is a provision to take action against him. We are gradually trying to identify all these problems and resolve them. We also held

meeting with ADB, KFW and World Bank to reduce the cost of capital. We are making efforts as how to reduce interest cost in credit line from there.

Secondly, the most important thing that happened in China ,and it might have been known to the Hon. Members that there is a marketing website named Ali Baba or there is Amazon in the U. S. due to which a big market has been created and as a result of which MSME has been benefitted. We are now going to launch a big marketing site for MSME and Khadi Gramodyog on the same lines. We have started preparation for that. With its help the industries and people of the country will get access to it. It will have a world market.

If honey has been produced in any village and if anyone in America needs that then he can order for that on its website. With this marketing will also be promoted and we have many such new schemes. You are seriously concerned about this, therefore, you have included this matter. This Government has been formed very recently and I have been given a new charge in this Government. We would definitely strengthen it by formulating a new policy with the suggestion given by you and all the members.

Hon. Speaker Sir, I would like to tell you that high target is fixed. Sometimes that is achieved and sometimes that is not achieved. We have fixed a target that we would contribute 50 rupees for five years in GDP for the development of the country. 11 crore people have been provided employment and we would make it more than 15 crore, it means we would add 5 crore more employment… *(Interruptions*)

SHRI ADHIR RANJAN CHOWDHURY: Your actions should reflect your words … *(Interruptions)*

SHRI NITIN JAIRAM GADKARI: You can tell me if I had said something that has not been fulfilled… *(Interruptions)* If it is not done then you have the

right to ask question. When I am declaring these targets and we will achieve these targets as we have fulfilled the target of roads.

HON. SPEAKER: Hon. Member, please ask supplementary question.

…*(Interruptions)*

HON. SPEAKER: Hon. Member, if half an hour discussion is demanded on this, then half an hour discussion will be allowed so that the whole country will know that how the Government is working on micro and small industries. Hon. Minister also knows about the whole system very effectively. I would like to tell the Hon. Member that if he gives in writing for half an hour discussion then we would definitely allow that.

… *(Interruptions)*

SHRI CHANDAN SINGH: Hon. Speaker Sir, in this context I would like to give you an example of a closed sugar mill in my Parliamentary Constituency Nawada, Bihar. Decades ago, this sugar mill, which was known as Mohini Sugar Mill, was started by private sector in Nawada. But later on, this mill was acquired by the Government. After that, this mill has been closed since the year 1993. The closing of this mill has adversely affected the livelihood of thousands of families and also the farmers of the area. This area was very useful for sugarcane production but now the area is becoming barren and the farmers of this area are facing economic crisis. I, therefore, urge the Government to make the decision to revive this mill. If possible, the Government should re-acquire this mill or the Government should announce a new policy at National level to revive such sick industries… (Interruptions) I would like to know whether the Government is going to take any decision on my request and the time by which it is likely to be done?

<u>12.00 hrs</u>

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HON. SPEAKER: Hon. Minister Sir.

SHRI NITIN JAIRAM GADKARI: Hon. Speaker, I am somewhat concerned with this question. But as I am related to sugar mills so I would like to submit that do not start any sugar mill by mistake. The condition of sugar mills is very bad. I am myself, running various types of sugar mills in my area with farmers. Munde ji is present here; you can ask her, all are facing problems. Do not discuss this new subject now. Secondly, there is one solution in this regard that ethanol can be directly made from sugarcane and sugarcane juice. Our import is worth eight lakh crore rupees. We are exporting sugar worth fifty lakh tonnes because we have surplus sugar in the world. Its rate is 22 rupees per kilo in Brazil. The Government of India is providing at 32 rupees per kilo to farmers, So it is economically non-viable. Therefore, ethanol should be directly made from sugarcane and the Government, the Ministry of Petroleum and Natural Gas has fixed its price at 60 rupees per litre. I think you should come to me sometime and I will help you find out some solution in this regard… *(Interruptions)*

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*WRITTEN ANSWERS TO QUESTIONS

Starred Question Nos.188 to 191 and 193 to 200

Unstirred Question Nos. 2032 to 2261

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* Available in Master copy of Original Version of Debate, placed in Library.
You can also visit https://sansad.in/ls/questions/questions-and-answers for more information.

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[Translation]

HON. SPEAKER: Sushri Mahua Moitra ji, I have received notice dated 4th July, 2019 regarding question of privilege. This matter is under consideration.

…*(Interruptions)*

HON. SPEAKER: Hon. Member, there is no need to give statement on this. You are a senior member, please sit down. This matter is under consideration. I will allow you to speak on this later on. Hon. Member, please

…*(Interruptions)*

HON. SPEAKER: The notice of motion given by Shri Baalu ji is in my cognizance. I have forwarded this to the concerned Ministry to get more information on this subject. After receiving the facts, I shall take appropriate decision on this motion.

…*(Interruptions)*

[English]

SHRI T.R. BAALU(SRIPERUMBUDUR): Mr. Speaker, Sir, it has to be considered very quickly… *(Interruptions)* The competent authority has ridiculed the image of the people of Tamil Nadu… *(Interruptions)*

[Translation]

HON. SPEAKER: I have told you in the chamber also that I will give you an opportunity to speak.

… *(Interruptions)*

HON. SPEAKER: Hon. Member, I have told you in the chamber that I will give you an opportunity to speak after the next Budget.

… *(Interruptions)*

HON. SPEAKER: I will give you an opportunity to speak. I will give a chance to speak to everyone.

… *(Interruptions)*

HON. SPEAKER: I shall definitely give you a chance.

… *(Interruptions)*

HON. SPEAKER: Hon. Members, I have received notices regarding Adjournment Motion from some members on different subjects. Matters though important do not warrent interruption of business of the day. These matters can be raised on some other occasions. I have therefore, disallowed all the notices of Adjournment Motions.

… *(Interruptions)*

HON. SPEAKER: Hon. Member, please. I have told you that I will give you an opportunity to speak.

… *(Interruptions)*

HON. SPEAKER: I will give you an opportunity to speak in this very session. Alright?

… *(Interruptions)*

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12.03 hrs

PAPERS LAID ON THE TABLE

[Translation]

HON. SPEAKER: Now,papers shall be laid on the Table.

[English]

THE MINISTER OF FINANCE AND MINISTER OF CORPORATE AFFAIRS (SHRIMATI NIRMALA SITHARAMAN): Sir, I beg to lay on the Table a copy (Hindi and English versions) of the Economic Survey 2018-19 (Volume 1 and Volume 2).

[Placed in Library, See No. LT 104/17/19]

THE MINISTER OF STATE OF THE MINISTRY OF POWER, MINISTER OF STATE OF THE MINISTRY OF NEW AND RENEWABLE ENERGY AND MINISTER OF STATE IN THE MINISTRY OF SKILL DEVELOPMENT AND ENTREPRENEURSHIP (SHRI R.K. SINGH): Sir, I beg to lay on the Table a copy each of the following Notifications (Hindi and English versions) under Section 179 of the Electricity Act, 2003:-

(1) The Central Electricity Regulatory Commission (Sharing of inter-State Transmission Charges and Losses) (Sixth Amendment) Regulations, 2019 published in Notification No. L-1/44/2010/-CERC in Gazette of India dated 8th April, 2019.

(2) Notification No. L-1/(3)/2009/-CERC published in Gazette of India dated 27th February, 2019, containing corrigendum to the Notification No. L-1/(3)/2009-CERC dated 9th January, 2019.

[Placed in Library, See No. LT 105/17/19]

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THE MINISTER OF STATE OF THE MINISTRY OF HOUSING AND URBAN AFFAIRS, MINISTER OF STATE OF THE MINISTRY OF CIVIL AVIATION AND MINISTER OF STATE IN THE MINISTRY OF COMMERCE AND INDUSTRY (SHRI HARDEEP SINGH PURI): Sir I beg to lay on the Table:-

(1) A copy each of the following papers (Hindi and English versions):-

(i) Memorandum of Understanding between the Airports Authority of India and the Ministry of Civil Aviation for the year 2019-2020.

[Placed in Library, See No. LT 106/17/19]

(ii) Memorandum of Understanding between the Chandigarh International Airport Limited and the Airports Authority of India for the year 2019-2020.

[Placed in Library, See No. LT 107/17/19]

(2) A copy each of the following Notifications (Hindi and English versions) under Section 58 of the Delhi Development Act, 1957:-

(i) S.O.1243(E) published in Gazette of India dated 8th March, 2019, regarding Constitution of Special Task Force.

(ii) S.O.1244(E) published in Gazette of India dated 8th March, 2019, regarding setting up of Fuel Stations on Privately owned Lands in National Capital Territory of Delhi.

[Placed in Library, See No. LT 108/17/19]

04.07.2019

THE MINISTER OF STATE OF THE MINISTRY OF SHIPPING AND MINISTER OF STATE IN THE MINISTRY OF CHEMICALS AND FERTILIZERS (SHRI MANSUKH L. MANDAVIYA): Sir, I beg to lay on the Table a copy each of the following Notifications (Hindi and English versions) under sub-section (4) of Section 124 of the Major Port Trusts Act, 1963:-

(1) G.S.R.234(E) published in Gazette of India dated 25th March, 2019, approving the New Mangalore Port Trust Employees (Recruitment, Seniority and Promotion) Amendment Regulations, 2019.

(2) G.S.R.235(E) published in Gazette of India dated 25th March, 2019, approving the Cochin Port Trust Employees (Recruitment, Seniority and Promotion) Amendment Regulations, 2019.

(3) G.S.R.408(E) published in Gazette of India dated 4th June, 2019, approving the Kolkata Port Trust Employees (Recruitment, Seniority and Promotion) Amendment Regulations, 2019.

(4) G.S.R.417(E) published in Gazette of India dated 12th June, 2019, approving the Cochin Port Trust Employees (Recruitment, Seniority and Promotion) Amendment Regulations, 2019.

[Placed in Library, See No. LT 109/17/19]

[Translation]

HON. SPEAKER: General Vijay Kumar Singh (Retired) - Not Present.

[English]

SHRI ADHIR RANJAN CHOWDHURY (BAHARAMPUR): Sir, where is the Minister? …(*Interruptions*)

04.07.2019

[Translation]

HON. SPEAKER: Shri Ratan Lal Kataria.

...(Interruptions)

THE MINISTER OF STATE IN THE MINISTRY OF JAL SHAKTI AND MINISTER OF STATE IN THE MINISTRY OF SOCIAL JUSTICE AND EMPOWERMENT (SHRI RATAN LAL KATARIA): Sir, with your Permission, I beg to lay on the Table:-

(1) A copy each of the following papers (Hindi and English versions) under Section 619A of the Companies Act, 1956:-

(i) Review by the Government of the working of the Kerala Land Development Corporation Limited, Thiruvananthapuram, for the year 2012-2013.

(ii) Annual Report of the Kerala Land Development Corporation Limited, Thiruvananthapuram, for the year 2012-2013, alongwith Audited Accounts and comments of the Comptroller and Auditor General thereon.

(2) Statement (Hindi and English versions) showing reasons for delay in laying the papers mentioned at (1) above.

[Placed in Library, See No. LT 114/17/19]

HON. SPEAKER: Hon. Minister of Parliamentary Affairs.

… *(Interruptions)*

HON. SPEAKER: Hon. Minister of Parliamentary Affairs is laying Papers on the Table.

… *(Interruptions)*

HON. SPEAKER: Item No. 6- Shri Arjun Ram Meghwal.

04.07.2019

… *(Interruptions)*

HON. SPEAKER: Hon. Member, Minister of Parliamentary Affairs can lay Papers on the Table. Please take your seat.

… *(Interruptions)*

THE MINISTER OF STATE IN THE MINISTRY OF PARLIAMENTARY AFFAIRS AND MINISTER OF STATE IN THE MINISTRY OF HEAVY INDUSTRIES AND PUBLIC ENTERPRISES (SHRI ARJUN RAM MEGHWAL): Sir, with your permission on behalf of V. K. Singh, I beg to lay on the Table:-

(1) A copy of the National Highways (manner of depositing the amount by the Central Government; making requisite funds available to the competent authority for acquisition of land) Rules, 2019 (Hindi and English versions) published in Notification No. G.S.R.39(E) in Gazette of India dated 18th January, 2019under Section 9 of

[Placed in Library, See No. LT 110/17/19]

(2) A copy each of the following Notifications (Hindi the National Highways Act, 1956.and English versions) under sub-section (5) of Section 3G of the National Highways Act, 1956:-

(i) S.O.510(E) published in Gazette of India dated 30th January, 2019, regarding appointment of Shri Surendra Singh Rawat, Retd. Secretary, Government of Uttarakhand as Arbitrator.

(ii) S.O.862(E) published in Gazette of India dated 14th February, 2019, making certain amendments in Notification No. S.O. 510(E) dated 29th January 2019.

[Placed in Library, See No. LT 111/17/19]

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(3) A copy of Notification No. S.O.374 (E) (Hindi and English versions) published in Gazette of India dated 23rd January, 2019, regarding delegation of powers of Highway Administration under Section 50 of the Control of National Highways (Land and Traffic) Act, 2002.

[Placed in Library, See No. LT 112/17/19]

(4) A copy each of the following Notifications (Hindi and English versions) under Section 10 of the National Highways Act, 1956:-

(i) S.O.507(E) published in Gazette of India dated 29th January, 2019, regarding rates of fees to be recovered from the users of National Highway No. 27 (New NH No. 30)(Allahabad to Uttar Pradesh/Madhya Pradesh Border Section) in the State of Uttar Pradesh.

(ii) S.O.801(E) published in Gazette of India dated 12th February, 2019 making certain amendments in the Notification No. S.O.479(E) dated 16th February, 2017.

(iii) S.O.867(E) published in Gazette of India dated 14th February, 2019 regarding rates of fees to be recovered from the users of National Highway No. 758 (Bhilwara-Ladpura Section) in the State of Rajasthan.

(iv) S.O.868(E) published in Gazette of India dated 14th February, 2019 regarding rates of fees to be recovered from the users of National Highway Nos. 128 (old NH No.232) and 330 (old NH No.232) (Tanda-Raebareli Section) in the State of Uttar Pradesh.

(v) S.O.869(E) published in Gazette of India dated 14th February, 2019 regarding rates of fees to be recovered from the users of National Highway No. 222 (New NH No. 61)(Ane Ghat to Start of Ahmadnagar Bypass Section) in the State of Maharashtra.

(vi) S.O.980(E) published in Gazette of India dated 22nd February, 2019 regarding rates of fees to be recovered from the users of National

Highway No. 565 (Davulapally to Markapuram Section) in the State of Andhra Pradesh.

(vii) S.O.981(E) published in Gazette of India dated 22nd February, 2019 regarding rates of fees to be recovered from the users of National Highway No. 5 (Chennai-Tada Section) in the State of Tamil Nadu.

(viii) S.O.982(E) published in Gazette of India dated 22nd February, 2019 regarding rates of fees to be recovered from the users of National Highway No. 65 (End of Nagaur Bypass-Netra Village Mandore Section) in the State of Rajasthan.

(ix) S.O.1114(E) published in Gazette of India dated 1st March, 2019 making certain amendments in the Notification No. S.O.2681(E) dated 6th November, 2012.

(x) S.O.1132(E) published in Gazette of India dated 5th March, 2019 regarding rates of fees to be recovered from the users of National Highway No. 211 (Yedeshi-Aurangabad Section) in the State of Maharashtra.

(xi) S.O.1141(E) published in Gazette of India dated 7th March, 2019 regarding rates of fees to be recovered from the users of National Highway No. 24 (New NH No. 9)(Moradabad Section including Hapur Bypass Section) in the State of Uttar Pradesh.

(xii) S.O.1611(E) published in Gazette of India dated 18th April, 2019 regarding rates of fees to be recovered from the users of National Highway No. 24 (old NH No. 29E)(Sonauli-Gorakhpur Section) in the State of Uttar Pradesh.

(xiii) S.O.1612(E) published in Gazette of India dated 18th April, 2019 regarding rates of fees to be recovered from the users of National Highway No. 222 (New NH No. 61)(Malshej Ghat to Ane Ghat Sec tion) in the State of Maharashtra.

(xiv) S.O.1613(E) published in Gazette of India dated 18th April, 2019 regarding rates of fees to be recovered from the users of National Highway No. 1A (New NH No. 44)(Srinagar to Banihal Section) in the State of Jammu and Kashmir.

(xv) S.O.1667(E) published in Gazette of India dated 30th April, 2019 regarding rates of fees to be recovered from the users of National Highway No. 65 (New NH No. 9)(Vijayawada to Machilipatnam Section) in the State of Andhra Pradesh.

(xvi) S.O.1697(E) published in Gazette of India dated 6th May, 2019 re garding rates of fees to be recovered from the users of National Highway No. 24B (Raebareli-Allahabad Section) in the State of Ut tar Pradesh.

(xvii) S.O.1725(E) published in Gazette of India dated 13th May, 2019 regarding rates of fees to be recovered from the users of National Highway No. 78 (New NH No. 30)(Shahdol to Anuppur Section) in the State of Madhya Pradesh.

(xviii) S.O.1890(E) published in Gazette of India dated 31st May, 2019 making certain amendments in the Notification No. S.O.1217(E) dated 19th April, 2017.

[Placed in Library, See No. LT 113/17/19]

04.07.2019
12.04 hrs

MESSAGES FROM RAJYA SABHA

[English]

SECRETARY-GENERAL: Sir, I have to report the following messages received from the Secretary General of Rajya Sabha:-

1. "In accordance with the provisions of rule 127 of the Rules of Procedure and Conduct of Business in the Rajya Sabha, I am directed to inform the Lok Sabha that the Rajya Sabha at its sitting held on the 2nd July, 2019 agreed without any amendment to the Homoeopathy Central Council (Amendment) Bill, 2019, which was passed by the Lok Sabha at its sitting held on the 27th June, 2019."

2. "In accordance with the provisions of rule 127 of the Rules of Procedure and Conduct of Business in the Rajya Sabha, I am directed to inform the Lok Sabha that the Rajya Sabha at its sitting held on the 3rd July, 2019 agreed without any amendment to the Central Educational Institutions (Reservation in Teachers' Cadre) Bill, 2019 which was passed by the Lok Sabha at its sitting held on the 1st July, 2019."

04.07.2019
12.05 hrs

STATEMENT BY MINISTER

Medium of examination for direct recruitment to certain levels in Regional Rural Banks

[English]

THE MINISTER OF FINANCE AND MINISTER OF CORPORATE AFFAIRS (SHRIMATI NIRMALA SITHARAMAN): I beg to make a statement regarding Medium of examination for direct recruitment to certain levels in Regional Rural Banks.

Now, can I make the statement?

[Translation]

HON. SPEAKER: Yes, Speak.

[English]

SHRIMATI NIRMALA SITHARAMAN: At present, there are 45 Regional Rural Banks (RRBs) functioning in the country having a total staff strength of around 90,000 employees. Institute of Banking Personnel Selection (IBPs) conducts Common Recruitment Process (CRP) for recruitment of officers (Scale-I, II and III) and Office Assistants (Multipurpose) in RRBs on an all-India basis in English and Hindi medium.

In the present system, candidates educated in local languages are at a disadvantage due to the medium of examination. Various references and representations have also been made and received suggesting, inter alia, to conduct the recruitment examination for RRBs in regional languages.

The functioning of RRBs is State specific and rural focused and therefore, knowledge of the local language of that particular State or region would help the candidate in performing his duties effectively.

Thus, with a view to provide a level playing field and to expand employment possibilities for local youths, it has been decided that the examination for direct recruitment for officers (Scale-I) and Office Assistant

(Multipurpose) in RRBs will be conducted in 13 regional languages in addition to English and Hindi. These 13 regional languages are Assamese, Bengali, Gujarati, Kannada, Konkani, Malayalam, Manipuri, Marathi, Oriya, Punjabi, Tamil, Telugu and Urdu. The candidates will, in addition to English and Hindi, also have the option to choose the regional language of the State that they have opted for, from among the above languages, as their medium of examination.

This change shall be implemented from the Mains Examination of CRP RRB VIII, which is 2019 this year, onwards.

04.07.2019
12.07 hrs

MOTION RE: 2ND REPORT OF BUSINESS ADVISORY COMMITTEE

[English]

THE MINISTER OF STATE IN THE MINISTRY OF PARLIAMENTARY AFFAIRS AND MINISTER OF STATE IN THE MINISTRY OF HEAVY INDUSTRIES AND PUBLIC ENTERPRISES (SHRI ARJUN RAM MEGHWAL): On behalf of my colleague, Shri Pralhad Joshi, I beg to move the following:

> "That this House do agree with the Second Report of the Business Advisory Committee presented to the House on 3rd July, 2019."

[Translation]

HON. SPEAKER: The Question is:

> "That this Home do agree with. The Second Right of the Business Advisory Committee presented to the House on 3rd July 2019"

The motion was adopted

04.07.2019

[Translation]

HON. SPEAKER: Zero Hour, hon. member please speak.

[English]

SUSHRI MAHUA MOITRA (KRISHNANAGAR): Under Rule 225, I have given a notice of question of privilege before 10' Clock today. …(*Interruptions*)

[Translation]

HON. SPEAKER: Just make your point on privilege.

...(Interruptions)

HON. SPEAKER: Hon. Member, if you have a serious matter in Zero Hour, then keep it.

...(Interruptions)

[English]

SUSHRI MAHUA MOITRA: It is a point of order. …(*Interruptions*).

[Translation]

HON. SPEAKER: It is Zero Hour, you make your point in Zero Hour. I have given you special permission in zero Hour.

SUSHRI MAHUA MOITRA: Yes, I have to speak.

HON. SPEAKER: Yes, speak

SUSHRI MAHUA MOITRA: Everyone is saying that the government is theirs; It is no use doing it *[English]* Even if it is a minority of one, but the truth is the truth. I have faith in your neutrality. Please let me read the statement. …(*Interruptions*). I have submitted a notice of question of privilege against Zee TV and its … * for falsely reporting on my maiden address in this august House. …(*Interruptions*)

[Translation]

HON. SPEAKER: You cannot take names.

…(Interruptions)

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* Not recorded.

HON. SPEAKER: Khagen Murmu ji you speak.

...(Interruptions)

SHRI KHAGEN MURMU (MALDAHA NORTH): Sir, you gave me the opportunity and time to speak on a very important subject. Thank you very much for this....*(Interruptions)*

HON. SPEAKER: Nothing except Khagen Murmuji's Speech will go on record.

…(Interruptions)

SHRI KHAGEN MURMU: Sir, I want to draw your attention to a very important subject, the Sepoy Mutiny in the Indian freedom struggle which took place in 1857, is recognized as the first freedom struggle. About 2 years before this, on 30 June 1855, the general public of enslaved India revolted against the British Empire. Even today, 30th of June is celebrated every year in some parts of India as Hul Day...(Interruptions)

HON. SPEAKER: Hon. Members, please go back to your seat.

…(Interruptions)

HON. SPEAKER: Khagen Murmu ji, wait a minute.

I want to urge all hon. members again that as soon as the zero hour starts, many hon. senior members try to go behind the Speaker's. This is not right. I would again request all hon. senior member that if you go behind the Chair now, I will have to name all of you.

Hon. Member, now make your point.

SHRI KHAGEN MURMU: Sir, this Hul day is also known as Hul Kranti and Santhal Rebellion. The primitive tribe community and general public of India fought the Britishers against imposition of Lagaan (Tax) in the erstwhile India, conversion of forest land into farming and having ownership thereof and freedom from usury etc. In this fight, about 20 thousand tribals laid down their lives while protecting their soil. About 50 to 60 thousand tribals took port in this freedom

struggle. British government used to torture the general public very brutally by making some laws or the other and tortured them a lot to get the taxed every day.

Sir this freedom struggle was led by Sidhu, Kanhu, Chand and Bhairav, sons of the landless village head Punia Murmu of Bhognadih village of present day Jharkhand state. In this freedom struggle, his four sons sacrificed their lives along with 20 thousand tribals. In this struggle which started in Bhognadih village under the leadership of Sidhu and Kanhu, both of them gave the slogans such as 'Do or die', Britishers leave our soil'. I salute and pay tribute to these brave sons of India's first freedom struggle and 20 thousand tribals who sacrificed their lives while protecting soil. As a result of this freedom struggle, an Act was enacted in 1900, under which only a tribal could buy land. This law is still in force today.

Sir, through you, I request the government that Hul Day, which is celebrated every year on 30 June in some states of India with great fanfare, should be celebrated as Martyr's Day all over India and this day be declared as a national holiday. At the same time, I want to request the Hon. Minister that the biography of these brave sons of the First Freedom Struggle should be included in the syllabus so that the future young generation of our country could know them and take inspiration from their lives and be filled with the spirit of patriotism. Thank you.

[English]

SHRI JASBIR SINGH GILL (KHADOOR SAHIB): Sir, there is no doubt that the Ruling Party had won majority in Parliament riding on the Balakot strikes. Yet we see, every second day that the entitlements of Armed Forces are being cut. The latest being withdrawal of income tax exemptions to disabled soldiers who are not invalidated out. It is being extremely insensitive and insulting for an organization which has proved itself in every crisis, be it an external aggression or flood or any internal crisis. The Armed Forces have proved their mettle and we need to be proud of their contribution. They deserve our love and gratitude, especially, our soldiers and veterans who are war

disabled.

Therefore, it is my earnest request to frame guidelines so that entitlements of our Armed Forces are not withdrawn, without it being passed by both the Houses of Parliament and consented by the President who is constitutionally the Supreme Commander of our Armed Forces. Our bureaucrats have no right to withdraw justified entitlements which have been earned by our soldiers by giving their blood and sweat. Even the Armed Forces Headquarters should not be allowed to withdraw or reduce any entitlement without the Parliament's nod.

Recently the CSD entitlements were reduced and the rations in peace stations were withdrawn. The military justice delivery system has been made almost defunct with over 16,000 pending cases and just 6 AFTs remaining functional out of 22.

[Translation]

HON. SPEAKER: Hon. Member, please understand meaning of the bell sound, otherwise I will have to call the hon. member.

[English]

SHRI JASBIR SINGH GILL: The Indian Army is the most disciplined force. It is difficult for them to raise their voice against such insensitive decisions as they do not enjoy the same Fundamental Rights as enjoyed by common citizens.

On the 550th Prakash Utsav of Shri Guru Nanak Dev *Ji*, I would like to request the Government to open a Defence University or Symbiosis like Institute in Sultanpur area.

[Translation]

HON. SPEAKER: Shrimati Supriya Sadanand Sule and Dr. Sanjay Jaiswal are permitted to associate with the subject raised by Shri Jasbir Singh Gill.

[English]

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SHRI KODIKUNNIL SURESH (MAVELIKKARA): Speaker, Sir, the rubber farmers, especially, of Kerala, Tamil Nadu, Karnataka, North-East and other parts of the country are in severe crisis for several years due to fall in the prices of natural rubber. It is because of the import policy adopted by the Union Government.

The farmers had received reasonable prices for natural rubber in a period when the Government of India followed a policy which banned the import of natural rubber in the country. The Government of India have changed their policy because the tyre manufacturers misled the Government that Indian natural rubber is of an inferior quality. The Government has commenced import of rubber from international market. This argument of the tyre industry and their lobbies is totally false. Our natural rubber is competent enough to be compared with any imported produce. It meets the quality benchmark. After the tyre lobby's pressure, the Government of India had decided to relax the Import Duty on natural rubber. After this decision, the demand for Indian natural rubber had fallen and gone downward spiral. Due to mounting losses and falling rates, the rubber farmers including small and marginal planters were compelled to stop cultivation. The rate of fertilizers is also high. The Rubber Board itself is under strain, as it could not meet with the challenges posed by the crisis.

It will be noted that the then Minister of Commerce and Industry, Shrimati Nirmala Sitharaman had held several meetings with all stakeholders including the representatives of rubber farmers and members of the industry to analyse this matter. Even then the tyre lobby had misled the Government during pre-budget deliberations about the sectoral demands and urged the Government for zero Import Duty on natural rubber.

HON. SPEAKER: Please speak in brief.

SHRI KODIKUNNIL SURESH: Yes, Sir, This demand is anti-farmer, anti-people, and disastrous for the domestic rubber production.

This move will adversely affect the welfare of 13.1 lakh growers who are mainly small growers, and 4.93 lakh workers dependent on the agro-based industry.

I would strongly urge upon the Government to take urgent steps to protect the domestic rubber productions and farmers by increasing the import duty of natural rubber so that domestic prices are protected and farmers get maximum price. Thank you, Sir.

[Translation]

HON. SPEAKER: Shri Anto Antony, Advocate Adoor Prakash, Shri Rajmohan Unnithan and kumari Ramya Haridas are permitted to associate with the subject raised by Shri Kodikunnil Suresh.

SHRI JANARDAN SINGH SIGRIWAL (MAHARAJGANJ): Speaker sir, I would like to bring to the notice of the Government through you an important gesture of ths students and parents of our region.

Sir, Kendriya Vidyalaya, Mashrak is established in Mashark of Saran district under my parliamentary constituency Maharajganjm Bihar. Presently this school is being run in a single shift. It should be noted that my parliamentary constituency is spread over two districts. Even in terms of population, my parliamentary constituency is quite large. Providing quality education to their children is a big challenge in front of parents of children in such a large population. More and more parents want their children to study in a good school. When parents search for a good school, then the name of Kendriya Vidyalaya Mashrak comes in front of them. Therefore, in our parliamentary constituency, Parents of thousands of thousands of children want to get their children enrolled in Kendriya Vidyalaya Mashrak. It is very important to start two shifts in Kendriya Vidyalaya, Mashrak.

Speaker Sir, I urge the Minister of Human Resource Development through you to complete the necessary action to run Kendriya Vidyalaya Mashrak in two

shifts, so that the children there could get good education with dignity. Thank you.

HON. SPEAKER: I would urge all hon. members to be brief to put their view in one minute and a half minute. The subject you have to say will be conveyed to the government through the House.

Kunwar Pushpendra Singh Chandel is granted permission to associate himself with the subject raised by Shri Janardan Singh Sigriwal.

SHRIMATI QUEEN OJHA (GAUHATI): Hon. Speaker, sir, I urge you to speak on a very important subject. Millions of people are rendered landless and homeless every year due to erosion by the Brahmaputra and other rivers. Areas along the banks of the Brahmaputra River in Assam are being affected by tremendous erosion. Due to the continuous erosion, about four thousand square kilometres of land has been eroded and more than 50 lakh people settled in about 2,500 villages have been directly and indirectly affected.

As per an estimate, the land erosion taking place in the state is growing at the rate of 80 sq km per year. In this case, the state water resources department has identified 25 sensitive and highly erodible sites. The department has estimated that the continued erosion on the Brahmaputra River from Assam, so far, about 7.4 per cent of the land has been damaged. The tea garden areas of Upper Assam and Dibrugarh district are badly affected. A considerable area of the Dibrusikhown National Park adjoining the river bank is also affected by it. Hence, you are requested to set up a working group to deal with this serious problem and after conducting a study, a directive should be issued to the concerned department to take concrete action as soon as possible so that this serious problem of the general public can be dealt with.

SHRI RAMESH BIDHURI (SOUTH DELHI): Hon. Speaker, sir, you gave me a chance to speak on a very sensitive subject, I will thank you for that.

Sir, there is a population of two crore in Delhi. There are 20 lakh people who are residing in unauthorized colonies here. These colonies have not been regularized

for the last 25 years. In these colonies, the government does not provide any basic amenities. It is a subject of state government. Once such a gimmick happened in the year 2008, Hon. Sonia ji is sitting. She once distributed the provisional certificates in Ramlila Maidan to those colonies that promising that her government will regularized these colonies. They won the 2008 election by making false promises. The present Chief Minister also made the same gimmick by saying that he will pass those colonies... (Interruptions) There are 1639 colonies in which 20 lakh people reside....(Interruptions)

HON. SPEAKER: Hon. Members.

…*(Interruptions)*

HON. SPEAKER: If there is such a thing, please let me know.

…*(Interruptions)*

SHRI RAMESH BIDHURI: Certificates have been distributed ...*(Interruptions)* Certificates have been distributed ...*(Interruptions)* Refuse it. ...*(Interruptions)*

HON. SPEAKER: Hon. Member, I have given the ruling.

SHRI RAMESH BIDHURI: ....(*Interruptions***)** that we will pass your colony... *(Interruptions)* There are twenty lakh people living there. This is the issue which pertains to the state government ...*(Interruptions)* Sir, people expect from us the same as people say that since SHO is not doing business, so one should approach the ACP, ...*(Interruptions)*

HON. SPEAKER: I have given the ruling.

...*(Interruptions)*

SHRI RAMESH BIDHURI: People say that he is a MLA, you are a Member of Parliament, you are senior to him. ...*(Interruptions)* carry out the development work here ...*(Interruptions)* There is no money from the Central Government there ...*(Interruptions)* Sir, in those colonies, people have come to the capital of the country for livelihood. ...*(Interruptions)* Sir, it is a very sensitive subject. Please give some time ...*(Interruptions)* Sir, this is a question of the lives of two million people ...*(Interruptions)* The Hon. Minister of the Central Government

Shri Hardeep Puri had called the Chief Secretary, Minister and 4 years earlier said that a lay out plan should be prepared... *(Interruptions)* Sir, I am concluding with in 30 seconds ...*(Interruptions)* Its layout plan should be made. ...*(Interruptions)* This government, ..* did not make a layout plan for two years. ...*(Interruptions)* After two years, again said to make a layout plan for this...*(Interruptions)* Development is to be done in these colonies. *(Interruptions)* Two years later, he said that give us two more years ...*(Interruptions)* Sir, people understand that this matter is with the Central Government. ...*(Interruptions)* My request is that the Central Government should call the Chief Secretary ...*(Interruptions)* Central Government should call the Chief Secretary, Delhi NCT, It is the National capital, so after interfering...*(Interruptions)* Hon. Lieutenant Governor should directly see and get the action taken to get these colonies passed.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel, Smt Meenakshi Lekhi and Shri Naranbhai Kachhadia are allowed to be associated with the subject raised by Shri Ramesh Bidhuri.

... (Interruptions)

HON. SPEAKER: Hon. Member, please do not stand again and again. Hon. Member, I am telling you again.

... (Interruptions)

HON. SPEAKER: Hon. Member, please, I am telling you for the second time in the House. Sit down.

... (Interruptions)

HON. SPEAKER: Hon. Member, sit down. Please sit down.

.... (Interruptions)

HON. SPEAKER: Please, you also sit down.

... (Interruptions)

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* Not recorded

04.07.2019

HON. SPEAKER: Dr. A. Chellakumar. Nothing else except his speech will go on record.

... (Interruptions)

HON. SPEAKER: One Minute, no Hon. Member should debate among themselves. Hon. Members, please sit down.

.... (Interruptions)

[English]

DR. A. CHELLAKUMAR (KRISHNAGIRI): Sir, I would like to draw the attention of the hon. Minister for the proposed project from Tindivanam to Krishnagiri via Thiruvannamalai, Tamil Nadu. This project was sanctioned by the Congress led UPA Government and the work was also initiated. But this work has been stalled for unknown reasons. It has put people into hardships.

The proposed National Highway connects the western part of Tamil Nadu to the eastern part facilitating quick travel and comfortable journey. It also connects the world-famous temple city Thiruvannamalai visited by lakhs of people every month. I request the hon. Minister, through you, Sir, to re-initiate and speed up the project with an utmost public priority.

SHRI T. N. PRATHAPAN (THRISSUR): Sir, majority of our population is young in our country. Unfortunately, most of our youth in the country are becoming spiritually inactive, physically unfit and increasingly overweight. In the long run, this physical inactivity will affect India badly. It will spoil our decade's long progress that we have achieved in life expectancy. It will also affect our health care budget.

So, promoting participation of youth in physical activity and sports is very important. This will shape our life style. This will contribute wellness to our entire socio-cultural aspects. But, at present, there is no importance given to

sports and physical education in our schools and colleges. The syllabus of our schools is focused primarily on making students as doctors, engineers, lawyers, IT professionals only. I do not generalise this. Still, it is a wide reality. There is no emphasis for minimum physical activity in our schools.

Hence, it is high time that we should make physical education as mandatory in all classes at school level. We should take concern for physical literacy in our people. There should be separate compulsory sports curriculum in our schools with a minimum of three periods per week for all classes from 1st to 12th standard.

The minimum qualifying marks should be prescribed for physical education. It should be considered as a mandatory qualification for promoting to higher classes. It should be both practical and theoretical.

[Translation]

HON. SPEAKER: It is not 377, it is Zero Hour.

[English]

SHRI T. N. PRATHAPAN: My last point is that if we make it seriously, the physical health along with mental wellness of our population will be at the best. In another way, it will give a good healthy workforce, job opportunities and great name in the world sports map.

I request the Central Government to direct all the State Governments, national education boards and other educational agencies to make physical education mandatory in the curriculum.

[Translation]

SHRI MUKESH RAJPUT (FARRUKHABAD): Speaker sir, a world famous Neem Karori Dham is located in my Parliamentary constituency, Farrukhabad. The birthplace of Baba Laxman Das who is known all over the world in the name of Baba Neem Karori is in Farrukhabad and is a Taposthali also. Every year, lakh of tourists from India and abroad visit the place. There is Baba Laxmandas Puri

Halt railway station at Neem Karori Dham station and near the temple, there is no place for tourists to stay, its condition is very bad. Millions of pilgrims visit the temple and there is no place for them to stay.

I request the Hon. Minister of Railway and Minister of Tourism to renovate the station and make a guest house for tourists there. This will give a boost to the tourist site and also provide employment to the local people. Thank you.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel is allowed to associate with the subject raised by Shri Mukesh Rajput.

[English]

SHRI V.K. SREEKANDAN (PALAKKAD): Respected Speaker Sir, I wish to raise an important issue of inter-State rail connectivity. The gauge conversion of Palakkad and Pollachi railway route was completed in 2016, involving a sum of Rs.450 crore. Prior to broad-gauge conversion, there were six pairs of trains running between Palakkad and Pollachi. Now, only one passenger train and two express trains are running on this route. It was assured that all the trains, which were running earlier, would be restored after the broad-gauge conversion. But nothing has happened so far. It was also assured that new train would be introduced between north Kerala and Konkan areas. This section is very important as it connects many pilgrim places such as Rameswaram, Madurai, Palani, etc.

Therefore, I urge upon the hon. Minister to restore all the trains which were running between Palakkad and Pollachi prior to gauge conversion, and also introduce new trains passing through this route at the earliest. Thank you.

[Translation]

HON. SPEAKER: You are a senior Member.Do you want to say something ?

04.07.2019
12.32 hrs

SUBMISSION BY MEMBERS

Re: Alleged derogatory remarks made against Tamils

[English]

SHRI T. R. BAALU (SRIPERUMBUDUR): First of all, I have to thank the Deputy Leader of the House for having agreed to allow me to speak in this House, through you, Sir.

On the other day, my leader Dr. M.K. Stalin, with great anguish, had expressed his condemnation on the remarks made by the Lieutenant Governor of Puducherry. You advised me not to take the name. What was the provocation for the Lieutenant Governor? There was no provocation. Without any provocation, she has tweeted on 30.6.2019. In her Twitter, she has expressed, 'poor governance, corrupt politician— 'politician' means, including the Members of Parliament—indifferent bureaucrats, selfish and coward people of Tamil Nadu.' This amounts that she has ridiculed the entire Tamil society. She has ridiculed the society; she has ridiculed the Government; she has ridiculed the Members of Parliament, politicians and so on. What else is this? We have been elected by those people only.

Here, the custodian of the Members of the Parliament is you, and not anybody else. The Deputy Leader of the House is very much here. He is the most responsible Minister. I know I was his colleague many times.

[Translation]

HON. SPEAKER: He is also generous.

[English]

SHRI T. R. BAALU: I request the hon. Deputy-Leader of the House to respond to this. Suppose, the Government endorses her views, then it means that the Government is also supporting her remarks. That is all I want to say. I would also say it to you if you do not protect me.

04.07.2019

THE MINISTER OF DEFENCE (SHRI RAJNATH SINGH): Speaker, Sir, when the matter was raised in Parliament by my dear friend and the hon. Member of Parliament, Shri T.R. Baalu with regard to a tweet made by the Lieutenant-Governor of Puducherry, Smt. Kiran Bedi, the MHA took its notice immediately. Thereafter, Mrs. Kiran Bedi had expressed deep regret in the following words:

> "What was written was a people's perspective, shared in my personal capacity, as it came, at a time, when people were hugely suffering for want of water in Chennai." …(*Interruptions*)

SHRI ASADUDDIN OWAISI (HYDERABAD): A Lieutenant-Governor cannot express a personal opinion. …(*Interruptions*) Lieutenant-Governor is a Constitutional Head. …(*Interruptions*)

SHRI RAJNATH SINGH: Please listen to me. …(*Interruptions*)

> "...However, I admit that it was avoidable and I should not have shared it in public in this manner."

She has accepted it. She further mentioned:

> "I too realize it. I have therefore deleted my sharing. I have the highest regard and warmth for the people of Tamil Nadu like I have for the people of Puducherry, the Union Territory, whom I have been serving with utmost devotion over last three years and they too have given me maximum support and trust. I have never wished to hurt anyone's feelings. I deeply regret, if any hurt caused."

Mr. Speaker, Sir, in the light of the words expressed by the Lieutenant-Governor, Puducherry, I would like to request the Members of this House to put this issue at rest. …(*Interruptions*)

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SHRI ADHIR RANJAN CHOWDHURY (BAHARAMPUR): Lieutenant-Governor of Puducherry, a representative of the people has humiliated the people of Tamil Nadu and the people of Puducherry in such an outrageous manner that the House should adopt a resolution to remove her from the post that she is now holding. …(*Interruptions*) Sir, this is our demand. The House should adopt a resolution. …(*Interruptions*)

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[Translation]

HON. SPEAKER: Shri Hanuman Beniwal ji, Please Speak.

…*(Interruptions)*

HON. SPEAKER: Nothing will go on record except the Speech of Hanuman Beniwalji.

…*(Interruptions)* *

HON. SPEAKER: Your leader has spoken.

…*(Interruptions)*

HON. SPEAKER: Hon. Members, do not talk with each other.

…*(Interruptions)*

HON. SPEAKER: Beniwal ji, you raise your point.

…*(Interruptions)*

SHRI HANUMAN BENIWAL (NAGAUR): Hon. Speaker, first of all. I would like to thank you. You allowed me to speak on an important topic in the Zero Hour. …*(Interruptions)*

I would like to thank the Hon. Prime Minister for increasing the MSP of 14 crops in the Cabinet meeting yesterday. The people of Congress have only made tall promises in 50 years. I would like to express my thanks to you that under this Prime Minister Kisan Samman Nidhi Youjana Rs. 6000 / transferred to the accounts of farmers...*(Interruptions)*

HON. SPEAKER: Hon. Members, do not talk with each other.

...*(Interruptions)*

SHRI HANUMAN BENIWAL: I would also like to thank the Hon. Prime Minister that for the first time a very important scheme was formulated for the farmers who were agitating for debt waiver in the country.

The Prime Minister partially implemented the Swaminathan Commission Report. ....*(Interruptions)*

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* Not recorded.

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I would like to draw the attention of the Government towards the issue of farmers in Rajasthan. In the year 2018, all storage Rabi crop, gram and mustard were made available to NAFED. ...*(Interruptions)*

HON. SPEAKER: I am giving the ruling right now.

...*(Interruptions)*

HON. SPEAKER: You sit down, I am giving the ruling.

...*(Interruptions)*

SHRI HANUMAN BENIWAL: An amount of Rs. 4733.20 crore was released by NAFED against Rs. 54825.69 crores of rupees. An amount of Rs 92.94 crore is still outstanding, the Government of Delhi will send that money to the government of Rajasthan.

Similarly 3000.14 crores of rupees was released by NAFED against Rs. 3030.32 crores of rupees for kharif crops like Moong, Urad and Soyabean.

The same was 122.67 crores of ruppes is yet to be received from NAFED. I demand the Government of India to quickly release the said amount to RAJEFD, Rajasthan so that the produce sold by the farmers at the support price can be paid to them and the district co-operative institutions can also get the dues paid by them as the purchase agency paid at the support price. The financial position of the institutions who took responsibility of the procurement in the interest of farmers also deteriorated. Due to withholding of amount at the same time, I request that the government make a provision that the farmer would receive the money in his account within three days on the day the produces sold at the support price. ...*(Interruptions)* On 11th March 2019, the principal Co-operative Secretary of Rajasthan has also written a letter to MD, New Delhi, NAFED. ...*(Interruptions)*

HON. SPEAKER: Now the Orientation Programme is going on for the new hon. Members. You are a senior member.

....*(Interruptions)*

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SHRI HANUMAN BENIWAL: Hon. Speaker, sir, I demand from the Union Government that the NAFED should release the outstanding amount of the support price to the Government of Rajasthan and RAJFED so that the dues of the farmers can be paid....*(Interruptions*)

HON. SPEAKER: You are a senior Member. I would like to urge the new hon. Members not to communicate with each other and I would like to urge hon. Members not to make allegations in this House without facts and without proof.

...*(Interruptions)*

HON. SPEAKER: Kunwar Pushpendra Singh Chandel, Shri M. Devji Patel and Shri Uday Pratap Singh are allowed to associate with the subject raised by Shri Hanuman Beniwal.

SHRI ADHIR RANJAN CHOWDHURY (BAHARAMPUR): My submission is that the speech of hon. Member should be expunged as he said about congress government.

HON. SPEAKER: I have said that I have given the ruling in this regard.

...*(Interruptions)*

HON. SPEAKER: Please hon. Members.

...*(Interruptions)*

HON. SPEAKER: The Manner in which we enjoy dignity in this House, we should run the House with that dignity only and that's why we have introduced the orientation programme for the new hon. Members. You are all senior Members.

...*(Interruptions)*

HON. SPEAKER: Please hon. Members. Therefore, I would like to request hon. members again not to make allegations without facts, without proof in the House. Make your point, discuss your problems, discuss the needs of the people, but there is no need to accuse anyone.

....*(Interruptions)*

HON. SPEAKER: I will see. Hon. Members, I have given the order.

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....*(Interruptions)*

SHRI BHAGWANT MANN (SANGRUR): Thank you very much Hon. Speaker Sir... (*Interruptions)*

HON. SPEAKER: Hon. Members, do not speak while sitting.

...*(Interruptions)*

SHRI BHAGWANT MANN. I want to speak today on a very serious subject. Since millions of Indians are settled abroad, Embassies abroad have been established to help them and solve their problems in case they face any problem. ....*(Interruptions)*

HON. SPEAKER: Hon. Members, please sit down. If you have to change the subject that you have given in Zero Hour, then take permission from me. Your subject is regarding deduction in salary of teachers in Punjab. Hon. Members, I am an educated Speaker

...*(Interruptions)*

HON. SPEAKER: Any hon. member wants to change his subject within zero hour, then you take the permission, I will give you permission.

...*(Interruptions)*

SHRI BHAGWANT MANN: May I speak on this subject?

HON. SPEAKER: Yes, you are given permission.

SHRI BHAGWANT MANN: Lakhs of Indian including a large number of Punjabi people live in foreign countries. The embassies in those countries have been set up to facilitate Indians but the results show and many complaints are being received that they are creating problems for Indians. They are creating problems in making passports, while renewing their passports and in cases of political asylum. There is law of Shariyat in Saudi Arabia and the agents of Saudi

Arabia illegally help Indian people to go abroad to fulfil their dreams. But these Indian people get into problems there and they are made slave there. When they run away from there and reach Indian Embassy, the Embassy asks them to bring NOC from where they have come. How is it possible?

How is it possible that those who made them slave would give them NOC. I would like to say that similar complaints of making passports are also coming from Europe, America and Canada. This bribe giving should be stopped in making passports of their children for political asylum… *(Interruptions)*

SHRI SANTOKH SINGH CHAUDHARY (JALANDHAR): Thank you Hon. Speaker, I am going to speak on a very important subject. I would like to discuss the epidemic of substance abuse and drug abuse, which is spreading throughout the country.

Hon. Speaker, Sir, I come from such a state, we have fought against terrorism during proxy war against Pakistan in the decade of 1980. Our 35 thousand innocent people were killed in terrorism and now we are fighting with Narco- Terrorism since the last decade. I think this is a very serious matter. No doubt, the Chief Minister of our Government, Captain Amrinder Singh is very seriously finding solution of this problem and controlling this. We have arrested 33 thousand paddlers but this problem is not only related to Punjab. Today, we daily read in reports that recovery worth Rs. 2700 crore has been made.

[English]

There are reports with captions like "How drugs from Pakistan are ruining Jammu gennext? Is Bangalore emerging as India's drug capital?"…*(Interruptions)*

[Translation]

HON. SPEAKER: Hon. Member, your subject is serious.

Dr. S.T. Hasan.

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SHRI SANTOKH SINGH CHAUDHARY: Sir, I am concluding *[English]* There is one more report under the heading- " Is Shimla set to be the new drug capital of the country?" *[Translation]* I would like to say that this is a very serious problem. These States cannot tackle this problem individually, for this a very strong National Drugs Policy is needed. Through you, I would like to say that Hon. Defence Minister is present here. Our Chief Minister has also met the Hon. Home Minister and he has also requested this that if this epidemic is not stopped today then it will ruin the country. It will finish the next generation of the country.

HON. SPEAKER: Shri Mohammad Faizal P. P. and Shri Kuldeep Rai Sharma are permitted to associate themselves with the issue raised by Shri Santokh Singh Chaudhary.

DR. S.T. HASAN (MORADABAD): Hon. Speaker, Sir, I would like to draw your attention towards a very serious problem. Many slaughter houses of Uttar Pradesh and at many other places have been closed by the order of the High Court and the Supreme Court through N.G.T. and no alternative arrangement has been made till now. Thousands of persons have been rendered unemployed. The slaughterhouse of Moradabad was closed in 31st December 2013. Five and a half years have passed but no arrangement has been made till date, people have become unemployed. They are on the verge of starvation.

Hon. Speaker, Sir, if these people bring meat from somewhere and try to sell it then they have to face the torture of police. Through you, I would like to urge the Government that until model slaughter house is established there, alternative arrangement should be made for those people so that they can get employment and consumers can get their food.

DR. SHRIKANT EKNATH SHINDE (KALYAN): Hon. Speaker Sir, thank you. Today, I would like to draw the attention of this House towards a very serious problem of my Parliamentary Constituency. There are two rivers

Valdhuni and Ullas in my Parliamentary Constituency which quench the thirst of 50 lakh people but today Valdhuni River has become a drain and Ullas river has also become polluted. These rivers cross through five cities. The reason for pollution of these rivers is that untreated sewage water of these cities mixes into the water of these rivers. All the water sources of this area have also been polluted and this has created a very serious problem of water here. The Supreme Court has also ordered the States and the Municipalities to control this pollution at the earliest but due to shortage of funds the Municipalities there are not able to solve this problem of river pollution.

Sir, through you, I would like to urge the Ministry of Jal Shakti that as Namami Gange was set up and provision of rupees 20 thousand crore has been made in the Budget to clean river Ganga, similarly, the Ministry of Jal Shakti should make provision for these two rivers.

I would also like to urge that to check this river pollution, the work of third party monitoring should be given to the institution like NIRI and the institutions like MIDC, Municipalities etc should report NIRI and make these rivers pollution free at the earliest.

SHRI SUKHBIR SINGH JAUNAPURIA (TONK- SWAIMADHOPUR): Hon. Speaker, Sir, I would like to thank you for giving me an opportunity to speak in Zero Hour.

Sir, Banas river which is originally a rainy river is flowing through the oldest Aravali Mountain range, on which Beesalpur dam has been constructed in the downstream ahead of Triveni Sangam of Khari, Daee and Banas rivers. Its construction was started in the year 1986-87 and it was completed in the year 1999. The total water catchment area of the river is 48018 sq. km and the total water catchment area up to Beesalpur dam level is 27726 Km. The river water level of the dam is 27.50 meter, its total storage capacity is 38.70 TMC. In case

of total storage, after the evaporation, the remaining useful capacity is 24.20 TMC, out of that 16.20 TMC is fixed for the arrangement of drinking water for Ajmer and Jaipur districts. Therefore, in regard to drinking water, the water available in this dam is fulfilling the need of lakhs of people. Due to scorching heat and lack of rainfall in Rajasthan, at present there is draught like situation there. In Tonk district of my Parliamentary Constituency, water is supplied to various districts like Ajmer, Jaipur, Tonk, Vyawar and Dausa etc from Beesalpur Dam, that is also on the verge of drying and drinking water is being provided at the gap of 48 hours to most of the districts, due to which a very serious problem of drinking water has been created. As cleaning of dam has not been done since its construction, silt has been deposited there…*(Interruptions)*

HON. SPEAKER: Hon. Member, you are a senior Member. You should not read out.

SHRI SUKHBIR SIGH JAUNAPURIA: It is necessary to clean the silt at the earliest. As per the information, a survey has been conducted in regard to total silt. Local Rajasthan Government would do it by Drazing Corporation of India, Vishakhapatnam and later on the desilting work is proposed to be done by Rajasthan State Mines and Minerals Corporation. This work is very necessary to be done on war footing. Therefore, through you, I urge that the Minister of Jal Shakti should get it cleaned very soon, so that drinking water can be supplied to all.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel and Shri Ram Charan Bohara are allowed to associate themselves with the issue raised by Shri Sukhbir Singh Jaunapuria.

Hon. Members, I am once again urging you that it is provided under Rule 377 that you can read the matter. If you want to speak in Zero Hour then come

with writing in brief. I once again urge you, so that maximum Hon. Members can get an opportunity to speak.

DR. RAM SHANKAR KATHERIA (ETAWAH): Hon. Speaker, Sir, thank you. 25 to 30 per cent of my Parliamentary Constituency area Etawah is forest area, which is known as Parpatti which includes many districts Itawa, Bhind, Jalaun, Kanpur, Auraia etc. At the center of these districts, there is a place called Pachnad where five rivers meet together. Chambal, Yamuna, Sindh, Pahuj and Kwari, these five rivers together make Pachnad. Pachnad is a place where water collects in a large amount. It has been a long pending demand of that area that a barrage should be made there. The Government of Uttar Pradesh has formulated a scheme to stop and collect water there and make such arrangement of making a barrage there and to construct six small canals from there so that the farmers of that barren area can do cultivation and the problem of drinking water can be solved in the entire barren area. The Government of Uttar Pradesh has provided a budget of about 2600 crore rupees in this regard and this matter is under process. I would like to demand from the Union Government that it should be sanctioned at the earliest and this Pachnad project should be completed.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel and Shri Pravesh Sahib Singh Verma are allowed to associate themselves with the issue raised by Dr. Ram Shankar Katheria.

SHRI NABA KUMAR SARANIA (KOKRAJHAR): Sir, I would like to speak on a serious and important issue, De-voter of Kokrajhar, Assam. Everyone is aware here that Assam has only one issue i.e. De- voter issue. Many voters have been made de-voter there. There are many persons in my Constituency also who are having all the documents of citizenship but they have been made de-voters and now when they go to tribunal, they do not get proper justice. Through you, I would like to present some such examples before the House. The first case is related to Vishnupur of MLA Constituency Bijani.

There was a girl named Madhubala Mandal, she was having a daughter who was dumb. She has spent three years in detention camp. She is very poor and has nothing of her own. It was a case of mistaken identity. She was Madhubala Mandal but there was a case in the name of Madhubala Das. About four months ago, in a village adjoining my village, Dimlapar, a person called Binay Chand and his brother got justice but their mother became de-voter. That case reached Tribunal there. They lost all of their property and he committed suicide.

Third case is related to Kala Bhanga Barpetta road. Amrit Das died in detention camp after three years. I visited his house. He had got all the documents. All are aware about Sanaullah. Through you, I would demand from the Government that the Central Government or the State Government should once again carry out re-verification of all the de-voters who have original documents and should be released from detention camps. …*(Interruptions)*

Second point is that the Government should give 50 lakh rupees as compensation to those persons who have spent three years in detention camps and beaten unnecessarily.

SHRI PRABHUBHAI NAGARBHAI VASAVA (BARDOLI): Hon. Speaker, Sir, I represent Bardoli in Gujarat, the workplace of Sardar Patel Saheb. 182 meter highest statue in the world of the creator of undivided India, Sardar Balabh bhai Patel, which represents the top most personality of Sardar Sahab has been enacted in Narmada District of Gujarat with the vision of Hon. Prime Minister, Shri Narendra Bhai Modiji, more and more tourists from India and abroad are visiting here every day. It is the responsibility of all of us to provide transportation facility in view of increasing number of tourists. Facility should also be provided to Gujarat, Maharashtra, Rajasthan and Madhya Pradesh including other States.

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Hon. Speaker Sir, through you, I would like to demand to lay a new railway line connecting rural areas, from the first Railway university, Barodara to Statue of Unity connecting Sardar Sarowar via Mandavi, tourist place Satpura and place of Kumbha Mela, upto holy place Godawari, from Nasik to Sabka Malik Ek Sai Baba, Shirdi so that it will help in more development in tribal dominated areas.

HON. SPEAKER: Shri Udai Pratap Singh, Dr. Kirit P. Solanki, and Shri Devji M. Patel are allowed to associate themselves with the issue raised by Shri Prabhubhai Nagarbhai Vasawa.

SHRI KRIPANATH MALLAH (KARIMGANJ): Hon. Speaker, Sir, I am elected from Assam and Karimganj is my Parliamentary Constituency. My issue is related to National Highway. Sir, in my Parliamentary Constituency there is a National Highway NH-44, now its new name is NH-8. That road goes from Guwahati to Tripura through Karimganj and the section of Karimganj is very bad. Two years ago, work in this regard was allotted to a company but there has not been any progress in the work due to which that was cancelled and it has not been allotted to any other company till date. The condition of that road is very bad. Tripura is connected to that road only. That is the only road, which connects Tripura. All goods and vehicles of Tripura crosses from that road only. The road blocks for three-four days when there is rain.

Sir, through you, I would like to urge the Hon. Minister that the work of this road should be completed at the earliest, otherwise there would be problem for both Tripura and my Parliamentary Constituency Karimganj.

I would like to thank our Hon. Minister that he visited Guwahati on 29th January, 2017. A bridge was inaugurated there and proposals for declaring some new NH were received from the Government of Assam then declaration of five-six roads (routes) was made there. Out of them, two roads are for our Parliamentary Constituency.

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One road goes to Badarpur Ghat to Engatta, Dullabh Chera, Mamit Bazar via Mizoram and another NH-44 from Silcher Helakanti to Konai Bazar via Ram Krishan Nagar. Two and a half years time has been passed but DPR has not been done till date. I would like to urge the Hon. Minister to start this work by expediting the work of DPR. These two roads are very important roads. One road connects Mizoram and the other road connects Silcher to NH-44.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel is allowed to associate himself with the issue raised by Shri Kripanath Mallah.

Hon. Members, I would like to request the junior most elected, Hon. Member of this House to speak in Zero Hour. I have personally requested her to speak and put her point during Zero Hour.

Kumari Chandrani Murmu

KUMARI CHANDRANI MURMU (KEONJHAR): Hon. Speaker, Sir, first of all, I would like to thank you for giving me an opportunity to speak in Zero Hour. I have been elected as a Member of Parliament for the first time. I would also like to congratulate all the Members of Parliament present in the Parliament House and the people all over the world on the auspicious occasion of holy 'Rath Yatra'

Sir, through you, I would like to tell all the MPs present in the House, the Ministry of Steel and the Government that my Parliamentary Constituency is Keonjhar, Orissa, this district is rich in natural resources. Iron ore is supplied to various parts of the country and abroad from here, thereby the Government has been getting the financial benefit. Mostly tribal's are living in my constituency who sell woods and other materials of forest for livelihood, but they have to go to other districts or States in search of jobs due to mining. If a steel plant is set up in my constituency, then many job opportunities can be created there. With

this, all the people of educated, uneducated and semi-educated categories of other districts or States along with this district will get employment.

Hon. Speaker, Sir, through you, I would like to urge the Hon. Minister and the Government that as the Union Government has established a Steel plant in Rourkela in Orissa, similarly, the Union Government should also establish a mega steel plant in Keonjhar and dispense the people of the districts their rights.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel is allowed to associate himself with the issue raised by Kumari Chandrani Murmu.

Shrimati Pramila Bisoyi,

Hon. Members, Smt. Pramila Bisoyi is a member who trains all the Members of 70 thousand Self Help Groups in a single village.

[English]

***SHRIMATI PRAMILA BISOYI (ASKA):** Hon. Speaker Sir, thank you for giving me this opportunity to speak in this august House for the first time. Today I want to raise a very important issue regarding women empowerment. In September 2018, the central government increased the honorarium of Asha Karmis and Anganwadi workers to Rs.4500/- .Sir, through you I want to emphasize here that this hike is very insufficient. Women who work at the grassroots level deserve respect and a decent remuneration. Hence, through you I place my demand that the honorarium of Asha Karmis & Angawadi workers be raised to Rs.15000/- and that of the Sahayak's (Assistants) should be increased to Rs.12000/- Lastly I wish to extend my heartiest greetings to all the Hon. Members on the auspicious occasion of Rathyatra. Jai Jagannatha, Jai Odisha.

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* English translation of the speech originally delivered in Odia.

SHRIMATI SARMISTHA SETHI (JAJPUR): Sir, first of all, I would like to wish a happy 'Rath Yatra' to all the hon. Members present here.

Sir, I would like to raise an important issue of my constituency of Jajpur, Odisha. There is a long pending demand for construction of a railway line from Jajpur-Keonjhar Road to Dhamra Port via Jajpur and Aradi with a total distance of 95 km.

It is worthwhile to mention here that Biraja Kshetra in Jajpur District is one of the most important Shakti Kshetras and pilgrimages in India like Dwarka and Kashi in Varanasi. Sir, a large number of pilgrims visit this area throughout the year. The construction of a railway line will help in developing religious ecotourism projects also. Further, it will help create a financial source to the people in Jajpur through linking of Kalinganagar with Dhamra Port as a part of fourth generation of industrialisation. Though a demand has been made by the State Government, including several memorandums and railway budget proposals made by the hon. Chief Minister emphasizing the importance of this railway line project, no progress has been made so far.

Through you, Sir, I request the Minister of Railways for commencement and completion of the proposed extension of railway line from Jajpur-Keonjhar Road Station to Dhamra Port Station.

[Translation]

SHRIMATI VEENA DEVI (VAISHALI): Hon. Speaker, Sir, I would like to thank you that you have given me an opportunity to speak on an important subject.

I would like to draw the attention of the Government towards closed Motipur and Goraul sugar mills in my Parliamentary Constituency, Vaishali.

Both the said sugar mills are closed for the last 15-16 years. Due to this, farmers of this area are suffering heavy loss. At the same time, the people of my Parliamentary Constituency are facing the problem of unemployment. Through you, I would like to draw the attention of the Hon. Agriculture Minister towards this problem and demand to restart both the sugar mills at the earliest.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel is allowed to associate himself with the issue raised by Shrimati Veena Devi.

SHRIMATI KAVITHA MALOTHU (MAHABUBABAD): Hon. Speaker, Sir, I would like to thank you very much for giving me an opportunity to speak in this Parliament of the biggest Republic of the world.

I am a Member of Parliament from Mahbubabad Parliamentary Constituency of the State of Telangana. About 60 per cent population of this area belongs to the Scheduled Tribes category. Today, I very proudly say that I am the first woman Member of Parliament of that area who belongs to the Scheduled Tribe. I would like to give all its credit to our Hon. Chief Minister Shri K. Chandrashekhar Rao and express my gratitude towards him. The people of this area have voted me with full majority and elected me as a Member of Parliament. Now, it is my duty that, I should focus on the development of Mahbubabad Parliamentary Constituency and especially on the development of the Scheduled Tribes.

In this regard, I would like to remind you one thing. During the division of Andhra Pradesh and Telangana, the Union Government had made many promises in favour of the State of Telangana, in which one promise was to set up a steel plant in Bayaram in my Parliamentary Constituency, which has not been fulfilled even six years after the division. If Bayaram steel plant is setup then at least 20 thousand people can get employment, which will help mostly the youths belonging to the Scheduled Tribes category.

However, I am sorry to say that the Union Government has not formulated any scheme for the development of the Scheduled Castes till date. The Government should seriously consider about the inclusive development of the Scheduled Castes.

Through you, I would like to urge the Government to start the Steel Plant at Bayaram as well as establish medium and small industries there to solve the problem of unemployment and for the development of the youths.

Sir, today I would like to tell you one more thing. Our Hon. Chief Minister, Shri K. Chandrashekhar Rao ji is working a lot to solve the problems of tribal and nomadic people. Yesterday, one M.P. was telling me, whatever work is there, that should be done by our Hon. Chief Minister.

HON. SPEAKER: Kunwar Pushpendra Singh Chandel is allowed to associate himself with the issue raised by Smt. Kavita Malothu.

DR. VENKATESH NETHA BORLAKUNTA (PEDDAPALLE): Hon. Speaker, Sir, I would like to thank you for giving an opportunity to young and newly elected M.Ps like me to speak with the senior leaders.

[English]

Under the leadership of hon. Chief Minister of Telangana Chandrasekhara Rao Ji, I rise to state that the issue of Adivasis is a burning issue in the State of Telangana. However, our hon. Chief Minister has been doing a remarkable work to sort out the issue. It comes under LTR 1/70, Sir. In this context, I would request the authorities concerned in the Government to give necessary records, necessary demarcation methods, and necessary mechanism to sort out the issue in the State of Telangana.

DR. RAJASHREE MALLICK (JAGATSINGHPUR): Hon. Speaker, Sir, I am very much grateful to you as I have been allowed to speak a few words during

the 'Zero Hour'. I have been elected as an MP from Jagatsinghpur District for the first time.

Sir, there is a need to start work on National Highway 55 from Cuttack to Naugaon. Our hon. Chief Minister Shri Naveen Patnaik Ji is very keen on working for the development of Odisha. That is why he has proposed for the upgradation of this road and has given a proposal to the Central Government for providing necessary facilities on National Highway 55 from Cuttack to Naugaon. Earlier it was a State Highway with single road with a level crossing on it. Subsequently it was converted into National Highway 55. Due to heavy traffic, frequent accidents take place on this road. Also, owing to traffic congestion, ambulances do not have a free passage on it. An over bridge is also required to be constructed at the level crossing to minimize the mishaps. So, I would urge upon the Government to initiate work for providing necessary facilities on this road to make it a modern National Highway. Thank you, Sir.

[Translation]

Sir, today is the auspicious occasion of Rath Yatra. I would like to congratulate you all on this holy festival. I would like to thank you very much for giving me an opportunity to speak.

HON. SPEAKER: These all are those hon. Members, who are speaking for the first time in the Parliament.

…(Interruptions)

[English]

SHRI BHARTRUHARI MAHTAB (CUTTACK): I thank you Sir, for allowing them to break the ice.

[Translation]

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SHRI MITESH (ANAND) PATEL (BAKABHAI): Hon. Speaker, Sir thank you for giving me time to speak in Zero Hour.

I am grateful to the Hon. Prime Minister Shri Narendrabhai Modiji, the Hon. Speaker and the Hon. Minister of Home Affairs Shri Amitbhai Shah ji and the whole cabinet. I belong to Anand Parliamentary Constituency of Gujarat, which is the birth place of Sardar Ballabhai Patel. Amul Dairy is also there. Our Government has already taken a decision to double the income of farmers. Some days ago, the Government had declared to give 6 thousand rupees per year to farmers and immediately 4 thousand rupees were transferred in the accounts of the farmers. The farmers became very happy. They also believed that the Government is considering to work in their favour.

Here, I would also like to mention here that the Government is helping them in the form of subsidy for purchasing food, seeds, agricultural equipments and fertilizers etc, but as it is given indirectly so it is not felt that the Government is helping them. Farmers are not getting their subsidies immediately because there are many middlemen also. I demand that the Government should directly transfer money in their accounts instead of giving them the said subsidy. The farmers will be happy if the amount of 6 thousand rupees is directly transferred in their accounts.

I, therefore, demand from the Minister of Agriculture and Farmers Welfare to stop all the subsidies and directly deposit this amount in the accounts of the farmers so that they can spend this money as per their needs.

HON. SPEAKER: Kunwar Pushpendra Singh Patel is allowed to associate himself with the issue raised by Shri Mitesh Patel.

[English]

04.07.2019

***SHRI KHALILUR RAHAMAN (JANGIPUR):** Hon. Speaker Sir, I convey my gratitude to you and all other respected members on behalf of my state. I thank Hon. Speaker as you have given me the opportunity to speak as I am a new member. The lives of people are at the brink of collapse because of the Ganga Bhagirathi erosion in many areas of Murshidabad, Malda and Nadia. Their existence is at stake. The erosion of river has devastating effect on the houses, agricultural tracts, educational institutions, livelihoods of thousands of people. People have lost everything today. The previous government had allocated some funds together with the state government, to control the menace of erosion. As a result, the work of 40 km above and 80 km below the Farakka barrage was to be completed. But unfortunately, though the work was entrusted with the Farakka Barrage Authority, it did little work and then stopped it. Thus, Ganga erosion is still going on. Compensation is generally paid for natural disasters like flood, drought, cyclone etc. But the people affected by Ganga erosion are never compensated or rehabilitated Sir, through you I urge upon the concerned minister to pay compensation to and arrange for rehabilitation of the affected persons. Steps should also be taken immediately to arrest erosion. Sir, few days back, some people from Raghunathganj assembly constituency's Giriya area came to me and said that though a little work has been done there, but whenever there is flood, many school buildings and some villages are washed away. So steps must be taken to deal with this problem. Sir kindly look into the matter, Lakhs of people will be benefitted and they will praise you wholeheartedly.

Thank you.

SHRI A. K. P. CHINRAJ (NAMAKKAL): Hon. Speaker, Sir, Tamil Nadu Poultry Farmers Association is an apex body of poultry farmers from across

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* English translation of speech originally delivered in Bengali.

Tamil Nadu, especially, Namakkal, Erode, Palladam and Pollachi. This includes layer, broilers, and breeder farms.

Tamil Nadu layer poultry farms have close to 5-crore laying hens which produce 4-crore eggs every day and also has a broiler placement of 4.5 crore chicks every month which is 20 per cent and 15 per cent of India's market share respectively.

Poultry industry in Tamil Nadu employs directly and indirectly more than 20 lakh people in rural areas. At national level, poultry industry contributes close to Rs. 70,000 crore to the GNP of our country.

All over India, poultry farmers are facing a very critical situation currently due to shortage of basic raw material especially, maize. Drought and pest attack across India and also the failure of North-East monsoon and South-West monsoon led to non-availability of maize throughout the year. Since, maize is a major ingredient in poultry feed, poultry farmers are facing a huge financial loss due to unavailability of maize, which will lead to higher cost of egg production and unemployment in India.

We have earlier requested the former hon. Minister Shri Radha Mohan Singh for import of 10 lakh tonnes of maize with zero duty for poultry farmers. We have got approval from DGFT to import 1 lakh metric tonnes of maize with 15 per cent tax and the order was released on April 3, 2019, Order No. 02/2019. But, till date, the global tender was not released for bidding. …(*Interruptions*)

[Translation]

HON. SPEAKER: The Cabinet Minister and the Minister of State are sitting here.

[English]

SHRI A. K. P. CHINRAJ: We humbly request the hon. Commerce Minister to approve the import of 10 lakh tonnes of maize with zero duty for poultry farmers. …(*Interruptions*)

[Translation]

HON. SPEAKER: Hon. Members, please let newly elected Member speak.

[English]

PROF. SOUGATA RAY (DUM DUM): At least, two Cabinet Ministers must be present in the House. Otherwise, what is the point? …(*Interruptions*)

[Translation]

HON. SPEAKER: There is no such rule. I will tell you the name of the book, which contains rules. The zero Hour is running.

04.07.2019

[English]

***SHRI MOHAMMAD SADIQUE (FARIDKOT):** Sir, I thank you for giving me the opportunity to speak on this important subject. I have been elected as a Member of Parliament from Punjab for the first time. I thank our Hon. Chief Minister Captain Amarinder Singh Ji and our High Command Shri Rahul Gandhi ji and Madam Sonia Gandhi ji. I also pay my obeisance to the great land of Faridkot.

I have a question. The work on the road from Ludhiana to Talwandi started in 2011. It was to be completed by 2014. However, it could not completed. People were so fed up that they filed a case against the contractor. He promised that he will complete the road by 2017.

However, half the year of 2019 too is over, the road is yet to be completed. Sir, over 780 accidents have taken place on this stretch which is a matter of grief. Sir, people in Punjab believe in family planning. They have one child per family and when that child dies in a road accident, the entire family suffers and they are left with no future.

So, Sir, I urge upon the Hon. Surface Transport Minister to get completed this NH-95 road at the earliest. Sir, completion of this road is in the national interest as this road leads to Husainiwala and the army tracks and convoy pass through this stretch. Hence, this is a crucial road as far as our security is concerned. So, this road may kindly be completed at the earliest.

Jai Hind.

[Translation]

HON. SPEAKER: Hon. Member also sings Sufi Songs.

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* English translation of the speech originally delivered in Punjabi.

04.07.2019

[English]

SHRI KURUVA GORANTLA MADHAV (HINDUPUR): Hon. Speaker, Sir, I represent the Hindupur Parliamentary constituency in Andhra Pradesh. I would like to thank you, our hon. Chief Minister Shri Jagan Mohan Reddy for giving me an opportunity to contest the election and the people of my constituency for voting me to represent them in this august House.

Our constituency is subjected to agrarian crisis resulting in migration of farmers to faraway cities and sending the domesticated animals which are an integral part of our life and culture like oxen to *Kabelas*. There are two reasons for our agrarian crisis. One is the curse of the nature and the other is the indifferent attitude of the earlier Governments. I request the Government to include work in agricultural farms under NREGS which will serve the farmers and coolies. One is that the farmers will get Government-sponsored labour and the other is that employment would be created.

Another issue which needs the immediate attention of the Government is proper implementation of Right to Education in rural area. Agrarian crisis leads to migration resulting in school drop-outs. This is where the children are being turned into anti-social elements. Here it is relevant to recall a Telugu saying, "*Mokkai vanganidi manai vanguna*" which means, "Will he respect the elders of the day, if he is not doing it as a child?" Most of the anti-social elements are the school dropouts. Instead of spending crores of rupees on fighting terrorism and anti-social elements, it is better to implement free and compulsory education effectively in such a way that no child is left outside the school. I happen to see many school dropouts roaming the streets.

I speak with great urgency. My region has a very high incidence of poverty, malnutrition, poor health outcomes and high illiteracy. Being a semi-arid region,

the incomes from agriculture are very low and no work is currently available in the non-farm sector. This is pushing people towards desperation and with a heavy heart I say that women are being pushed into flesh trade as a result. Prostitution is happening even in places very close to New Delhi. …(*Interruptions*) Prostitution and women trafficking are the results of agrarian crisis. Though our constituency is the worst sufferer of these effects, we cannot rule them out in all the poverty-ridden regions across the country. It is an open secret that the women of India migrating to the Gulf are being subjected to sexual exploitation and harassment. Let me quote a poem written by Vemana, a medieval Telugu poet:

"*Medipandu chuda melimai yundunu*
potta vippi chuda purugulundu
piriki vani madini binka meelaaguraa
Viswadhaabhiraama, vinura Vema"

The equal English saying for this Telugu poem is, "All that glitters is not gold."

[Translation]

HON. SPEAKER: Please, read the last Para.

[English]

SHRI KURUVA GORANTLA MADHAV: To overcome this issue and to prove that women are considered to be the Goddesses of Bharathavani and to realise India is proudest saying: "*Yatra naryastu pujyante, ramante thatra Devata*," the Government needs to pay much more serious attention to the issue.

Thank you for giving me this opportunity.

04.07.2019

[Translation]

HON. SPEAKER: Hon. Member, Shri Horen Sing Bey himself used to work as labours in tea garden and today he is sitting here as an hon. member of Parliament

[English]

SHRI HOREN SING BEY (AUTONOMOUS DISTRICT): Thank you very much, hon. Speaker Sir, for giving me this opportunity to deliver my maiden speech.

I rise to bring to the notice of this august House the long-standing political issue of the constituency I represent. The No. 3 Autonomous District ST Parliamentary constituency is a fully scheduled area administered by two Autonomous Councils under the Sixth Schedule to the Constitution of India. They are the Karbi-Anglong Autonomous Council and the North Cachar Hills Autonomous Council. These Councils are not mere district Councils but function like mini States with wide ranging executive and legislative powers which normally the State Governments exercise. The Government of Assam has a minimal role as far as development matters in these areas are concerned but the Councils themselves do not enjoy the status and financial resources of a normal State. This means that the Councils have assumed the responsibilities of a State but agencies like the NITI Aayog and the Finance Commission have no mandate to make exclusive grants and allocations for these areas. As a result, these Councils are at present facing 70 per cent revenue deficit and at Rs. 3,900, Karbi-Anglong has the lowest per capita Plan investment in the entire North-East. This unique contradiction could not be resolved during the past forty years, causing unmitigated civil strife, conflicts, and violence. Subsequent peace accords like the Tripartite MoU in 1995 and the MoS in 2011 only devolved more executive and legislative powers from the State to the Councils without allowing commensurate revenue sources.

The solution is provided in the Constitution itself and it has been there since 1969 in the form of Article 244 (A) which provides for establishment of an Autonomous State comprising of the two hill areas within the State of Assam. This provision would not only devolve executive and legislative powers of the State to the Councils without disturbing the territorial integrity butt would also permit the Centre to apportion the resources of the State between the State and the Councils and also receive their entitlements from the Finance Commission. The BJP leaders have been consistently supporting the implementation of Article 244 (A) as evident from the fact that the former Deputy Prime Minister Shri L.K. Advani, while addressing the public at Kheroni Tinali in 2004, declared that if BJP came to power, they would consider implementation of the constitutional provision. In 2009, in the election campaign at Dokmoka, Shri Rajnath Singh, then Party President also announced that the BJP would earnestly consider the demand for the implementation of Article 244 (A).

[Translation]

HON. SPEAKER: Hon. Members, I request you again to express your view in short during the Zero Hour.

04.07.2019
13.24 hrs

NOMINATION TO PANEL OF CHAIRPERSONS

[Translation]

HON. SPEAKER: I have to inform the House that under Rule 9 of the Rules of procedure and conduct of business in Lok Sabha, I have nominated Dr. Kakoli Ghosh Dastidar as member of the Panel of Chairpersons.

04.07.2019

[English]

SHRIMATI HEMAMALINI (MATHURA): Thank you so much, Speaker, Sir.

My concern is about the recent vicious attacks on doctors, especially in the Government hospitals. This is happening all over the country. This is being inspired by the recent Kolkata incident, which took place on the 1st of June.

On 17th of June, around eight lakh doctors, from across the country, walked out on streets in support of the All India Strike. According to the Indian Medical Association, 40 per cent of medical practitioners go through this harassment. They suffer assault in their lifetime and 75 per cent doctors also face this kind of a physical abuse.

For saving the life of a patient, a doctor goes through very stressful conditions. They may have to go through even 48 hours of hardship. Truly, they are our super heroes as well as a national asset. So, this sort of incident should not take place.

13.31 hrs (Shri Rajendra Agrawal *in the Chair*)

[Translation]

In our country, we always believe in God and we equally have trust in doctors. *[English]* Doctors treat persons irrespective of their caste, creed, or religion. They do not see their financial or social status. Their only concern is to take out their patients from the misery that they are suffering.

Sarve Bhavantu Sukhinah Sarve Santu Niramayaah

Sarve Bhadrani Pashyantu Maa Kashchid Dukhbhagbhavet.

[English]

This is the way in which they work for the country men.

Doctor is a scarce resource in our country. In India there is one Government doctor for 10,189 people whereas, the World Health Organisation recommends one doctor for 1000 people. The country is facing a deficit of six lakh doctors. The Government should strictly regulate private hospitals and upgrade facilities in Government hospitals so as to check such attacks on doctors. We should have a strict law to protect the medical community. Indian lynch mobs have always enjoyed impunity. This is unjust, unfair, and inhuman.

The Government should make rules to blacklist those who assault doctors. They should be debarred from State subsidy and other facilities including hospitals, as in China. Apart from this, a Complaint Redressal Committee should be formed in every hospital, which needs to work on improving communication among doctors, hospitals, patients, and their families.

I really appreciate that the hon. Health Minister has already issued a guideline and an advisory to all the States so that the doctors get out of all these problems and get a normal and good atmosphere to work in the future.

[Translation]

HON. CHAIRPERSON: Shri B. Y. Raghavendra is allowed to associate himself with the subject raised by Shrimati Hemamalini.

04.07.2019
13.33 hrs

MATTERS UNDER RULE 377*

[Translation]

HON. CHAIRPERSON: Hon. Members, the matters under Rule 377 will be laid on the Table of the House. Members who are allowed to raise matters under Rule 377 today and those Members who are willing to lay their matters on the table of the House may personally send the text of the matter to the table of the House within 20 minutes. Only those matters, the text of which has been received on the Table of the House within the stipulated time will be considered as laid on the table. Remaining will be considered as lapsed.

* Treated as laid on the Table.

04.07.2019

(i) Regarding battle of Pathorighat in Assam

SHRI DILIP SAIKIA (MANGALDOI): This incident of 28 January 1894 in Dara district of Mangaldoi, my Parliamentary Constituency, is popularly known as 'Patharughatar' Ran (Battle of Pathraghat). In the Darang district, which is about 70 km from my Parliamentary Constituency, Mangaldoi, 140 unarmed farmers were killed by the British military police in a horrific massacre 118 years ago. Hundreds of peasants were shot at on the order of J R Berrington, the then acting commandant of the military police. Considering the cruel nature of the incident, this incident is known as the incident of Jallianwala Bagh in Assam. The massacre of Pathorighat is as important an event as the JallianwalaBagh massacre. In fact, after the Sepoy Mutiny of 1857, Pathorighat incident is considered to be the most significant incident in India's freedom struggle. But there is no mention of Pathorighat in the national history of the country.

Therefore, I request the Hon. Minister of Culture that on the lines of Jallianwala, Pathrighat should also be developed as a memorial at the national level and the family of the martyred farmers should be fully honoured at the national level.

(ii) Need to run Nauchandi Express, Sangam Express and shuttle trains running between Meerut and Delhi as per scheduled time - table

SHRI RAJENDRA AGARWAL (MEERUT): Nauchandi Express and Sangam Express trains which connect Prayagraj to Meerut via Lucknow and Kanpur respectively are important trains. These trains are used by the citizens of Meerut in large numbers to commute to and from Prayagraj, Kanpur and Lucknow.Delay in the time schedule of these trains has been continuously taking place for more than three years. Due to this, the reliability of these trains has been lost. Similarly, due to the continuous delay of the shuttle train running between Meerut and Delhi,

thousands of employees going to Delhi are not able to reach their offices on time. I have talked to the concerned authorities several times on this subject, but the above trains are continuously running on irregular timetable.

I would like to request the Government to, please take necessary action to ensure the timely operation of the above-mentioned trains.

(iii) Need to set up rural branches of nationalised banks in Sheohar Parliamentary Constituency, Bihar

SHRIMATI RAMA DEVI (SHEOHAR): I would like to draw the attention of the government towards extreme backwardness of my Parliamentary Constituency, Sheohar. It is to be noted that Sheohar district is a backward area from the economic, social and educational point of view, where people do not have adequate resources like banking facilities to help them start business and industry. Today, the benefits of most of the centrally sponsored schemes are being provided to the beneficiaries by the nationalised banks through direct benefit transfer, but in my Parliamentary Constituency, the rural branches of the public sector banks are not in sufficient numbers. Bank of Baroda in Sheohar district has been awarded with status of leading bank by the RBI due to which it also receives special facilities of lead bank available as per the criteria of the RBI. But I regret to inform that despite being the lead bank of the district, the post of lead bank manager has been vacant here for almost last one year, which is having an adverse effect on the implementation of the schemes of the government and many people are not getting the benefits of several welfare schemes of the government.

I would like to request the government to open rural branches of the public sector banks in proportion to the current requirement and to increase the number of branches of the gramin banks to remove the backwardness of my Parliamentary Constituency, Sheohar.

(iv) Need to set up a Mega Food Park in Bettiah in Paschim Champaran Parliamentary Constituency, Bihar

DR. SANJAY JAISWAL (PASCHIM CHAMPARAN): Construction of Mega Food Park in Bettiah under my parliamentary constituency will be a step in public interest. Along with the rich production of different types of fruits such as mango, litchi, guava, banana etc, all types of vegetables are produced. Local processing of agricultural products will create employment opportunities and at the same time, it will be helpful in Prime Minister's promise to double the income of farmers.

(v) Need to establish a Kendriya Vidyalaya in Barwadih in Latehar district of Jharkhand

SHRI SUNIL KUMAR SINGH (CHATRA): My Parliamentary Constituency, Chatra is a highly backward and left extremism affected area. In Latehar district, block Barwadih is highly naxal-affected area. This block is facing the problem of extreme lack of education. Economic backwardness, illiteracy, problem of naxalism are taking the area away from the development.

The proposal for opening of Kendriya Vidyalaya at block Barwadih in Latehar district has been sent by Divisional Manager of Railways, Dhanbad to the Kendriya Vidyalaya Sangathan. Ministry of Railways has also provided land for this purpose. Now the matter is under consideration with the Ministry of Human Resource Development. If Kendriya Vidyalaya is established in this block, the boys and girls of backward areas of Mahuadad, Gaaru, Bhandariya, Garhwa and Chipadohar etc. can get better education and get connected to the mainstream of the society.

Therefore, it is requested to the Minister of Human Resource Development that action should be taken in the direction of opening Kendriya Vidyalaya in Barwadih block of Latehar district.

(vi) Regarding implementation of Union Government's Development schemes by State Governments

SHRI GOPAL SHETTY (MUMBAI NORTH): The Indian Constitution is considered as the supreme law of the land. It is the duty of every person to follow the laws enacted in accordance with the Constitution. No government official or head of country or state can act against the Constitution. In the light of the Indian Constitution itself, the federal system has been adopted in our country. The federal form of our government is a modern discovery that came into existence through the emergence of the US Constitution.

There is no doubt that federalism preserves regional autonomy. Secondly, it also provides national unity. This system is more beneficial for small states because they are not able to protect themselves independently and make independent diplomatic relations with other states. Federal structure often gives one chance to small and weaker states. Small states cannot protect themselves independently. They can neither allocate the sufficient resources for development work nor make diplomatic relations with other states. The existence of small states among large and powerful states is unstable. Smaller states take advantage for solving its political, economic and military problems with the assumption of their identity. In a federal structure, people find the opportunities to coordinate local autonomy along with building a strong nation. A union government attains unity while preserving diversity. People get many opportunities to save their language, religion, and culture.

Even after having so much of a special feature of the federal government, it is deeply regrettable that some state governments do not comply with the development related public welfare schemes, suggestions and instructions of the federal government and cause non-cooperation and disruption.

Therefore, the government is requested to make such arrangements that all the state governments of the country follow the government's public welfare schemes, suggestions and instructions strictly and immediately.

(vii) Need to construct a bridge on Son River between Srinagar in Jharkhand and Paduka in Bihar

SHRI VISHNU DAYAL RAM (PALAMU): I want to draw the attention of the government towards the bridge under construction between Srinagar (Jharkhand) and Paduka (Bihar) on the Son River flowing between Jharkhand and Bihar.

It is worth noting that the process of bridge construction started last year. After the DPR was approved, soil testing was done and a work plan of Rs. 1900 crores was approved for the construction of the bridge and it was included in the list of upcoming projects of the Central Government and an amount of Rs. 500 crore was released in January 2019. However, suddenly the said amount, which was released for the construction of bridge between Paduka and Srinagar on the Son River, has been diverted for the bridge to be constructed at Vikramshila, Bhagalpur, Bihar.

Due to this, there has been widespread dissatisfaction among the people of Kandi block and Hariharpur block in my state. People in the panchayats falling under both blocks are holding meetings at different places and it is being said that if this amount is not provided for the construction of the said bridge, then they will intensify the movement.

In view of above, it is requested that the attention of the Minister of Road Transport and Highways should be drawn towards this so that the construction of that bridge should be started soon under interstate connectivity meant for the construction of the bridge.

It is noteworthy that due to construction of this bridge transportation will be easier among Jharkhand, Bihar and Uttar Pradesh. The travelling time can be also reduced. Business will increase and the long pending demand of the residents of that area will be met.

(viii) Regarding damage caused to crops by stray cattle In Rewa Parliamentary Constituency, Madhya Pradesh

SHRI JANARDAN MISHRA (REWA): In my entire parliamentary Constituency, Rewa (Madhya Pradesh), the crops of farmers are being immensley damaged by stray cattle. The Government of Madhya Pradesh has promised to open cowsheds, but no efforts have been made in this area yet.

I would like to request the Union Government to take concrete steps to solve this problem so that farmers can get rid of this problem.

(ix) Need to establish a training centre for Para Military Forces at Madhogarh in Jalaun Parliamentary Constituency, Uttar Pradesh

SHRI BHANU PRATAP SINGH VERMA (JALAUN): Many youth of my Parliamentary Constituency strive to join the army to serve the country. They are serving in different armed forces of the country through NDA and direct

recruitment. They are protecting the country and countrymen through paramilitary forces including Indo-Tibet - Border Police (ITBP), Border- Security - Force (BSF).

Many youths of Madhogarh tehsil in particular go to join the army. Currently, in some villages at least one member of each family in the whole village is in the army. Apart from this, a large area of government land is lying unutilised in Madhogarh. If a training centre of Paramilitary Force is opened in Madhogarh in my Parliamentary Constituency, then it will definitely inspire the youth to join the army of the country.

Therefore, I would like to demand from Union Government that a Paramilitary Force Training Centre should be opened under Madhogarh tehsil.

(x) Regarding wildfire In Uttarakhand

SHRI TIRATH SINGH RAWAT (GARHWAL):I would like to draw the attention of the Hon. Minister of Environment, Forest and Climate Change towards the subject related to the fire spread in the forests of Uttarakhand, where the fire has taken a ferocious form.

As the heat in the mountain increases, it leads forest fire from the mountain to the plains, causing huge damage to the forest wealth worth millions. In many places in Garhwal and Kumao, forest fire is reaching near the village, due to which the residents there are terrified. If we look at the statistics of the forest department, there have been 491 incidents of wildfires so far this season, in which 676.835 hectares of forest has been destroyed. In Garhwal region,149 fire incidents have occurred so far and 25 such incidents have happened in wildlife conservation area. At the same time, fire is spreading very rapidly in Kumaon region and 317 fire incidents have occurred there.

Due to fire, the entire atmosphere of the adjoining urban areas is full of smoke and the plantation done in hundreds of hectares has also been destroyed. Along with this, the crisis of fodder has also arisen before the villagers and wild animals and drinking water sources are facing heavy losses due to this.

I request to the Hon. Minister that in order to save the forests of Uttarakhand from the blazing fire by preparing a special action plan at the earliest. Also, I would like to suggest that in order to curb such incidents, ponds should be dug in large number in the forests for water harvesting and large fire extinguishing pipes and engines should be kept in the nearby forest outpost or village. Water from rain and natural water sources will get stored in ponds, which will be used to extinguish the fire in emergency.

(xi) Regarding illegal sand mining from Rivers in Aurangabad district of Bihar

SHRI SUSHIL KUMAR SINGH (AURANGABAD): Illegal sand mining through machine (Poclain) is taking place from the beds of Sone and Batane rivers of Aurangabad district and Morhar river in Gaya district of Bihar. in gross contravention of the ministry laws, Due to sand extraction, the soil is left in the beds of the rivers and due to depletion of moisture, the ground water level in the area has gone down considerably. As a result, the water of tube well and the well has dried up and the people of the area have to take out the tube well and make the boring again to extract water from the lower surface of the land. As a result, people have to suffer financial loss.

Illegal transportation, storage and extraction of sand is adversely affecting the environment and due to this situation, the number of patients in the area is increasing and the temperature is increasing. Recently, hundreds of people

died of heat stroke in my area. There is a severe lack of drinking water in the area. People are forced to bring water from a distance of 2-3 kilometers. This illegal extraction work is the result of collusion of contractors and concerned officials.

I request that a high-level investigation should be done in the above-mentioned case by the expert officials/ National Green Tribunal and strict action against the guilty persons should be ensured and illegal mining and storage should be banned to save environment and an additional central assistance amount should be allocated for plantation in the area.

(xii) Need to expedite Wardha - Nagpur broad gauge Metro Rail Project in Maharashtra

SHRI RAMDAS TADAS (WARDHA): Drawing the attention of Hon. Railway Minister, I would like to request that the broad gauge metro rail project has been proposed for the convenience of the people who commute from my Parliamentary Constituency, Wardha to Nagpur. Through this project, a new attempt is being made by government to run a broad gauge metro from Wardha to Nagpur on the main railway line by constructing new types of coaches. I welcome it. With the implementation of this project, the transportation between Nagpur and Wardha will increase and the passengers, students, farmers, and small businessmen who commute daily will be benefited.

Hon. Minister of Railways, I request that appropriate action should be taken by the Government to expedite Wardha-Nagpur Broad Gauge Metro Project.

04.07.2019

(xviii) Regarding fast depleting ground water resources in the country

DR. MANOJ RAJORIA (KARAULI - DHAULPUR): The ongoing climate change taking place across the country is reducing rainfall and causing negative changes in nature. Greenery and forests are rapidly disappearing throughout the country. Ground water is rapidly being exhausted due to waste of rainwater and, over-exploitation of ground water. Common people are facing a huge scarcity of drinking water in the country.

On June 27, 2019, a leading newspaper in the country had highlighted the most concerning aspects of the reports of "NITI Aayog" in its main page and warned all the policy makers and people of the country that by 2020, the ground water of 21 cities will be exhausted, due to which 10 crore people will be directly facing a serious crisis of life.

I thank the Prime Minister, Shri Narendra Modi for realizing its seriousness and created the "Ministry of Jal Shakti". I would like to urge that to resolve this problem, the Government of India should make a serious and concrete policy in collaboration with all the State Governments, and the common people should fulfil their responsibility and participation as a mass movement.

04.07.2019

(xiv) Regarding reported drug menace in Delhi

[English]

SHRI PARVESH SAHIB SINGH VERMA (WEST DELHI): Delhi is increasingly becoming a transit point for international drug peddlers and a base for drug market in India. A number of drug rackets have come to notice during raids in Delhi. Officials from Narcotic Department of Delhi Police have also reported that drugs like Ephedrine, Methaqualone (MANDRAX), Smack and Ganja have been most common among them and are very easily available. Considerable portion of drug trade is also carried out by foreign nationals. Police has reported that they smuggle drugs from foreign countries into India and have created a base in Delhi. Most of the addicts are found to be street children, people living in shelters and adolescents from the lower class. I seek immediate action from the Government on this sensitive issue before it starts plaguing the people of Delhi.

(xv)Need to revamp Sant Ravidas Van Vihar Park in Basti Parliamentary Constituency, Uttar Pradesh

[Translation]

SHRI HARISH DWIVEDI (BASTI): Sant Ravidas Van Vihar Park was established about 1 km away from the district headquarters of my Parliamentary Constituency, Basti (Uttar Pradesh)in the year 1988. Since the inception, this park has been a center of attraction for the people of the surrounding districts including Basti. In the past, it used to have attractive children's gardens, lakes, fountains, hammocks, boating etc. as well as home to various types of flora and being situated on the bank of the river Kuwano, it used to provide a clean and beautiful

environment to the people visiting there, but over the last few years, the park has been facing the crisis of survival. The entire park is in a dilapidated state.

Therefore, it is requested that in view of the importance of this park, necessary action should be taken to develop and modernize it and to restore it to its old form.

(xvi) Need to improve tourism infrastructure in Thiruvanathapuram

[English]

DR. SHASHI THAROOR (THIRUVANANTHAPURAM): Thiruvananthapuram recognized for its historic inter-religious co-existence and pluralistic heritage, is home to key religious centres, including the Sree Padmanabha Swamy Temple, the Beemapalli Dargah Shareef, and the Kurisumala Pilgrim Centre. Due to the large number of visitors, these centres are facing an enormous strain in terms of civic infrastructure, connectivity and modern tourist facilities. While the Sree Padmanabha Swamy Temple is currently under the Swadesh Darshan Scheme, the other two centres have not been supported by any corresponding Centrally sponsored scheme. To improve the convenience of the devotees. I urge the Government to build a circuit between these centres, and to recognize Thiruvananthapuram under PRASAD or HRIDAY Schemes.

04.07.2019

(xvii) Need to upgrade infrastructure in Tiruvalla Railway Station in Kerala

SHRI ANTO ANTONY (PATHANAMTHITTA): I request the Government to kindly upgrade and improve its passenger amenities in Tiruvalla Railway station. Even though it is an important railway station, the Tiruvalla Railway Station is facing a severe water shortage and is dependent on water tanker for supply. The Government is requested to sanction funds for providing permanent drinking water facility throughout the year. I have already spent crores for development of the station. Installation of an escalator is in its final stage of completion.

The hindrance for the development of Tiruvalla Railway Station is the narrow road in front of the station. The local people are ready to hand over their land to widen this road, but the Railways are not willing to part with their portion of land for the development of the railway station road. Therefore, I request the Hon. Railway Minister to issue necessary orders for widening this road.

(xviii) Regarding development of Edappilly-Moothakunnam stretch of National Highway 17 (new NH 66) in Kerala)

SHRI HIBI EDEN (ERNAKULAM): The development of National Highway between Edappilly— Moothakunram on stretch of NH 17 (new NH 66) is a long pending demand. The land acquisition is a major concern for the development of the proposed 45 meter NHAI stretch. People who have already surrendered their land for the then 30 meter width highway have to be evicted again are raising the proposal of an elevated highway to avoid eviction and also the exorbitant land acquisition cost. So I urge upon the Government to study the feasibility for

construction of an elevated high way or provide land value to the land owners as per the 2013 R&R package and complete the project as early as possible.

(xix) Need to import Feed Grade Maize for Poultry farmers with Zero duty

SHRI A. K. P. CHINRAJ (NAMAKKAL): Tamil Nadu Poultry Farmers Association is an apex body of Poultry Farmers from across Tamil Nadu. Poultry industry in Tamil Nadu employs directly and indirectly more than 20 lakh people in rural areas. At National level Poultry Industry contributes close to Rs.70,000 crores to the GNP of our country.

Since Maize is the major ingredient in poultry feed, poultry farmers are facing huge financial loss due to unavailability of maize which will lead to higher cost of egg production and unemployment in India. I request the Union Govt. to approve import of 10 lakh tonnes of Maize with zero duty for poultry farmers. This will help the poultry farmers to manage the current shortage of maize and avoid financial loss of poultry farmers.

Hence, I urge upon the Union Government to permit import of 10 lakh tonnes of Feed Grade Maize for Poultry Farmers with zero duty.

(xx) Need to establish a Kendriya Vidyalaya in Buldhana Parliamentary Constituency, Maharashtra

[Translation]

SHRI PRATAPRAO JADHAV (BULDHANA): Buldhana Parliamentary Constituency of Maharashtra state is a very backward district. This area is also highly backward in terms of education. There are also state and central level offices in Buldhana district, in which Income Tax Department, Railways, Posts

Department, Telecom, IB, Doordarshan Center, Archaeological Department, NABARD, Banking Sector etc. are important.

I would like to say that there is no Kendriya Vidyalayas either in Buldhana district or in the adjoining districts, due to which children of employees particularly working in central government offices have to face great inconvenience in getting education. If a Kendriya Vidyalaya is established in Buldhana, then the children of government employees as well as local poor children will be able to get affordable and accessible education and the children of this region will be able to join the mainstream of the nation by getting quality education.

Therefore, I would like to request the Union Government to take necessary steps to establish Kendriya Vidyalaya on the priority basis in Buldhana Parliamentary constituency of Maharashtra State, which is also very backward, so that children can get educational facilities.

(xxi) Need to start new academic courses at graduate and post graduate levels in Nava Nalanda Mahavihara, a deemed university in Nalanda, Bihar

SHRI KAUSHALENDRA KUMAR (NALANDA): Nava Nalanda Mahavihara (Deemed University) Department of Art and Culture, Government of India, Nalanda, which is situated near Nalanda University, has been awarded the status of deemed university from the UGC on 13 November,2006.Only few subjects such as Hindi, Sanskrit, English, Pali, History, Philosophy, Tibetan, Chinese and Japanese etc. are studied there. While its campus is very large. There is very good infrastructure for quality education here.

Therefore, my request is that the number of under graduate and post graduate subjects at the said university should be increased. Arrangements should be made for under graduate and postgraduate studies in agricultural subjects along

with language and humanities. At present, the government is preparing the syllabus of studying GST too. It should also be studied in university. This will increase the importance of Nava Nalanda Mahavihara (Deemed university) and at the same time more students will be able to get higher education at one place and campus. Along with this, I would like to demand that the branch of study centres of Nava Nalanda Mahavihara should be extended in different areas of Nalanda so that the local students of that place can also get benefitted.

(xxii) Need to provide a special package for coastal region of Kerala affected due to sea erosion

[English]

SHRI N. K. PREMACHANDRAN (KOLLAM): The sea erosion in the coastal areas of Kerala is crucial. Heavy damage is being caused due to the sea erosion at Thanni, Kakkathoppe and nearby coastal region in Eravipuram Constituency. The sea wall protection works in Eravipuram is getting delayed. The sea erosion affected coastal region in Kollam and Chavara. The fisherfolks are losing their life, property and fishing equipment. The coastal roads and communication facilities have been damaged. Financial assistance from the Central Government is highly necessary for management of the disaster.

Hence, I urge upon the Government to declare a special package for Kakkathoppe, Thanni and nearby coastal region in Eravipuram and coastal regions in Kollam and Chavara. The same may be extended to similarly affected coastal regions in the State.

04.07.2019
13.34 hrs

STATUTORY RESOLUTION RE: DISAPPROVAL OF AADHAAR AND OTHER LAWS (AMENDMENT) ORDINANCE, 2019
AND
AADHAAR AND OTHER LAWS (AMENDMENT) BILL, 2019

[Translation]

HON. CHAIRPERSON: Hon. Members, Item No.12 and 13 will be taken up together for discussion.

Shri N. K. Premchandran - Not present.

Shri Adhir Ranjan Chowdhury.

[English]

SHRI ADHIR RANJAN CHOWDHURY (BAHARAMPUR): Sir, as Shri Premachandran is absent from the House, I am compelled to move the Statutory Resolution.

I beg to move:

"That this House disapproves of the Aadhaar and Other Laws (Amendment) Ordinance, 2019 (No. 9 of 2019) promulgated by the President on 2 March, 2019."

[Translation]

MINISTER OF LAW AND JUSTICE; MINISTER OF COMMUNICATIONS AND MINISTER OF ELECTRONICS AND INFORMATION TECHNOLOGY (SHRI RAVI SHANKAR PRASAD): sir, I beg to move:-

04.07.2019

"That the Bill to amend the Aadhaar (Targeted Delivery of Financial and other Subsidies, Facilities and Services) Act, 2016 and further amend the Indian Telegraph Act, 1885 and Prevention of Money Laundering Act, 2002 be taken into consideration."

Hon. Chairperson Sir, There are some reasons for the Aadhaar amendment bill we have tabled, which are necessary to explain. The Supreme Court had considered privacy a fundamental right in the Puttaswamy case. The Court found the Aadhaar Act legal. But in the Aadhaar Act, he indicated some changes. For example, if a child becomes an adult, his consent is necessary. Secondly, there should be alternative identification proof for Aadhaar. Similarly, we had formed a committee under the chairmanship of retired Justice Srikrishna, he also make several recommendations to make the Authority of Aadhaar more effective. The Criminal penalty should be made a civil penalty and these must have an autonomous character.

Hon. Chairperson, Sir, above all, under telegraph a rule, Aadhaar was used for SIM cards under the circular. Secondly, an amendment was made in income tax in which it is mandatory to link Aadhaar with pan card, Thirdly, under the rules of the Prevention of Money Laundering Act, it was provided that linkage to Aadhaar was necessary. The Hon. Supreme Court said that since the change in income tax has been made under a law, it is legal but in the telegraph Act, you have made amendment by a circular and in the case of Prevention of Money Laundering Act, amendment has been made by a rule, it is not fair. Amendment should be made in the law. So, today those two amendments also deserve this amendment.

Hon. Chairperson, Sir, in this regard I would to tell you one thing that we have said that mobile companies can use Aadhaar from their customers on

voluntary basis. This voluntary basis means that concern is necessary. They should also have a provision that they can give another passport, ration cards etc as an alternative. That is the provision we have made for this too.

Sir, I shall move an amendment, for which I am going to give notice that we give the subsidies which now come from the Central Consolidated Fund under Section 7. It was the insistence of many states also to make this provision in the state's consolidated fund, so that the states can be benefited whatever subsidies we give. We propose to line two words with the consolidated fund of India the consolidated fund of states.

Hon. Chairperson, this is the whole bill for today, the rest of which I will reply in detail after discussion. However, one thing we must understand is that, in a very short time, I want to make this point today, whenever there has been a discussion in the House; I have also said earlier that the Aadhaar had been started by that party. The Aadhaar of that time was no value. We have legalised Aadhaar. It's an attempt to make changes….*(Interruptions)* You rightly said that there was a discussion. But when the proceedings started, the authority was formed, since this department comes under me, I became the IT minister in 2014, first of all I questioned that *[English]* What is the legal basis of Aadhaar? To our dismay, we found that there was no statutory basis. *[Translation]* So, the first thing was to pass the law. That law passed the rest you know you also participated in it.

Sir, today, I would like to make a few points to the House very politely. Later I will reply in detail and that is very important to point out. India has a population of 130 crore and India has 123.81 crore Aadhaar in its population of 130 crore. In a way, the Aadhaar card has come so extensively throughout the country. We have said voluntary. But I am feeling happy to tell this House that 69.38 crore mobile phones in the country are linked to Aadhaar today.

Hon. Chairperson, you know that it has also been discussed that on the basis of direct benefit transfer, we link jan dhan aadhaar to mobile phones to make payment to the poor people of their gas subsidy, ration subsidy, housing, toilet and MGNREGA. I am happy to tell you that in the last five years, we have sent Rs 7.48 lakh crore in D.B.T We have saved Rs 1.41 Crore, which used to be eaten by middlemen and thugs. Aadhaar has proved its utility.

Finally, I would say one thing that the country has run with Aadhaar. The people of the country have accepted Aadhaar with great love and affection. I said that we also give a voluntary option for SIM cards, ask for Aadhaar if not, Aadhaar, if not then give passport, ration card. The people show Aadhaar. Today, Aadhaar has its utility and the rest when I reply, will be explained detail as to how the world is understanding the utility of Aadhaar. Today, whenever I go abroad they say that they need Aadhaar, give us Aadhaar. Today, Digital India is a huge success. When we were interpreting Digital India, we said inclusive digital growth. We will bridge the gap between have and digital have not. The country will move forward through low cost technology.

Hon. Chairperson, I am very happy to tell the august House and Aadhaar has been developed by the scientists of India. It is low cost technology, safe and secure.

I tabled some of the necessary amendments that were necessary today. I thank the whole House will support that. Thank you very much.

HON. CHAIRPERSON: motions moved:

"that this House disapproves of the Aadhaar and Other Laws (Amendments) Ordinance, 2019 (No.9 of 2019) promulgated by the President on March 2, 2019."

"that the Bill to amend the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Facilities and Services) Act, 2016 and further amend the Indian

Telegraph Act, 1885 and the Prevention of Money Laundering Act, 2002 may be taken into consideration.

[English]

SHRI ADHIR RAJAN CHOWDHURY: Sir, first of all, my friend, Shri Premachandrean Ji was destined to move it but due to his absence, I have been asked to move the Statutory Resolution. I have already requested the Chair that if it is possible, Shri Premachandran should be given the opportunity to move because he is entitled to it.

SHRI N. K. PREMACHANDRAN (KOLLAM): Sir, we were under the impression that it will be taken up at 2 p.m. We never expected that such an important Bill will be taken up like this or else some announcement should have come in this regard.

HON. CHAIRPERSON: You know the rules. Let Shri Adhir Ranjan speak.

SHRI N. K. PREMACHANDRAN: I know the rules.

SHRI ADHIR RANJAN CHOWDHURY: Sir, if the rules permit, I do not have even an iota of objection to it.

SHRI RAVI SHANKAR PRASAD: Sir, I must clarify that while I was introducing the Bill, there was objection. I clarified that. He did not raise that. Now the Bill is for substantive discussion and surely I would welcome all the eloquence of Shri Premachandran at the time of debate. Whatever clarifications I have to give, I will give them in my reply. So I think enough opportunity is going to come and I wish to be enlightened by his very eloquent interference.

PROF. SOUGATA RAY (DUM DUM): Sir, it is a Statutory Resolution therefore in any way, he has to move it. It is not a question of his clarification. According to the law and according to the Constitution, the Statutory Resolution has to be moved and he has to speak on it. It is because the Government had

brought an Ordinance that is why, first the Statutory Resolution has to be discussed and then the merits of the Aadhaar Bill can be discussed.

SHRI ADHIR RANJAN CHOWDHURY: Mr. Chairman, Sir, first of all, I vehemently oppose the way the Ordinances are being promulgated in a frequent manner. If you observe the proceedings and List of Business of this House, you yourself will have an idea as to how this Government has been resorting to the route of Ordinance without any substantial rhyme or reason.

Sir, there is no objection to the promulgation of an Ordinance per se because our Constitution has the provision for invocation of Ordinance. In the same way, the Constitution has also provided as to when, how and why an Ordinance could be promulgated. We all know that it could be promulgated in the event of an emergency situation or because of an extraordinary situation. Such circumstances warrant the invocation of an Ordinance. But the way this Government has been promulgating Ordinances, it would certainly be detrimental to the health of democracy, more so, in Parliamentary democracy which we have been pursuing since Independence.

Hon. Law Minister is a dextrous person. I would like to him that during his tenure, he brought in legislation which is in the ratio of 4:10, which means four Ordinances per ten legislation. It is also an unprecedented record in the history of modern India that per 10 legislation, this Government is promulgating four Ordinances. That is why we have been taking a strong exception to the route of promulgation of Ordinances followed by this Government.

[Translation]

The charisma of Aadhaar is known to everyone, there is no need to tell you. You have borrowed Aadhaar from us. You say that earlier, Aadhaar was baseless, but I am saying that you are developing your own Aadhaar by borrowing the Aadhaar from us. Through this, on the basis of Aadhaar, you are blowing the trumpet that

I have done this in DBT, you have done that in DBT. Tell me who brought DBT? *[English]* Who conceived the idea of Direct Benefit Transfer Programme (DBT)? I would like to ask this question to the hon. Law Minister. *[Translation]* So we say you're taking all that credit, but when the time of appreciation comes, you're racing to take all the appreciation. *[English]* For this reason, the way which this Government is following is not befitting to a democratic Government and that may be called as political plagiarism'.

[Translation]

You are blowing the trumpet about everything. Tell me whether the Supreme Court had reprimanded you or not. What was the need for the Supreme Court to reprimand? The Court did so because there were shortcomings contained in the bill. You were violating fundamental rights. You were violating our privacy and that is why the Supreme Court reprimanded you. You are the law minister of this government. Consultations are made with you. What type of a bill you make that in Parliament you face reprimand on a fundamental thing. The biggest thing is privacy. When we had formed Aadhaar during our government, we had done nothing to take someone's fundamental right into our hands. We had not interfered in anyone’s privacy. After the coming of this government, you are going to interfere the domain of the common people of India, their rights, and that is why I am against them.

Who brought the DBT, who created ' Aadhaar'? Who deployed Nilankani who created a UIDAI. Who made it? All the things we have created. I don't know why you are ashamed to say things that you have learnt it from us. But, you should not be felt ashamed there, what is right it should be said right. It will give you a chance to show up. We have created 'Aadhaar'.

First, you very cleverly got it passed in the form of a money bill. So, even in the court, somebody had to approach the court so that it is not passed in the

form of a money bill, because you did not want to discuss it and you brought it through ordinance.I want to ask asto suddenly what kind of situations has arisen that you had to bring ordnance today. You have the Act,but you are working though the ordinance. House will run until July 26. Tomorrow is our budget. What was the need to have the discussion over the "Aadhar" ordinance on the first day of the budget? Why is this haste? You are saying that you have discussed it in the House. When you have discussed, when you have come up with minor amendments in it, why are you is such a hurry that you have to bring ordinance for everything. An outgoing government bring ordinance and an incoming government changes it into a bill. What is this?

Why do you make a 'vote-on-account', because that is the temporary arrangement? If you were thinking that you would come to power the next day, then why did you have a 'vote-on-account', because it is in accordance with our rules. The promulgation of the ordinance before the election is never befitting, that is what we want to say to the law minister.

Secondly, first of all, you should pay attention to the data protection bill. You do not want to bring the data protection bill to mislead us. Your government say that today data is equivalent to cash. It is not I but Prime Minister Narendra Modi Ji saying that data is equivalent to cash. Then, why don't you take it at par with the cash? You come up with a data protection bill and then bring the Aadhaar bill. Heaven would not have fallen upon us. You want to mislead us, you do not give us the facility of data protection, that means that you still do not pay attention to privacy. You still don't want to pay attention to the privacy which we call fundamental rights.

Sir, I have great respect for Ravi Shankar ji. Through you, I want to draw his attention whether you will accept that there is no difference between the original and the genuine? You should block its loopholes. Like, you talk of K.Y.C documents, there are many documents that may be original, but how can you Say

that it is genuine? Using these loopholes, terrorists and anti-national activists can harm our India. Therefore, you should pay attention to what its genuineness and originality is because suppose I come from Bengal. I get an 'Aadhar' card in Bengal. When I come to Delhi, I have the same K.Y.C documents. With these documents, I make another Aadhaar card. Is there any guarantee that we can put a stop on it? I am therefore asking you to look at the difference between genuineness and originality. You take it in your account take concrete steps on this. Aadhaar is the need of all of us. We are not sting here to oppose it, *[English]* because it is the brainchild of UPA government. [*Translation]* Then, why would we oppose it? We do not work as self-contradictory and self-conflicting. We can therefore give a little consultation to the government that you take not of this subject.

As I said, you make a difference between originality and genuinity. It was good that a child has his option; he can give his option whether he will get his name added or not after 18 years, it is good thing. Off-line verification has also yielded a good result, as there was possibility of a lot of tempering in the on-line. The biggest thing is that there were a lot of rigging about this on line-facility. There was a lot of discussion against it inside and outside the House. Off-line has come after that. I definitely want to file a complaint against the government, because the government does not bring a bill regarding our right to data protection. The government is trying to undermine the structure of our democracy by taking the path the ordinance. Sir, I am not saying this, but the 'Hindu' paper also brought it out-

[English]

"On any reasonable reading, it ought to be plainly apparent that the Bill flagrantly flouts both the Constitution and the Supreme Court's judgement which gave the Aadhaar programme a conditional imprimatur. It is, therefore, entirely likely that the Government is banking on a sense of political fatigue having set in

over the project, and perhaps it believes it has made the programme so ubiquitous that a few additional legislative tweaks are unlikely to shock and jolt the dissenters. But the present move is so brazen that we will be failing in our collective duties were we to allow the amendments to be carried out without any debate. For, if enacted, the law will once again allow private corporations, including banks and telecom operators, to use Aadhaar as means to authenticate identify. Astonishingly, this change has been proposed despite the Government's abject failure to enact comprehensive legislation protecting our data and our privacy."

There, I would again urge upon this Government that you should bring a comprehensive legislation including the Data Protection Bill so that the fruits of Aadhaar permeate the targeted population without infringing the institution.

With these words, I conclude my speech. Thank you.

[Translation]

SHRI P.P. CHOWDHARY (PALI): Hon. Chairperson, Sir, I would like to thank you for giving me the opportunity to speak on this bill.

Sir, I rise to speak in support of this bill. I would like to say that between Modiji's year 2014 to 2019 and right now in the second term, it should be said that if there is a game changer, Then I would say that the trinity, that is GST, IBC and Aadhaar. It plays a vital role to move the economy, to reform the economy and for digital India.

13.59 hrs.

(Shri N.K. Premachandran in the Chair)

As far as providing subsidy, other benefits and services from Aadhaar are concerned, the elaborate provision is stated in section 7 of the Aadhaar Act 2016

that the Aadhaar Act will not be used as an evidence, whether it's for citizenship or domicile.

Sir, I would also like to point out that *[English]* this Aadhaar Act, 2016 and this Bill, if we see the combined spirit and the object of both are meant for good governance, efficient transparent and targeted delivery of subsidies benefits and services. *[Translation]* This is big move for a corruption free regime, I would also like to point out that the Aadhaar today is the largest identity project in the whole world.

14.00 hrs

Hon. Minister informed that about 123 crore Aadhaar cards have been issued and Aadhaar numbers have been given. Whatever the activists talk about, they may also use Aadhaar, but from time to time, these activities are being done to create hurdle in the work of the government, subsidies, benefits, and services which is meant to reach to the poor.

As far as seeding of Aadhaar from the bank account is concerned, for the first time such a great job has been done. Aadhaar has been seeded from the bank account and the process is going on continuously. This is a continuous process. If we look at the different beneficiaries of 439 schemes, seeding have been done from the bank account. The work is being done to benefit the beneficiaries of about 55 ministries who are sitting at the last end of the society.

The Minister informed that Rs. 7 lakh 30,000 crore have been transferred from Aadhaar till date, since they have been seeded from bank account. I would also like to point out that if we were to disburse such a large amounts, we would have had a large machinery and too much expense. How much money would have been saved through this technology?

I remember one thing from our former Prime Minister, late Shri Rajiv Gandhi ji. He has said that when I send Rs.100 from Delhi, only Rs. 15 reach the

beneficiary and in the middle Rs. 85 get lost in corruption. No one saw this, no one seriously thought in this regard. Aadhaar was introduced but seeding it from the bank account is the second part. Execution is an important part. As congress leader, Adhir Ranjan Chaudhary Saheb said that Aadhaar is the brainchild of the UPA. Let me tell you that the aadhaar was conceived in the year 2002. This is the brainchild of Atal Bihari Vaypayee ji's government. In the UPA's time, some improvement was done on this. I will further tell about the other things you have said. The idea of Aadhaar was conceived in Vajpayeeji's time. As the minister pointed out that the direct benefit by Aadhaar after seeding it from the Bank, it has saved Rs. 1 lakh 42 thousand crore. You can imagine the amount, it is being estimated that about Rs. 1 lakh crore per annum, only from Aadhaar after seeding with bank account, would be saved every year. How much revenue it will save and that money will go got the welfare of the poor. This money would go for the welfare of the person who is sitting at the last end of the society. If anyone has done the job of delivering the money of the poor to the poor it is Prime Minister Modiji who has done this.

The Prime Minister, late Rajiv Gandhiji, said that when I send Rs. 100, Rs. 15 reach to the beneficiary but he did not take any further action against the person who eats Rs. 85 in between. For the first time, Prime Minister Modiji closed about 8 crore ghost accounts that were not entitled to government subsidy or benefit but they took government benefits. The individuals who were not born used to take such a benefit. Such 8 crore people were removed and set aside. We see and hear that those who are against Modiji, who are suffering that 8 crore people who were eating millions of rupees in wrong ways and were doing corruption, writing their wrong names, wrongly raising the money of the government. It was Modiji if who did the job of separating those people.

Earlier farmers were very sad. Whether it was their subsidy money, whether they were getting the various benefits, whether disabled, whether poor and weak, they suffered a lot because the money did not reach to them on time.

The suicide rate among the farmers also increased due to not getting money on time. It was also a big reason in itself. There was a great difficulty because of delay in the payment. I believe that state governments should also adopt it. If it is implemented in all schemes and adopted everywhere, I believe that tracking of benami property transaction can be very easy.

Now, Adhir Ranjan ji said that the Supreme Court reprimanded the government. The Aadhaar was introduced in 2002, before 2014, the UPA brought Aadhaar without law or without a legislative backing, created an authority with executive power, and gave all the power to the authority. There is a suspicion that there are plenty of chances leakages of data. You did not bring any legislation before the Parliament, which is how it went to the Supreme Court. Before the year 2014, the validity of executive power was challenged in the Supreme Court under article 21. Article 21 specifically provides [*English]* "No person shall be deprived of his life and liberty except in accordance with the procedure established by law". [*Translation]* Why did the UPA government not bring it before the Parliament at that time? Article 21 clearly says that if you come up with such a law, it will come before the Parliament. He made a contravention and violation of Article 21. They are accusing the NDA government without seeing the records. The NDA government defended it in the court. According the spirit of the Constitution of India, the Aadhaar Act 2016 was introduced with almost all the safeguards. As far as law is concerned, the Congress party talks of the personal life and the personal liberty. They even said in the Supreme Court at the time of internal emergency that Article 21 relates to the law of life and liberty, which states *[English]* “No person shall be deprived of his life and liberty, except in accordance with the procedure established by law”. *[Translation]* They

believed that they could also kill everyone, but there should be a law. They did not notice that the law which the Congress Party has enacted should be reasonable, fair and just. *[English]* The justifiability of that law is subject to challenge before the Supreme Court, *[Translation]* but the trend, intention and interpretation of Article 21 of the Congress Party and the statement made in the Supreme Court and during the emergency and the stand of the party from time to time shows everything. We welcome the Supreme Court's decision because the Modi government wants that a law should be enacted in line with Article 21. We have recognised that right to privacy is one of the fundamental rights. The Supreme Court has upheld the Aadhaar Act 2016 and has considered it constitutionally valid. Not only that, the entire Aadhaar scheme has been considered valid by the Supreme Court, in which only two provisions will not be given which were to be given to the private sector. For that, we are bringing necessary provisions in this bill. As far as our law is concerned, there is still legislative support to Aadhaar 2016, the government has made a necessary amendment in the present law and amendment has been made keeping in view the spirit and object of the Supreme Court judgement.

If we see the Supreme Court judgement, *[English]* basically, it meets the concept of Constitutional trust and good governance. There are observations of the Supreme Court with respect to Aadhaar Scheme in totality except two provisions.

The Supreme Court observed that it meets the concept of Constitutional trust; it meets good governance; it also for the digital privacy; and the Aadhaar Project is unique and unparallel document of empowerment. *[Translation]* Its section 7 is related to subsidy scheme, which was mandatory and voluntary cases. Some provisions like telecom services, mobile, admission in school, opening of a bank account have been kept voluntary. It depends on consent. If one wants to give Aadhaar, then he can give. We are seeing the common practice nowadays

that all people are giving Aadhaar in banks voluntarily. All the people give Aadhaar at the time of admission to the school and all the people also give aadhaar to mobile service. If you go for any benefit or subsidy, Aadhaar has become proof of basic identity.

As far as section 57 is concerned, the Supreme Court has definitely said that it cannot be given to a private contractor. So this provision is unconstitutional. The Hon. Minister has brought this bill with a necessary amendment.

[English]

The Supreme Court also observed that privacy cannot be the absolute fundamental rights.*[Translation]* restrictions can be imposed for this *[English]* and law is to be made by Parliament. At the same time, those restrictions should be reasonable, just and fair *[Translation]* The judicial review for this is available.

I would also like to point out that these restrictions can be for national security, public interest. Supreme Court believes *[English]* - to strike a fine balance, concern of the State and individual interest is to be taken into consideration. *[Translation]* Now, security has become even more enhanced from QR code and virtual ID in Aadhaar.

As far as the security is concerned, core biometric information, fingerprints, and iris is sufficient safeguard for the Aadhaar Act 2016. Now, the bill which has been introduced in 2019 provides sufficient safeguards. If we consider security in the 2016 Act, section 28 deals with 'Security and Confidentiality Information'. Section 29 deals with restriction on sharing information. Aadhaar information can only be used *[English]* Generation of Aadhaar Number and it can also be used for generation of authentication of Aadhaar. *[Translation]* The sufficient security safeguard is also in the provision of the Act of 2016 and is also in the bill of 2019.

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As far as there is provision for creation of the authority, section 11 and section 23 create an authority that protects privacy and then also ensured its autonomy. It is not that the government has outreached. It has autonomy *[English]* and there can be a power of regulator for taking enforcement action. *[Translation]* The government has empowered it taking into account the authority so that it can work as a regulator.

Hon. Chairperson, the bill 2019 which has been introduced before you, it has the provision of civil penalty. If there is any disclosure of information, a penalty of up to Rs. 1 crore can be imposed. Earlier the punishment in this case was three years, now it has been extended up to ten years. If someone access on unauthorised data or tampers that data then both bills 2016 and 2019 has a deterrent effect. I mean there is no question of touching the central identity data repository.

Now, as far as security is concerned, the central identities data repository has boundaries and fences. I can say that there are many fences around the data repository and there are also technological firewalls in which internet access cannot be made there in any way. For this, the system remains foolproof. It is therefore not a matter of concern, just as Mr. Adhir Ranjan ji said that the law should be introduced for data security. All safeguards can be taken to the 2016 and 2019 bills. I would also say, many people doubt but we are technologically sound. *[English]* Only two minutes, Sir. We have also introduced artificial intelligence in the system.

[Translation]

Suppose many people say that somebody may use our finger prints, iris artificially, but now a such a system has come with the body's blood circulation that the finger prints of the dead man cannot because *[English]* it depends on the blood circulation.*[Translation]* The system can completely detect whether the

finger print is of a dead person or a living person. So it has sufficient safe guards. Nobody needs to worry about it. *[English]* I would also like to tell you that there is a Report of Justice B.N. Srikrishna - for a Free and Fair Digital Economy: Protecting privacy, empowering Indians. *[Translation]* it has 12 digit Aadhaar, it has V.I.D, it also has an alternate virtual identity, but it is not necessary that it would show your Aaadhaar number. As far as consent is concerned, 7 crore children under 18 years of age are having Aadhaar cards and for this, the consent of their parents and guardians is sought but they have option available when they attain the age of 18 years *[English]* whether he can continue with Aadhaar or cannot continue with Aadhaar, it is open for him.

[Translation]

The Bill 2019 also provides that there are restrictions for sharing and disclosure and punishment is provided for the information, for voluntary services, if somebody says that he does not have Aadhaar, he cannot be refused. All these provisions have been taken based on Supreme Court judgement. *[English]* This bill of 2019 is in consonance with the direction and observation of the Supreme Court judgement and also in consonance with the constitutional mandate.

With these observations, I support this Bill.

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[Translation]

***DR. D. RAVIKUMAR (VILUPPURAM):** Hon. Chairman Sir, *Vanakkam.* I thank you for allowing me to speak on this important Bill. This Bill is aimed to change the fate of 133 Crore people of India. Not only that, this Bill will also change the way the public governance is in the country. When I rise to speak on this Bill, as it is my maiden speech, I thank the voters of my Villupuram Parliamentary constituency for this opportunity. I thank the inspiring leader Thiru Thol Thirumaa Valavan and the Leader of Dravida Munnetra Kazhagam Thiru M.K. Stalin for allowing me to contest elections. My stand on this Bill that this Aadhaar Bill should be opposed and it should be sent to the review of the Parliamentary Standing Committee. Why should I oppose this Bill? Hon. Prime Minister in his reply to this august House has mentioned about the contribution of Dr. B.R. Ambedkar, particularly the contribution of Dr. Ambedkar to the water management schemes. I wish to quote the views of Dr. Ambedkar with regard to this Bill. "Political democracy rests on four premises. They are: (i). The individual is an end in himself. (ii). The individual has certain inalienable rights which must be guaranteed to him by the Constitution. (iii) The individual shall not be required to relinquish any of his constitutional rights as a condition precedent to the receipt of a privilege and (iv) The State shall not delegate powers to private persons to govern others."

These are the words uttered by our revolutionist Dr. Ambedkar when he was introducing the Bill of Rights. These words are apt to mention here for the Aadhaar Amendment Bill also. This Bill permits the private companies to use basic personal data pertaining to the people as per their wish. Even after the Hon

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* English translation of the speech originally delivered in Tamil.

Supreme Court has clearly mentioned its view point on this Bill, on the contrary, this Bill allows private companies to use the data of the people of this country. Justice Sikri of the Hon Supreme Court in his majority opinion on Aadhaar Bill has stated and I wish to quote:

> " Apart from authorising the State, ' even anybody corporate or person' is authorised to avail authentication services which can be on the basis of purported agreement between an individual and such body corporate or person. Even if we presume that legislature did not intend so, the impact of the aforesaid features would be to enable commercial exploitation of an individual biometric and demographic information by private entities. Thus, this part of the provision which enables body corporate and individuals also to seek authentication, that too on the basis of a contract between the individual and such body corporate or person, would impinge upon the right to privacy of each individuals. This Part of the section, thus is declared unconstitutional."

Even when the particular section of Aadhaar Bill introduced earlier by the Government had been declared unconstitutional by the Hon. Supreme Court, this Government without any concern for that, is permitting the private companies to make use of Aadhaar details of the people. I wish to cite an example, After the verdict of the Hon. Supreme Court was pronounced, the Union Government had written letters to the telecom companies including Jio asking to explain their views in this regard. For that these companies have said that they would not be deleting the Aadhaar data saved by them and moreover these companies said that they will file an appeal with the Hon. Supreme Court in this regard. This Government which has sought the opinion of the private telecom companies did not intend to seek the opinion of the people by way of consultation process. During the course of Aadhaar related case hearing, the Government informed the Hon. Court that Aadhaar data would be only used for implementing social welfare

schemes. But in the *Economic Survey* presented to the Parliament, today, Government has clearly mentioned that it has intentions to sell the Aadhaar data and earn revenue. I wish to state a Para on page 94 of *Economic Survey* Vol. I, under the heading Private Sector firms as beneficiaries.

> "Undoubtedly the data revolution envisioned here is going to cost funds. Although the social benefits would far exceed the cost to the Government, at least a part of the generated data should be monetized to ease the pressure on Government finances."

They have cited that by way of selling the data to the private companies, they can earn money. By way of selling the data pertaining to students the Government says that it can earn money. The future aim of the present Government is to go for revenue generation through the sale of preserved data of the people. This is complete violation of the verdict of the Hon. Supreme Court. This is against the basic structure of our Constitution. Even after the Hon. Supreme Court's judgement, privacy has become a part of our fundamental rights. This is the basic structure of our constitution as highlighted by Hon. Supreme Court.

The Government cannot tamper with the basic structure of the Constitution of India. This is the verdict of Hon. Supreme Court. When privacy has become part of our basic structure, an attempt to change it will be unconstitutional. Hon. Minister has stated Aadhaar as a valid law. This law is valid which is a basic requirement. There is no change. It does not mean that we should pass any law merely because it is valid. It does not mean that with the powers available, we can take away the rights of the people of this country. This will be undemocratic. These are not merely my words. They flow from the dissenting opinion of Justice D Y Chandrachud who called Aadhaar Act as "a fraud on the Constitution". Parliament should take note of the strong observations of Justice Chandrachud. Hon Minister should take note of this. The Hon Minister has said that as many as

68 Crore people have taken their SIM cards by submitting Aadhaar details. It means the Aadhaar data of 68 Crore people has gone to the private companies. Privacy of the people has become a question mark. Even poorest of the poor are unable to avail medical facilities due to this. Two days ago, an elderly woman went for treatment to AIIMS. She approached the OPD for registration. But she was denied registration due to non-availability of an Aadhaar card. There is no provision in the present amendment Bill to punish those who insist upon Aadhaar for various reasons, against the verdict of Hon. Supreme Court. This bill has been introduced after the Hon. Supreme Court struck down the Section 33 Sub-section 2 of the Aadhaar Act. This Bill paves way to sell the preserved personal data relating to Aadhaar of the people of this country to private companies and earn money. This is against the fundamental rights and basic structure of our Constitution. I urge upon the Hon. Minister and the Government through you Sir that this Bill in its present form should be sent for the consideration of the Parliamentary Standing Committee. Thank you *Vanakkam.*

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[English]

SUSHRI MAHUA MOITRA (KRISHNANAGAR): Hon. Chairperson Sir, I rise today to oppose the Aadhaar and Other Laws (Amendment) Bill, 2016. This Bill violates the Supreme Court Judgement. There is a complete lack of transparency, there is a lack of public consultation and scrutiny by any Parliamentary Committee.

You tabled this Bill earlier this year, in spite of opposition from us. You could not pass it in the Rajya Sabha and then you issued an Ordinance, in spite of there being no extraordinary circumstances, whatsoever. What this Bill does is, it strikes at the very heart of the primacy of an individual and the privacy of an individual's data. This is what the Supreme Court in their 4:1 judgement also tried to talk about. There are three very problematic clauses in this amended Bill. First is clause 7 of the amendment to Section 4 of the parent Act. It says that you are mandating authentication of an Aadhaar number holder for the provision of any service, if required by law made by Parliament. So, what are you doing? You are going and amending the parent law which is, the Indian Telegraph Act and the Prevention of Money Laundering Act.

Let me go through this Bill. Since we are discussing the Bill, I am going to go through this Bill, Section by Section, and point out where we are. In this Bill, I have counted in more than 11 places these words 'as specified by regulation'. But on page 15 of the amendment Bill, there is a Memorandum regarding delegated legislation where you say regulation is an administrative matter of procedure and it is not practicable to provide for it in the Bill itself. But this is integral to the Bill. How are the primacy of individual and privacy of data a matter of procedure? How in 11 places can you say that this is specified by regulation?

Now, when we go to Section 2, you are talking about an alternative virtual identity. The entire idea about Aadhaar was to set up a unique 12-digit number. If we have gone through and traversed such a long distance to come up with a

new 12-digit number, where is the question of coming up with another alternative virtual identity? Is this not another way to just bypass the Supreme Court judgement which struck down clause 57? In Section 2 (aa), there is also another very scary clause. You are inserting a new clause into (aa) where you say "Aadhaar ecosystem includes enrolling agencies, Registrars, requesting entities, offline verification-seeking entities and any other entity as may be specified by regulations." The same thing is there when we go to the Memorandum regarding delegated legislation where you say this is something that is not practicable to put in the Bill. We are in Parliament. We are debating the Bill. How can I debate the Bill and be expected to give my assent for something I am not clear about, not transparent about?

When we go to Section 2 (pa), you say about offline verification. "Offline verification is the process of verifying the identity of the Aadhaar number holder without authentication, through such offline modes as may be specified by regulations."

Again, I have no transparency about what this offline number is. You do not tell me what the method of verifying it is. You say it is specified by regulations. It is not integral to the Bill. Again, this is completely shrouded in mystery. Now, what does this mean? Does this mean you are handing over my Aadhaar number to some private agency the means to authenticate my number offline? So, you are seeking Parliamentary assent for something which I am not clear about.

Now, what if the ecosystem fails? You have set out this Aadhaar ecosystem. What if it fails? You say there are alternatives, and viable means will be specified by law. Today, I am giving up my biometric data, my most personal private data to a private agency. If the ecosystem fails, you are saying that there are viable means to recourse but I do not know what they are. They have not been specified in the Bill.

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We come now to Section 5, 4(a). This is very important. You say, "compliant with such standards of privacy and security as may be specified by regulations;" Again, there is no standard of privacy and security today. There is no data protection Act. This is a classic case of 'cart before the horse'. You are saying that this is going to be specified; this is going to be privacy in security. In the absence of a data protection Act, which is what the Srikrishna Commission Report said we should do, which Justice Sikri and the other 4:1 judgment also laid out, how can you ask me to give up my information to a private agency? How is this possible? This is integral to the Bill. You cannot have the cart before the horse. Give us recourse, put your viable framework in place and we will give our assent. There is no problem.

When we go to Section 5, 4 (a) (ii), there, you are seeking authentication for such purpose as the Central Government in consultation with the Authority, and in the interest of the State, may prescribe. This is a very scary clause. So, it is giving you *carte blanche* to do anything. When the Central Government thinks of anything that is in the interest of the State, they can speak to the Aadhaar Authority and decide. This is *carte blanche*. When Aadhaar was set out, it was meant to provide for services to the poor. It was never meant to get data.

The idea of Aadhaar was not to be acquisitive. The idea of Aadhaar was a means to give services to the poor, to distribute subsidy and other things from the Consolidated Fund of India. That is also extremely important. What has Aadhaar become now? Aadhaar has become a way to get information for private entities – my bank, who is contracted to me; my telecom provider, who has no business getting my biometric information. All these private agencies today are using this as a means to get the data. Its original idea which was for the poor to get subsidy, has completely turned on its head.

Justice Srikrishna in his Report recommended that the Aadhaar authority should be autonomous with no Government interference. This clause 5 (4a)(iii) completely flies in the face of that recommendation because it says that the

Central Government in consultation with the authority, in the interest of State, can do anything.

In respect of Section 7, the Supreme Court said that Aadhaar must be used to providing services from the Consolidated Fund of India. Section 57 which was about sharing of data with private entities, was struck down. They said 'for any other purpose' we will strike it down. So, Section 57 as a whole was struck down. This particular Bill, it seems to me, is not even hiding the fact. It is absolutely open in its objective which is to bypass this particular Section 57, which was struck down, and it allows private entities, telecom providers and banks to get access to our biometric information. Bank accounts have nothing to do with the Consolidated Fund of India. Telecom providers have nothing to do with the Consolidated Fund of India.

Then, you are amending the PMLA. What is PMLA? It is Prevention of Money Laundering Act. It means that when you have a problem, if you have been flagged as somebody who is involved in money laundering, you may have an account in the Cayman Islands, then PMLA can be used. In this case, every law-abiding citizen is assumed to be involved in money laundering. This is a reverse onus. This flies in the face of any proportionality that you are assumed to be involved in money laundering. Here all of us who are law-abiding citizens must give our biometric data. Let us be flagged. If I have a Swiss bank account and if I am flagged and you want my data by all means, you have a right to do it. But you cannot expect the law-abiding citizens to give up their data. You are changing very substratum of the judgement; you are changing the very substratum of the concept of privacy in our Constitution.

Section 7 (8A), speaks about offline verification of an Aadhaar number. It says, 'Every offline verification of an Aadhaar number holder shall be performed in accordance with the provisions of this section.' Sir, we are dealing with the country where majority of the people are not informed. When the people get a Jio sim card, they give up their Aadhaar number because it is giving them free data.

They have no idea what they are even giving up. In this case, which private entity is going to give it in writing and which person receiving it is going to understand what they are getting. The Government is there to look into the interests of the poor. The Government is not there to help private agencies to get information from them.

There is one more important thing. In respect of Section 12, the Supreme Court in its judgement said, 'There has to be a higher-ranking officer along with, preferably, a Judicial Officer.' They used the term 'preferably'. But you have deleted it in the Bill. When my personal biometric information is being disclosed in the interest of national security, obviously, extra measures should be taken up. When the Supreme Court says that a Judicial Officer should be there, why have you deleted that clause?

Then, clause16 is again very scary. You are introducing an entirely new concept which is that of offline verification seeking entity. You are creating an alternative identity. Why should I give an alternative identity in the hands of private individuals? This is interfering with my relationship of contract with my bank. You are forcing me to give my biometrics by law to a bank or to a telecom agency.

Sections 37 and 38 of the principal Act deal with penalties which are available to the authority for unauthorised access to the Central Identity Data Repository. Recourses are available to the authority. I am the person and it is my data, why Sections 37 and 38 are not applicable to me? Why do I have no recourse if my data has been hacked from the Central Identities Data Repository? How come the authority has recourse and I, as an individual, whose biometric it is, who has the first right over it, do not have access to it? What is this?

You have now amended Section 24 of the Indian Telegraph Act. You are saying that you can use the Passport and any other document which will get notified by the Central Government. As of today, there is no notification issued. Only five per cent people of India have Passports.

So, you have not notified the other documents. Only five per cent people have passports. So, they have to give either Aadhaar or passport number. What does it mean? You are forcing people to give Aadhaar.

By clause 25 of the Bill, you are introducing a new Section 11A into PMLA which allows banking companies to conduct Aadhaar-based authentication and offline verification. By amending the parent Act, you are completely changing the substratum of the judgement; you are trying to bypass the judgement as well as the right to privacy, which we are entitled to as per our Constitution. So, we urge you that in the absence of that, please open this to public consultation and have the closest scrutiny by referring this Bill to the Standing Committee.

Sir, this is what we would request you. Thank you.

SHRI SRIDHAR KOTAGIRI (ELURU): Hon. Chairman, Sir, I would like to thank you for giving me an opportunity considering the fact that it is such an important Bill. I will be named as part of the history for participating in this discussion. I also have to thank my colleague, Shri Lavu Sri Krishna Devarayalu, MP from Narasaraopet for putting together this message, for whom I am stepping in because he could not make it due to personal reasons.

Let me begin by expressing pleasure that this Bill has lived up to the Supreme Court's directive which read down Section 57 of the Aadhaar Act, 2016.

I commend the Union Government for clearly aiming to omit the controversial sections on use of Aadhaar by corporate and private entities. No State in the world should directly or indirectly compromise the privacy of individuals' sensitive information – neither into the hands of private players nor into its own and never to a foreigner.

I must welcome the enabling aspects of this Bill. It attempts to create much needed regulatory framework, enforcement capabilities and penalising powers for the Unique Identification Authority of India. Layers of encryption are being

added to conceal the Aadhaar Number and its datasets, which is an appreciable thing. The idea of informed consent and protection of children by their guardians until adulthood are measures of a good public policy.

Giving citizens the option to choose their preferred mode of identity verification and opening up the ambit of complaints to them are necessary to democratise the system. The Bill stands firm on constitutional grounds as it states that no citizen will be denied services for want of Aadhaar verification. One cannot deny that this Bill decentralises funding by creating the UIDAI Fund that will bring self-sustenance to the project in its own right.

All these are positive things. I am sure that it is music to the ears of the Treasury Benches. They must be elated to know that someone from the middle order in this august House is painting a rosy picture of this proposed legislation. They are free to think so, but I urge them to lend their ears equally to know of the lurking dangers of our times. These days the big brother tendency of the system itself prevails to haunt our citizens in subtler ways than one can imagine.

Let me start by reminding you again that I come from the State of Andhra Pradesh which witnessed the country's biggest Aadhaar data leak or, you might say, data theft. In July, 2016, the then State Government led by TDP conducted the much hyped PrajaSadhikara or the Smart Pulse Survey. It collected the socio-economic and demographic data of 1.26 crore households in the State citing that it was for a more effective delivery of welfare schemes. In the name of welfare, the TDP Government tricked the people into filling information gaps left behind by Aadhaar. …(*Interruptions*)

SHRI RAM MOHAN NAIDU KINJARAPU (SRIKAKULAM): Sir, this is a baseless allegation. …(*Interruptions*)

SHRI SRIDHAR KOTAGIRI: Why do you not reply when you will get a chance to speak? You can reply when you get your chance to speak. …(*Interruptions*)

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HON. CHAIRPERSON: Nothing is going on record except Shri Sridhar's speech.

…*(Interruptions)*[*]

HON. CHAIRPERSON: Please be seated.

… *(Interruptions)*

HON. CHAIRPERSON: If there is anything unParliamentary, it will definitely be taken care of.

… (*Interruptions*)

SHRI SRIDHAR KOTAGIRI: Sir, in the name of welfare, the TDP Government tricked the people into filling information gaps left behind by Aadhaar. In the Government's own words, it possessed 60 per cent of the information it needed and was going after the rest. …(*Interruptions*)

HON. CHAIRPERSON: Please try to avoid making allegations against the State Government. Please speak on the Bill.

… (*Interruptions*)

SHRI SRIDHAR KOTAGIRI: Not knowing the dire consequences of this survey, people started furnishing details of caste, family, community education, income, livelihood, whether they were beneficiaries of welfare schemes and what amount they received for the same.

The then Government took all these details and uploaded them online through a e-KYC-based verification system linked to Aadhaar. What then followed were a series of data leaks or what you might say, 'data theft' that exposed these details to the entire world. In 2018, the AP Housing Corporation's website had disclosed personal information and bank details of about 1,34,000 people to several private agencies.

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[*] Not recorded.

Again in June 2018, the AP State Government portal www.ap.gov.in itself hosted Aadhaar linked details of 4.5 crore residents living in the State. These details were directly taken from the Smart Pulse Survey Data mentioned earlier.

Again in September 2018, the AP Government put up an open data base once again of more than 23,000 farmers and other tribals. Subsidies provided to them from the AP Medicinal and Aromatic Plants Board and all their personal data were open for all to access.

The list of leaks was endlessly growing until one day, when it all started making sense to the people. In early 2019, people witnessed the truth behind the politics when huge number of applications were uploaded on to the Election Commission website for removal of votes to the tune of lakhs in each Parliamentary constituency. …(*Interruptions*)

HON. CHAIRPERSON: Hon. Member, please confine to the Bill. Your time is already over.

… (*Interruptions*)

SHRI SRIDHAR KOTAGIRI : Sir, can I continue to speak? It is my turn. …(*Interruptions*)

HON. CHAIRPERSON: Hon. Members, please be seated.

… (*Interruptions*)

HON. CHAIRPERSON: Your time is already over. Please conclude.

… (*Interruptions*)

SHRI SRIDHAR KOTAGIRI: I am just repeating what had happened. Everybody knows it. It is open to the whole world. …(*Interruptions*)

HON. CHAIRPERSON: You cannot make any specific allegation. You can very well speak on the Bill.

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… (*Interruptions*)

SHRI SRIDHAR KOTAGIRI: They conspired systematically using the Government servants, paid workers and party cadre to conduct a public survey - all to ensure that they can categorise voters, profile them and 'manage' the election process in the State. The private company data-grids poured life into the illegal project by creating a SevaMitra mobile application which was accessible to each and every ground cadre of the party up to the booth levels and beyond.

The Telangana State Forensic Science Laboratory revealed that a mammoth 7.8 crore records of Aadhaar data linked with Smart Pulse Data were stored by a private company. These records that belong to citizens of Telangana and Andhra Pradesh were linked with voter ID numbers, colour photographs, names of family members, caste groupings, whether they were beneficiaries of welfare schemes and the amount they received for the same. A statement was issued by an Aadhaar Deputy Director that the database structure, size and file formats recovered from the private company's storage devices were similar to those maintained by the Central Identities Data Repository. …(*Interruptions*) This is against a private company. I do not why you are so bothered.

Now, while the private company was booked by the Hyderabad police, till date not a single Government servant, paid worker or party cadre has been arrested. The TDP Party was even prepared on the legal front. In fact, back in 2017, the State Government passed the Andhra Pradesh Core Digital Data Authority Act. Section 37 of that Act states that no legal proceeding shall lie against any officer or employee for anything which is done in good faith. What this means is that leaks and breaches are not something any official in the Government can be held responsible for.

HON. CHAIRPERSON: Please conclude.

SHRI SRIDHAR KOTAGIRI: Almost done Sir.

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Our present State Government led by our hon. Chief Minister Y.S. Jagan Mohan Reddy is striving to scrap such draconian sections of the State law. Under his leadership we are preparing the ground to door deliver the welfare schemes. We are establishing Gram Secretariat in each village. Any eligible person can approach Village Secretariat and his request will be processed in 48 hours. I request the Union Government to look into it as a mode for other States as well.

With regard to this Bill, I would like to state that no doubt it bars private entities from using Aadhaar-based information. But there is no clarity on norms and penalties when officials within the Government itself leak the information to private entities or open web sources.

HON. CHAIRPERSON: Please conclude.

SHRI SRIDHAR KOTAGIRI: In this case, we all saw that if an incumbent Government has the strong will to indirectly pursue illegal means to no end, they can go ahead and execute it. Except that, they stand exposed clearly. …(*Interruptions*)

HON. CHAIRPERSON: Please conclude. I have to call the other Member.

SHRI SRIDHAR KOTAGIRI : Almost done Sir.

… (*Interruptions*)

HON. CHAIRPERSON: Please conclude. I have to call the other speakers.

SHRI SRIDHAR KOTAGIRI: Yes, Sir. I am just concluding.

HON. CHAIRPERSON: If you want to conclude, please conclude in one or two sentences.

SHRI SRIDHAR KOTAGIRI: Finally, I would like to suggest to the Union Government to incentivise independent security researchers to report data

weaknesses for monetary rewards and domain recognition. A lot of countries, to strengthen their cyber defence, is successfully implementing this.

Sir, I would like to conclude by offering full support to this Bill and amendments made in it. Our suggestion is, rather than reacting to the situations, that we all should make amendments to Aadhaar in time so that no citizen will lose basic rights like availing their vote or access to the welfare schemes that are conceived for them. Thank you.

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SHRI PINAKI MISRA (PURI): Thank you, Hon. Chairman, Sir. Let me wish this Hon. House, as my other colleagues from Biju Janata Dal have done, a 'Happy Rath Yatra'. From the people of my constituency, Puri, I convey their best sentiments to this House. I am sure the people of Odisha will also be happy to receive reciprocal wishes from this House. Jay Jagannath! It is a very important event. As a Member of Parliament for Puri, I should have been there. But I am here today as instructed by my Party to flag certain issues before this House. Therefore, it is important enough for me to be here.

Hon. Chairman, Sir, let me say that, unfortunately Aadhaar like GST is really a lesson that should be obtained in the country in terms of bipartisanship. We have seen Shri Adhir Ranjan Chowdhury taking the credit for Aadhaar saying that they initiated it. Now, they are opposing it. Unfortunately, the Treasury Benches today, are waxing eloquently in terms of Aadhaar. They were opposing it, when they were in the Opposition like the GST. Unfortunately, this is not good for this country. Therefore, I implore both the major political parties that in future at least when they know in their heart of hearts that there is something which is in the interest of the country, they should come up with constructive suggestions as we do in Odisha, rather than, as a matter of principle, just keep objecting.

Let me say that most of the issues today are settled by the Hon. Supreme Court's judgement – majority 4:1 Judgement as well as the earlier judgement of Justice Puttuswamy which is the Right to Privacy Judgement. What the Government is really doing is tinkering a bit with the law. It will continue to tinker with the law. It is a new law. As this law distils and crystallises, we will see that many more amendments will come about. But the fact is that the basic fulcrum of the law is that the vires has been upheld and the constitutionality is upheld. Therefore, now, there is no question of going back on Aadhaar. Aadhaar is a good law; Aadhaar is a good practice. That is the first thing that we have to acknowledge.

In fact, the Odisha Government, right after the recent Constitutional Bench judgement, have given effect to it in large measure and we have been benefitted by it. Lakhs and Lakhs of people, who ought not to have been benefitted from the Government's scheme particularly from the new KALIA Scheme that we have initiated recently for farmers' welfare, have been weeded out. Thanks to Aadhaar. It is proved that it is beneficial in Odisha. Therefore, as a matter of principle, I believe that Aadhaar is a good law as the Supreme Court has said and it is good in practice and execution as well.

The misgivings that have been projected in this House and principally by a very ardent opponent of this Government who, I think, in principle, is TMC led by Ms. Mahua Mitra Ji who actually said that we are, in principle, probably happy to support this legislation, provided the other limb that the Supreme Court has mentioned, the Data Protection Bill, should be brought in simultaneously. That seems to be the basic sentiment of a certain section of this House. That sentiment, may I say, Hon. Chairman, Sir, is not unfounded. I think the Hon. Law Minister who is a very senior advocate himself, will see that the Supreme Court judgement is not just full of pious homilies. Practically, the Supreme Court judgement is in the nature of directions expressly given to the Government or, in any event, consented to the learned Attorney General.

Sir, I want to stress on a few passages of the Supreme Court judgement which are important as we are suffering from some practical problems because of the absence of the Data Protection Bill. I think it should have been really brought in along with this so that the House could have, on bipartisan basis, cleared both.

The Supreme Court has clearly said in Justice Sikri's Majority Judgements and I am quoting:

> "We have also impressed upon the respondents, as the discussion hereinafter would reveal, to bring out a robust data protection regime

in the form of an enactment on the basis of Justice B.N. Srikrishna (Retd.) Committee Report with necessary modifications thereto as may be deemed appropriate."

This carries on all the way through : "Notwithstanding the statutory provision discussed above, we are of the view that there is a need for a proper legislative mechanism for data protection." So, it is a virtual mandamus given to the Government.

It goes on to state that : "The Draft Bill and the Report cull out rights and obligations of the data fiduciary and data controller respectively". It further states that : "There may be indeed scope for further finetuning of this law through a consultative process. However, we are not far away from a comprehensive data protection regime, which entrenches informational and data privacy within our laws and legal system. We hope that there would be a robust statutory regime in place in the near future". This is as good as a mandamus given to the Government.

Justice Bhushan's Judgement again concurs that : "The Report having been submitted, we hope that law pertaining to Personal Data Protection shall be in place very soon taking care of several apprehensions expressed by petitioners". Here also, I think that the hon. Members like Shrimati Mahua Moitra and other speakers have indeed expressed the same kind of apprehensions.

Now, let me straightaway draw the kind attention of the hon. Minister -- since he is also in-charge of two very important Departments of IT as well as Telecom -- that information and data now is the new 'oil' of the 21st Century. This is going to be how the society is going to be driven going forward. Therefore, whoever controls information and data is going to be in this incredibly powerful position to be able to control our lives. We have seen in a country like the United States, which is a powerful country, where there is so much debate now on whether the US elections were actually influenced by Analytica, a British

company, at the behest of another foreign power. There is a massive amount of debate on that issue in the United States. The reason I am saying this, and I do not intend to target 'A' company or 'B' company, but, for sure, we have a neighbour who is hell-bent on aggrandizing data and information from India and this is not going to be for the benefit of India and Indians. It is going to be for their benefit and their future because they actually believe in planning centuries ahead.

It is very ironical that Mr. Shashi Tharoor and the *Swadeshi Jagran Manch who* are completely opposite sides of the coin, yet they are on the same page as far as, for instance, this Chinese company called *ByteDance*, which promotes Tiktok and Helo in this country. Both of them are on the same page. The *Swadeshi Jagran Manch* has written a savage letter, a stinging indictment, to the hon. Prime Minister showing how this particular company is engaged in such iniquitous, nefarious, egregious activities in this country that …(*Interruptions*)

Sir, I had 10 minutes at my disposal, and it is not even 8 minutes. Mr. Chairman, please. I am watching the clock like a hawk. …(*Interruptions*)

HON. CHAIRPERSON: Sorry. The time allocated for you is just four minutes.

SHRI PINAKI MISRA: Kindly give me a couple of minutes more.

HON. CHAIRPERSON: I am just cautioning you. Definitely, this is a very important Bill where academic and intellectual exercise is required.

SHRI PINAKI MISRA : Mr. Chairperson, I would be the last one to waste the time of the House. It is in the interest that Members know what will happen.

HON. CHAIRPERSON: I am only cautioning you that the time allocated to you is over.

SHRI PINAKI MISRA : Kindly give me another couple of minutes.

HON. CHAIRPERSON: Yes, please.

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SHRI PINAKI MISRA : The reason I am saying this is that three hundred million users in India alone are today using Tiktok. Two out of three Tiktok users are coming from India. So, can you imagine the amount of information and data that is being aggrandized by them? Their reply to Mr. Tharoor was that : "We have no existing relationship with the Chinese Government.". What does that mean? It means that you had a past relationship, and going forward, there is no guarantee that you will not have a relationship in the future.

It is well-known, as the *Swadeshi Jagran Manch* letter says that any kind of under-bidding or under-cutting that takes place in these telecom sector tenders in India is done by these Chinese companies because they have the full backing, might and the power of the Chinese Government. Otherwise, there is no way that they would be doing it. They are sharing all their data with the Chinese companies as well as with the Chinese Government.

Eventually, it is very important that going forward, the Treasury Benches also recognise the fact that while today they may be beneficiaries of agencies like Tiktok and Helo because perhaps it is said that it was helpful in their winning the elections, tomorrow, the very same agencies and instrumentalities would turn against you. Therefore, you would be '*hoist on your own petard*'. Eventually, we are all going to be victims because we, as Indians, are going to be victims.

Therefore, I would urge the hon. Minister that the time has really come when companies, which are $75 billion to $100 billion companies, are operating in India with Indian money should be governed by some laws.

<u>15.00 hrs</u>

By the way, they are paying people to be their users; to be giving them information; to be information providers. They are paying handsome amounts. It is also causing social tensions.

The other day, in Odisha, in a children's paediatrics hospital, there were nurses on Tik Tok, who were dancing to Hindi music, in full nurses' uniform. It is shocking to see what is happening because people are being paid for it. The hon. Minister is well meaning when he brings in this legislation in line with the judgement of the Supreme Court but I request him to kindly see that the other section or the other limb of it which the Supreme Court has virtually directed the Government to do. I request the Government to bring in your data protection Bill because we need protection from these kinds of egregious agencies which are otherwise going to create mayhem in this country.

With these words, I finish my deliberative process, and I would urge the Government to kindly consider this going forward. We are supporting the Government on this very important Bill.

SHRI RITESH PANDEY (AMBEDKAR NAGAR): Thank you hon. Chairperson, Sir, for giving me the chance to speak today. I stand here with the aim of opposing the Aadhaar and Other Laws (Amendment) Bill, 2019.

Sir, without a robust data of protection Bill, the Aadhaar and Other Laws (Amendment) Bill is an irresponsible legislation. While we can't have in this country an *adhoc* legislation that simply determines when privacy will be accorded legal protection in the form of various laws, such as the Information Technology Act, the Indian Telegraph Act, the Indian Contract Act and the Aadhaar Act, what we don't have is a comprehensive and an exhaustive definition of what constitutes as private data of the citizen. How it ought to be protected for the sake of privacy, and not for the sake of breaches or attempted breach? So, the need of the hour, hon. Chairperson, is this.

As the Supreme Court had recommended in its Five Judge Bench in 2018 as part of its landmark judgement which Shri Misra was just mentioning in K.S. Puttaswamy *Versus* Union of India is a robust - and I quote – data protection

law that treats citizen's fundamental right to privacy as established by Article 21 and Article 19a, as not just the basis of the law but also the purpose of it. So, only when we have such a robust framework, can be begin to safeguard citizens' private data, and the rights and ownership over their private data. Until such legislation is in effect, even a voluntary or consensual use of Aadhaar data by private players is a gross infringement of privacy. At the very least, it is irresponsible. I have a few examples.

[Translation]

I would like to share it with the Hon. Members present here. At present, Aadhaar data are with all the private companies. All these companies use your consumer history through your Aadhaar Card numbers be it your phone number or your bank account. You can imagine that if you go on holidays with your family twice a year, they even know that. They also know that what type of medicine you purchase. What you eat and what type of cloths we like to wear they all know that.

Sir, I want to tell you that if these information goes to an insurance company and the insurance company know that your child is suffering from asthma, as you purchase asthma medicines worth Rs. four thousand every month. When you go on holidays twice a year then the insurance companies would approach you to sell travel insurance and they will charge enhanced premium from you to cover your child who is suffering from asthma. It would become your compulsion as a parents to purchase that insurance on high premium. The data is being misused like this. Hon. Members of Parliament are sitting here and they all know that the Gram Pradhans of all the Gram Sabha have the data of all the people with them and they have the details of Aadhar card of all the people. You should think that if a gram Pradhan falls prey to any unsocial element and gives him the data.

Hon. Minister is not present here... *(Interruptions)* let Hon. Minister come. He should also listen to me. I am a new Member. Let Minister come... *(Interruptions)*

[English]

HON. CHAIRPERSON: You may continue your speech. The other hon. Ministers are present here…*(Interruptions)*. Your time is very limited.

SHRI RITESH PANDEY: Sir, this is not fair.

HON. CHAIRPERSON: You please address the Chair.

[Translation]

SHRI RITESH PANDEY: Sir, if you see, these data are available with all the Gram Pradhans. If they give these data to any unsocial element and if they get the signature of any poor innocent people on same forms for a few rupees they can get mobile number through it. They will open an account in any bank. If that person is involved in a terrorist activity then he can easily accomplish his activity by opening a bank account in the name of a farmer or a labour by getting a phone number in his name.

Now a days, so many cases of fraud committed in villages come to our notice. By getting a mobile number on Aadhaar card of some other person and open a bank account in his name, bank fraud is being committed though that phone numbers and money is being transferred in those bank account and money laundering is taking place. These are a few examples.

[English]

Secondly, I would like to address the issue of reintroduction of access to Aadhaar data on the premise of national security. This is very, very important. The Government has attempted to reintroduce access to such data, which was determined unlawful by the hon. Supreme Court in 2018, by simply replacing the

word 'Joint Secretary' with 'Secretary' in Section 33 (2) of the Aadhaar Act. This action by the Government goes against the recommendation of the Justice B. N. Srikrishna Committee which in its Report titled 'A Free and Fair Digital Economy Protecting Privacy, Empowering Indians' has recommended that replacing sole executive action in the context of surveillance with judicial or independent oversight observing that sole executive review in the lawful breach of citizens' private data is not at par with other comparative democratic frameworks in Germany, United Kingdom and South Africa.

This attempt of legalising breach of citizens' data in the name of national security is a dangerously powerful mandate in which it allows the Government to infringe the Fundamental Right to Privacy as guaranteed by the Constitution in article 21 and article 19 (a), which is, I quote, "is an intrinsic part of life and personal liberty".

In the end, I would like to say that this Government during the last five years and especially during the last five months has proved itself extremely irresponsible when it is not determining who it considers 'anti-national', who it considers 'against the interest of the nation' and who it considers 'a threat to national security', be it journalists, academic students or ordinary citizens who exercise their Right to Expression and Freedom of Speech.

Hon. Chairman, I would like to conclude with what the hon. Prime Minister said in the House on the 25th of June. *[Translation]* He told that democracy in India did not come from the pages of Constitution rather democracy is our spirit.

Sir, I would like to say that the rights which have been granted to us through the pages of Constitution written by Baba Saheb should be protected first. The rest whatever is conscious, it is apparent to the world. With these words, I would like to request all the Members sitting here to rise above the party politics on this issue... *(Interruptions)*

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[English]

HON. CHAIRPERSON: Please conclude.

[Translation]

SHRI RITESH PANDEY: Sir, they should cast their vote in the interest of the country. It is my request to them that there is need to bring more reforms in the Bill in national interest rising above nationalism... *(Interruptions)* It should certainly be implemented.

Thank you.

SHRI AJAY MISHRA TENI (KHERI): Hon. Chairperson, I rise to support Aadhaar and other Laws (amendment) Act, 2019. Amendments have been proposed in a few clauses of Indian Telegraph Act, 1885, Money laundering Prevention Act, 2002 including Aadhaar Act, 2016.

Hon. Chairperson, sir, effort was made to provide a special identity to the people residing in India by making them available a 12 digit unique Id through Aadhaar Act, 2016.

Hon. Chairperson, when it was started, the effort was made by Hon. Atal Bihari Ji in 2002 without bringing a Brill in the House and the member of Congress Party gave recognition to Aadhaar. Shri Puttaswami ji was the Chief Justice at that time. He filed a writ petition 494 and along with it 38 petitions in Hon. Supreme Court. After six years of legal battle, Hon. Supreme Court has returned it to Government of India with some amendments due to which the Bill has been introduced today.

Hon. Chairperson, I would like to say that we have to see it retrospectively. In the absence of a unique identity of people so many government Schemes, whether it is subsidy, be it fuel subsidy, food subsidy or be it a pension scheme all were being misused. We have an example of it in history also. It is about an

incident of 1985 about which it was told that at the time of then the Prime Minister, there was a lady named Fanus at Kalahandi in Odisha who had sold her 12 years sister-in-law for Rs. 40 only because there was no food resource for her family. Former Prime Minister Shri Rajiv Gandhi ji had also accepted the fact that all the schemes which were meant for upliftment of poor people, only 15 per cent of the amount released by us for them are reaching to the people. 85 per cent of the amount goes to such middlemen, contractors or like people. These people have formed a group, they are middlemen. They have become so influential that that amount is distributed among them only before it reaches to the people.

Hon. Chairperson, I would like to say that when people were struggling for this ID, I would like to say one thing very briefly that a writer wrote a small drama in which a person lost his wife then he went to Haridwar to perform her last rites. In the meantime, people come to his house to give him his pension and by chance, his neighbour told them that a death happened in his house. Then, the Government official noted down that the man has passed away. I will tell in brief that the person in order to prove his identity first show his sacred thread then the official told him that he believed that he is Pandit but how could he believe that he is the same person. Then, he shows his tilak, his clothes but with all his saying he was told that he may belong to same religion, may belong to same particular area but how it can be proved that he is the same person. So, it was necessary that we should have some such identity. At the time of Kargil war, Hon. Atal Bihar Vajpayee' Government was in power. Vajpayee ji had formed a group of Ministers under the chairmanship of Aadvani ji including Hon. Fernandis ji, Yaswant Singh ji and Yaswant Sinha ji. They were told to work on a multipurpose national identity card which was need of the hour. He also mentioned to add a new article also. Since, it was under the Ministry of Home Affairs, so the responsibility of this work was given to our National Census Registrar under MHA. But, as soon as work started on it Hon. Atal Bihari

Vajpayee ji government got out of power and when Congress Government came in power they hastily started registration for it by making Aadhaar an institution without bringing any bill. Its adverse result was that a writ petition was filed against Aadhaar in the year 2012. After a long battle of six years, a decision was given in this regard and we have included the decision in the Bill as we brought it in 2016 in which 38 more petitions have been included in it. We have brought this Bill to make a provision after changing in the decision taken.

Hon. Chairperson, while supporting the Bill, I would like to say that when we came in power in 2014 we had the biggest challenge to provide an identity to the people of the country who are deprived till now, who are not getting the benefit of subsidy. Earlier, we used to give subsidy for food grains directly.

That subsidy was not reaching to the eligible people rather it was being used by the middlemen. In such a time, the biggest challenge before the Government was that the needs of people were not being fulfilled. When our Government came in power in 2014, there was a question before our Government as to how to identify the right eligible person and to enhance the facilities being provided to them by fulfilling their needs. Our Prime Minister Shri Narendra Modi ji told it very first day that this Government is the Government of poor. So, house, toilets, Gas etc. which is necessary in the interest of poor would be provided to them and to the right eligible person. Earlier, it was happening that more than fifty percent of food grains were sold before reaching to the people. Kerosene was used for mixing in diesel. Affluent people were getting the benefit of subsidy given on L.P.G. In such a time, our Prime Minister provided an identity to such people making Aadhaar as a symbol while facing these challenges. Today, I can say that, during these five years, we had a challenge to work rapidly and today we are getting the result. During these five years we have provided house to such more than one crore forty lakh people who didn't have their own house. We have constructed more than 10 crore toilets and have

provided free LPG connection to more than 7 crore families. We have brought scheme for more than 50 crore people through 'Ayusman Bharat' Yojana. 32 lakh people are benefitted from it. We have facilitated to open Jan Dhan account. Subsidies are being provided to eligible beneficiaries and the Government have worked to fulfil the commitment of providing facilities and requirement of the people. As a result of this, I can say that whatever question you may put up for Aadhar today but Aadhar is such a unique number which contributed a lot to provide facility to the people and to identify the right needy person. Eligible people are getting the facility and we could accomplish the tasks only due to Aadhaar.

Hon. Chairperson, Sir, I would like to say that a lot of things are being told by the opposition but our objective is to make the facilities available to poor and eligible person. Aadhaar is a very crucial number to provide facilities to the people. We should support unanimously to pass the Bill. I can say that Aadhar is not only guiding the future of digital India but Aadhaar is also helping 132 crore population in the country to progress rapidly toward digital leadership of the world. It is the Aadhaar through which we have got success in laying a strong foundation of new India and to find its innovative potential.

Hon. Chairperson, I would like to say that no one can deny the fact be it the Members of Ruling Party or of Opposition that Aadhaar is a strong and safe forum to provide a clear identity to any person. This identity is based on all the three basic principles of minimum information, optimum knowledge and cognizable database. It is completely free from the apprehension of classifying the people on the basis of caste, class, community, lineage and different information. Therefore, I would like say to all that all the doubts are being removed through this Bill. It is only due to Aadhaar that the needs of the needy persons are being fulfilled today. The country is progressing and Aadhaar is going to contribute a lot in fulfilling the resolution of our Hon. Prime Minister

and our Government of new India. I would like to conclude by making request to all that we all should pass the Bill unanimously which is regarding Aadhaar through which we are going to provide facilities to the poor. Thank you very much.

04.07.2019
[English]

SHRIMATI SUPRIYA SADANAND SULE (BARAMATI): Sir, thank you very much. I stand here on the day the Economic Survey has just been published. It is a very interesting observation that the Economic Survey gives you the vision of the Government. Sir, if you see the Volume 1, with your permission, I would like to quote and read. It says, "…data 'of the people, by the people for the people'." A point was made earlier that data is the new oil.

It really makes an interesting chapter. With your permission, I would like to read just a few lines. Under the headline 'Private sector firms as beneficiaries', it reads, "The private sector may be granted access to select databases for commercial use. Consistent with the notion of data as a public good, there is no reason to preclude commercial use of this data for profit. Undoubtedly, the data revolution envisioned here is going to cost funds. Although the social benefits would far exceed the cost to the government, at least a part of the generated data should be monetised to ease the pressure on government finances." Is there a problem with the Government's money? Is that why you are selling data? If you are selling data, then this whole debate is meaningless; and after all the points, which the earlier Members have stated, there is nothing more to say.

There is another part to it, "Alternatively, data sets may be sold to analytics agencies that process the data, generate insights, and sell the insights further to the corporate sector..." It is a shame. This is people's data. …(*Interruptions*) "…which may in turn use these insights to predict demand, discover untapped markets or innovate new products." I don't know what the new products are; God help us. "Either way there is a tremendous scope for private sector to benefit from the data, and they should be allowed to do so, at a charge." Again, you are selling. "Fortunately, stringent technology mechanism exists to safeguard data privacy and confidentiality even while allowing the private sector to benefit from this data."

04.07.2019

There is nothing really left for me to speak. It is a shame. This is what has come today. I want a straight answer from this Government. What is this? It is completely in contradiction with what the hon. Law Minister of India has said here. I want a clear clarification because you are cheating the common man. I want this on record. The common man is cheated according to what they are doing. What privacy laws are we talking about? It was really interesting because the hon. Minister in his opening remark said how Aadhaar is something that they created. It is very interesting. GST, it is their Bill; Aadhaar, it is their Bill; Direct Benefit Transfer, it is their Bill; Food Security is their Bill; NREGA is their Bill; PAHAL, which they have renamed as Ujjwala, is their Bill. I would just like to put this straight on record for this entire House that all these Bills were introduced and implemented under the leadership of Dr. Manmohan Singh during the UPA.…(*Interruptions*) I would like to put something else on the record.…(*Interruptions*) As far as demonetisation is concerned, we are not taking credit for that. …(*Interruptions*) I am also supporting it with a document. This is a document of the Standing Committee of Finance (2011-12) on the National Identification Authority of India. If I remember, all of you were sitting on this side and we were on that side. As everybody knows, the Chairperson of the Committee of Finance is always from the Opposition. At that time, Shri Yashwant Sinha was the Chairperson of the Committee and the entire Committee had objected to this. This is all on record and I am willing to place it. They had said in their observations that this will make illegal immigrants entitled to an Aadhaar Card. What Shri Ajay Kumar was just now saying in his speech and what the BJP's line was in 2011, shows the constant double face of the NDA. When UPA brings something, they will object to it. But when they are in power, they are only growing on the programmes which the UPA started. It is really sad and shameful that they have benefitted from whatever the UPA had done.

04.07.2019

There are two queries that I would like to raise. The London School of Economics and the McKenzie's have shown great loopholes of privacy in this. I just want to ask a question to the hon. Minister. The General Data Protection Regulation came into existence and India also has it, but it is only in public domain. Why all these objections if the NDA was so worried about illegal immigrants getting Aadhaar Card? Why have they not brought the data protection Act?

I would like to ask a pointed question. Be it UK, be it USA, or be it Australia, all these countries do not have this identification. My question to you is this. If this is aimed at only people who are receiving subsidies from the Government, why is it mandatory?

The hon. Minister said people were so happy that they gave it for nursery admissions. Shri P.P. Choudhury said people were willing to give it to the banks. Nobody had a choice. Thank God, when the Supreme Court struck it down, they backed off. The inflated balloon which the Government had made was actually deflated, thanks to the Supreme Court. Otherwise, nobody was doing it out of choice.

Today, even if your child goes on a trip, the school is asking for an aadhar card. His aadhar card is connected to yours. He is talking about all that data with great pride. You can apply for a passport. You have a fast system now. Why is aadhar card compulsory now? What is voter's identity card then? We all have voter's identity cards. I cannot really understand why aadhar card has to be used. They take great pride in saying 65 crore people took mobiles – I do not buy that claim – because there was no option. It is almost becoming like a police state.

I would just bring up two quick points before you. The only point I want to make is this. The Government is insisting that they have saved money. This is one figure I would like the hon. Minister to clarify. He says that they have saved

over a lakh crore rupees. I really want to know considering all the benefits and subsidies where he has got this figure from. In many districts, I see – you would also see when you go to a village – a lot of people say, 'We do not fall in BPL category. Please put us in BPL category because it is 2011 census that is still going on.' So, it does not mean that just because of aadhar intervention they are saving lakhs of people. People are still hungry. Look at what happened in Bihar. A hundred and fifty children have not died because of litchi; they have died because of malnutrition. If aadhar is so effective and you are serving so many lakhs of people, how are there so many malnutrition deaths in this country? I think, this is all a hoax.

I am not against technology. This entire House in one voice is supporting transparency and honesty. It is not that only they are full of honestly. Let us not get into this high morality that this Government is obsessed with. I would just like to request this Government not to misuse our information. It is only going to become a police state if we do not get our act together.

There are a lot of cases still going on in the Supreme Court. I would just like to finish my speech my quoting Nietzsche, who is a great German philosopher, 'All things are subject to interpretation, whichever interpretation prevails at a given time is a function of power, not necessarily the truth.' So, I want to tell the BJP that just because they are in power, it does not mean all that they say is the truth.

Thank you.

04.07.2019
15.28 hrs

(Shri P.V. Midhun Reddy in the Chair)

SHRI P.K. KUNHALIKUTTY (MALAPPURAM): Sir, to talk about the Bill is not a question of who support this Bill and who are opposing it.

We all know that the world is becoming more and more digital; countries are becoming totally digital; and all the societies are becoming digital. So, digitalising is very important and this technology has helped make things simple and easier for citizens. As he said, transparency and getting benefits to the citizens are all good. The Supreme Court and that too a full Bench has debated the issue over a long time. Members have mentioned about the importance of privacy and the aspect of leakage. This was established here by those Members who spoke earlier. Why is it that the Government is not bothered about that? Is it because of any interest? Or, is it that they just do not care about that?

We are not against the Bill. There are reforms which were initiated by the UPA earlier. I was in charge of information technology for almost ten years in my State. Kerala is a State where things went on systematically.

We had campaigned for digital literacy. Later on, we initiated the process for its connectivity. We made the people of our State almost IT-literate. Aadhaar is also very popular there. People use it voluntarily for many purposes. We are not against that. Nobody can afford to be against that because the world is moving towards it. The world is becoming digital. Society is becoming digital. Today, everything is dependent on that and that is why a lot of invention has taken place in this country. Everything is IT-enabled. Voting is IT-enabled, though it has its own problems.

But the question connected with the use of technology is that of privacy and transparency. The full Bench of the Hon. Supreme Court had a quite long debate on this and it made certain recommendations. It recommended that we

should not make it mandatory. But the Government has not cared about it. The Government has not taken into consideration the entire debate and the verdict of the Supreme Court while bringing this Ordinance as well as the Bill and that is why we are criticising it.

Nobody is against the technology. Nobody is against any reform. Reform, based especially on the new technology, is the need of the hour and we should go ahead with it. But the Government should have brought the Data Protection Bill along with this Bill. Why is the Government hesitating to bring that Bill? The Government should have honoured the privacy of the people. It should have taken into consideration the dangers that the leakage of data can create. It has been established by Members here that leakage of data can have many-fold consequences. It can affect the country's security. It can affect the citizens' security. It can lead to a number of issues which can create problems for the nation itself. But the Government is very careless and it has not taken into consideration the verdict of the Court at all. Otherwise, the Government would have brought the Data Protection Bill along with this Bill.

As was mentioned by some Members, the Government is in the habit of tying the cart before the horse. At the time of demonetisation also, the Government had just declared that tomorrow onwards everybody will be transacting digitally. How can, in a country like India, one can declare that from tomorrow all the transactions will be done digitally? That is how the Government handles things. That has proved to be the biggest blow to India's economy. We are even now struggling to survive from that. That is the reality.

Such reforms, which do not take into consideration that India is a country where people are not even literate, are of not much use. How can people, who are not literate, make use of this particular technology in doing certain things? The Government has to take care of all these things before bringing in such legislations. The Bill should have enough privacy protection and transparency.

This was the basic recommendation of the hon. Supreme Court. The Government has not looked into that at all.

That is why, we are pointing out this. There is no question of not opposing. I have said that we are all for this particular reform, that is, Aadhaar. This is popular among people also. But along with that, the Data Protection Bill should also come up. I want to point out that.

In that spirit, I oppose this Bill.

[Translation]

SHRI MANOJ TIWARI (NORTH EAST DELHI): Hon. Chairperson, I would like to thank you for giving me an opportunity to speak on a very important topic. Today, on the death anniversary of Swami Vivekanand ji, paying my tribute to him I would also like to mention that in Delhi also a very gracefully decorated Rath Yatra is taken out which is like Odisha. Everywhere people are chanting Jai Jagannath, remembering that I would like to thank the Hon. Law Minister, Shri Ravi Shankar Prasad ji. He himself is always very ready to listen to others tries to bring about an improvement.

Sir, I have been getting news since the year 2009 that a 12 digit unique identity number will be introduced and thereafter it will be operated through UIDAI. It will be available to the citizens of India. When I had been getting news related to all these things at that time, I had never imagined that I would be elected as a Member. I have been getting news in this regard for years. When I was elected to this August House, then this Bill was introduced and passed. It has benefitted most of the people. I am a Member of Parliament from Delhi but originally I belong to Bihar. I belong to a village where the conditions were such grim that when we used to ask our mother for preparing meal then she would ask to arrange for fuel to cook breakfast for us because there was no LPG and we never imagined that we would ever have one.

We used to search for firewood and arrange it from other people. We used to arrange *goitha* cow dung cake and my mother used to prepare food for us on traditional Chulha with great difficulty. We never moved out without having breakfast in this situation. We realized the maximum benefit of this programme, which is very useful for all of us. I realised the important of this programme when our Hon. Prime Minister, Shri Narendra Modi ji presented a data on it. He was speaking in a programme 'Main bhi hoon chowkidar". He told that before the implementation of Aadhaar in the country, about 8 crores people were such who were not existing at all but subsidy for all such facilities was being provided against their names. I wished to know where this money was going to, who were getting benefitted by it and in what manner it was being done? Through this Aadhar now, at least 45 to 50 thousand crores of rupees of the country was saved which was being looted previously.

Just now, Congress leader, Shri Adhir ji, who is now not present in the House, has told that you are copying the same thing and why are you in a hurry? He was speaking to our Minister and asking as to what is the hurry? We didn't understand that the good things that were in favour of the people were not timely fulfilled after being introduced in order to achieve the target. I would like to know that why you ask such question as to what is the hurry instead of appreciating our learned Minister utilizing the time of the Parliament in a better way? Where is the time now? We do not have much time to provide such facilities to all the poor people and every person in the country. Every hour should be utilized in a better way. I would like to thank the hon. Minister for this.

In 'main bhi hoon chowkidar' programme the Hon. Prime Minister had presented one more data that after the introduction of Aadhaar card about 90 thousand crores of rupees have been saved in Direct benefits schemes under various schemes. If we see these 90 thousand crore rupees and those 45-50 thousand crore rupees then we understand that it was very important work when

my mother and we got a gas connection in our house. We have seen and all our colleagues have also seen such a situation. Our BSP friends and our friends from Bangal are not feeling happy with Aadhar.

Hon. Chairperson, sir, nowadays cut money is being discussed. Until the Aadhar was not introduced, the exact amount of money was not reaching the beneficiaries. Where was it going and to whom it was going it was not known. Thanks to the Hon. Prime Minister, Shri Narendra Modi ji. I have seen that scene, when Hon. Prime Minister, Shri Narendra Modi ji was to take over as Prime Minister for the first time then his mother gave him a hundred rupees. The, whole country was asking whether all the promises made by Shri Modi ji can be fulfilled with these hundred rupees only? Even MPs like me were thinking that his mother has given him hundred rupees. I was also worried how hon. Shri Narendra Modi ji would fulfil all the expectations of the people of the country? But, today we can very proudly say that our Hon. Prime Minister has fulfilled the expectations of the people and the Hon. Prime Minister has also fulfilled those expectation of the people of the country which they have never thought of with full satisfaction with the help of this Aadhaar. The Modi Government and over Minister fully follow the parliamentary process.

I was heard many of my friends. The hon. Minister is strengthening what was given in the report of Shri B.N. Shrikrishna Committee on 27th July, 2018. Now, the Hon. Minister is engaged in doing something in this regard as said by Hon. Supreme Court on 24 August 2017. I would like to thank him that under his leadership, the more we strengthen Aadhaar, the more we will be benefitted by that.

I would like to urge all of you to remember that the Aadhaar Card is the enemy of corruption. Those who like corruption will never support it. I support the amendments made in the Aadhaar Act to curb the menace of corruption. I would also like that all the members of the House should support it. We need

some more amendments and we should definitely do that. Not a single corrupt should be saved and no innocent should be punished. With this intention in mind I support this Bill and urge all of you also to support it.

SHRI KAUSHALENDRA KUMAR (NALANDA): Sir, thank you very much for permitting me to participate in the discussion of Aadhaar and other Laws (Amendment) Bill, 2019. This Bill has been brought in view of the decision given by the Supreme Court on 26th September 2018 regarding Aadhar Law, 2016. The Court has put a ban as seeking information by all the citizens through majority of votes on Aadhaar.

[English]

HON. CHAIRPERSON: Just a minute, Hon. Member, Mahua Moitra ji, we are not supposed to talk to the officials in the gallery.

[Translation]

SHRI KAUSHLENDRA KUMAR: Hon. Chairperson, Sir, with this Section 57, Section 32(2) and Section 47 etc. of Aadhaar Law, 2016 were cancelled.

As a result thereof, this Bill has been brought to make amendment in Aadhaar law. I support this Bill. I would like to tell you that ruling party or the opposition party both have supported the Aadhaar. Members of the Congress Party were already supporting this but today some friends are opposing this. Just now, some of my friends were telling that mostly the poor people are benefitted by the Aadhaar. I, therefore, support this Bill and expect that the Aadhaar amendment bill brought by the Government will help in many welfare schemes made for the poor people related to pension, ration card etc. This Bill was also necessary to stop corruption. I think that 88 crore Bank accounts have been linked with Aadhaar card in the country. 70 crore mobile phones are also linked to Aadhaar. Gas subsidy has also been linked with Aadhaar card. This is not a common thing.

I think that the neglected category of the society has also become a part of the welfare schemes. Thus, people are getting uninterrupted services. The Government is of the view that the digital journey of the country will further speed up with the Aadhaar. This Bill will help 132 crore countrymen to repose their trust, capacity and faith with regard to digitalization. The critics say Aadhaar is a risk for general citizens in regard to personal liberty, autonomy and freedom of choice. For this, people are searching historical measures. It was found that some people started using Aadhaar data for commercial purposes, this has increased doubts in the minds of the people.

Now, Aadhaar has become a useful identification for people. More than 122 crore Aadhaar cards have been issued. The Government is fully satisfied that nobody can manipulate the data of Aadhaar. All kind of concrete arrangements have been made to stop its misuse. Aadhaar law is to ensure full protection and autonomy. I, therefore, support this Bill on behalf of my party, JDU.

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[English]

SHRI P. R. NATARAJAN (COIMBATORE): Hon. Chairperson, thank you for giving me the opportunity to participate in the discussion on the Aadhar and Other Laws (Amendment) Bill, 2019.

Sir, this amendment Bill violates the Supreme Court's decision on the Aadhaar project and puts the data and privacy of Indian residents in jeopardy. Lack of transparency, public consultation and scrutiny by any Parliamentary Committee are all glaring omissions. On behalf of my Party, I strongly oppose this Bill.

This Bill is in contravention of the judgement of the Supreme Court. The question is whether it is voluntary or mandatory. According to the Government it is voluntary in nature, but all the Government organisations including Reserve Bank of India say that it is mandatory. So, it is against the order of the Supreme Court.

I would like to refer to the problematic clauses of the Bill. First, amendment to Section 4 of Clause 7 of the Aadhar Bill; amendment to Section 4 of Clause 24 of the Indian Telegraph Act; insertion of a new Section 11A in Clause 25 in respect of the Prevention of Money Laundering Act, 2002. All these amendments are meant to benefit the private managements.

So, I am opposing this Bill. The Bill may allow private entities to continue to hold Aadhaar data in disregard for the Supreme Court judgement. The Government's latest move encourages continued collection of citizens' data through the use of Aadhaar-based authentication which again is contra to the Supreme Court judgement and it reflects the intention of the Government.

Fourthly, privacy and security concerns related to Aadhar remain unaddressed. A special law like the personal data protection law must be there.

It is not there now. Public consultation is not done by the Government properly. So, I oppose the Bill.

SHRIMATI ANUPRIYA PATEL (MIRZAPUR): Hon. Chairman Sir, on behalf of my Party, Apna Dal, I rise to speak in support of the Aadhaar and Other Laws (Amendment) Bill which has been brought to replace the Ordinance promulgated on 2nd March, 2019.

As we all know, this Bill also intends to amend the Aadhaar Act, 2016, the Indian Telegraph Act, 1885 and the Prevention of Money-Laundering Act, 2002.

We all understand the background of bringing this Amendment Bill today. It was in 2017 that the Supreme Court held that the right to privacy is a fundamental right under article 21 of the Constitution. It then went on to further examine the various claims which were made with respect to the validity of the Aadhaar Act only to further rule that Aadhaar does not intervene with the right to privacy of any individual. But at the same time, it also banned mobile service providers and banking service providers to use Aadhaar authentication as a means of verifying the identity of their clients without a law permitting to do so.

It was in the context of these developments that the new Aadhar (Amendment) Bill is being brought by the Government. It makes certain very important provisions which says that now an individual may voluntarily use his Aadhaar number to establish his identity either by Aadhaar authentication or by means of an offline verification.

Also, in the case of a child's enrolment, the agency has to necessarily seek the permission of the parents or the guardian and once the child attains the age of 18 years, he may even cancel his Aadhaar number.

The third and the most important provision is, the mobile service providers or the banking companies can verify the identity of their clients by using three

important documents. It could be Aadhaar authentication or passport or it could be any other document which is notified by the Government of India.

This is where my first question arises. I request the hon. Minister to pay attention to this point. Consider a situation where the other documents which we are talking about in the provisions are not being notified by the Government. Then the only two options that we are left with is either Aadhaar authentication or passport. Now, if an individual does not have a passport also, then the only option that he or she is left with is Aadhaar authentication. That means we are back to square one. We are coming to a situation where we are making Aadhar authentication mandatory.

I would like the hon. Minister to please explain as to what we are supposed to do in such a situation, if it arises, which most likely will arise in some or the other cases.

The second question that comes to my mind is, the Supreme Court has said that Aadhaar authentication data should not be retained for a period of more than six months but Aadhaar regulations do not specify any certain duration. Would the hon. Minister shed some light on what exactly is going to be the duration for retention of Aadhaar authentication data?

The third question which comes to my mind is regarding biometric information. As per the Bill, biometric information includes our finger prints, our photographs and our iris scans. And the Bill says that another category or type of biometric information can only be decided by the UIDAI.

What I wish to say is that the other categories of biometric information must be prescribed by the Parliament and not by the UIDAI. The Parliament is supreme. So, I want to understand from the hon. Minister as to what is the reason for giving preference to UIDAI over Parliament in prescribing the newer forms of the biometric information.

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Hon. Chairperson, the next question that comes to my mind is regarding what the other hon. Members from the BJD, the TMC and the Congress Party also said. There was a Committee set up under the Chairmanship of Justice B.N. Srikrishna which suggested a draft Data Protection Bill. I really want to understand if the Government has any intention of introducing that Data Protection Bill or not. If at all it has the intention, when is it going to bring that Data Protection Bill?

So, these are certain queries which came to my mind. I would request the hon. Minister for pinpointed clarifications while he replies to the House. That is all I wanted to say. I support the Bill. Thank you very much.

[Translation]

SHRI SANJAY KAKA PATIL (SANGLI): Hon. Chairperson, Sir, with your permission, I rise to express my views in support of Aadhar Amendment Bill, 2019. The present Aadhaar Amendment Bill has been brought in order to strengthen the basic act and to easily use it as an optional identity card for services like banking and getting mobile connection. The passing of this Bill will give a new strength and power to the legal existence of Aadhaar.

Hon. Chairperson Sir, this Aadhar Bil is not merely a name 'Aadhaar' but it is an important step taken in the direction of eradication of corruption, for empowerment of the lower class of the society, for clear intention of our Government and for fulfilment of the idea of Antyodaya of Pandit Deen Dayal Upadhyaya ji. The objective of the original Act is to provide state assistance based on various benefits and services to these categories of the society for the welfare and benefit of which these have been started through an efficient, transparent and well-planned mechanism. It also aims at removing the useless burden on the Consolidated Fund of India and to identify such people who are

illegally getting the benefit of various Government schemes and creating heavy burden on the exchequer. Through this Aadhaar the problem of identity in many areas of our country will get a direction and also be solved because Indian citizens will get digital identity through this Aadhaar as a result of which the misuse of Government fund and corruption will be controlled as well as foreign infiltrates will also be identified who are illegally residing in India. It will also help in controlling foreign infiltration in future which has created tension in many states of the country.

Hon. Chairperson, Sir, in fact Aadhaar in India is the biggest digital I.D. platform, which covers more than 123 crore persons. There has never been and will never be any such big scheme of digital empowerment in the world. Many such best provisions have been made in the Aadhaar Act though which this system can be made more smooth and easy by making every sector of the economy cashless and paperless. This has made services like Aadhaar authentication and KYC more accessible and as a result of this important changes have come in Indian trade and Government mechanism. With this, there will be a new revolution in the banking system and with the passage of time, we will find a new utility in every sector of life. After Aadhaar getting a statutory and legal recognition, the system of supply of gas, manure, fertilizers and rice etc. under Public Distribution System (PDS) will become more easy.

16:00 hrs.

The subsidy given for seeds will be utilized in a better way. With this after Aadhaar is legally recognized, the burden of subsidy given by the Government for LPG, Kerosene, Food and Fertilizers will be reduced to about one lakh crore rupees. Besides that with the cash transfer in various schemes, there is a possibility in various schemes, there is a possibility of huge profit in the next few

years. Today, the Government has announced MSP on 14 kharif crops. Under the MSP, the payment for the crops procured by the Government can be made by direct cash transfer into the accounts of the farmers, thereby middlemen can be removed from the system.

16:01 hrs.

(Shrimati Meenakashi Lekhi in the Chair)

With this, our concept of welfare state will become more strong and the benefits of various welfare schemes related to social justice will reach to those weaker and backward classes of the society directly in a transparent manner, the welfare will reach to those people these schemes have been implemented. In this regard, you will remember that during the period of the previous Government, about 6 per cent of the benefit of such schemes was reaching to the actual beneficiaries. Today, I would like to say with proud that our Government has made direct benefit transfer of about 2.5 lakh crore rupees during the last financial year through Aadhaar and even a single paisa has been not used in corruption.

Our Government has saved 42000 crore rupees by detecting about three crore eighty lakh fake LPG connections through Aadhaar. In this regard, information related to Direct Benefit Transfer is very important. Out of 1119 schemes being run by 56 ministries, 452 schemes are based on Direct Benefit Transfer. During 2019-20 up to March 2019 Rupees 45105 Crore have been given through DBT. During this relevant year, the number of data of transactions have been 34 crore. In view of all these, I rise to support this Bill. Hon. Minister has brought a very good Bill. I support this Bill

[English]

SHRI MANISH TEWARI (ANANDPUR SAHIB): Madam Chairperson, I rise to speak on the Aadhaar and Other Laws (Amendment) Bill, 2019.

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Before I come to the substantive aspects of the Amendment Bill, I have a submission which you may like to flag for the consideration of the hon. Speaker that when the Government moves an Amendment Bill, perhaps it would be appropriate to move the original Bill along with it because it becomes very difficult to get the context of the amendments if the original Bill is not appended to the Amendment Bill. Perhaps the Chair and, of course, the Treasury Benches would consider it. I think it would really set a healthy precedent in terms of understanding what really the Amendment Bill sets out to do.

THE MINISTER OF LAW AND JUSTICE, MINISTER OF COMMUNICATIONS AND MINISTER OF ELECTRONICS AND INFORMATION TECHNOLOGY (SHRI RAVI SHANKAR PRASAD): Madam Chairperson, I would like to inform the hon. Member that while replying to the debate, I will myself be placing the original Section 7, where just two words are being added. I will explain that.

HON. CHAIRPERSON: No, he is saying something else. He is saying the whole original Bill should be appended.

SHRI MANISH TEWARI: Madam Chairperson, it was not in the context of a particular section. This was a generic observation with regard to all Amendment Bills that when you move an Amendment Bill, if you can annexe the original Bill, at least the context becomes clear. That is the short point I was trying to make.

This particular Amendment Bill actually provides a very good opportunity to revisit the founding principles of the entire Aadhaar Programme. On the 28th of January, 2009, the then Government – it was the UPA Government – came out with a Notification creating the Unique Identification Authority of India. That Notification listed 13 objectives which the UIDAI was supposed to achieve.

It is unfortunate that the Government decided to pick one of them, which is defined usage and applicability of UIDAI for delivery of various services when

it came to enacting legislation, and that too in the form of a Money Bill in order to provide a legal architecture for a framework which had been in place between 2009 and 2016. Now, what exactly was the rationale of the entire Aadhaar programme? The rationale of the entire Aadhaar programme was that there were millions of people who were bereft of any identity and therefore they had a difficulty in being able to access basic services *[Translation]* Such as Driving licence, Ration Card, PAN card and many other certificates which can ensure his or her identity. Aadhaar Programme is aimed to implement that. When the government introduced the Bill in 2016, as I have already said, it was done considering that objective as its main basis, *[English]* this Aadhaar (Targeted Delivery of Financial and other Subsidies, Benefits and Services) Act, 2016 was enacted. When this Act was enacted, it created a consternation across the country. It seemed as if the entire intent of the Government was to reduce the human-being to a single number. I would like to draw the attention of this House, without casting aspersions on anyone that when last time in history this was attempted, it had very devastating consequences. That is why, a number of concerned citizens decided to move to the Supreme Court in order to challenge the very vires of this Aadhaar Act 2016 and that resulted in two very seminal judgements – a 90 judgement which upheld the Right to Privacy to be a Fundamental Right and the second judgement which actually substantively deliberated on various aspects of the Aadhaar Act. This Amendment Bill, which the Treasury Benches have brought, which the Government has brought, actually seeks to give effect to those two judgements of the Supreme Court of India.

The germane question is, does this Amendment Bill actually give effect to these two judgements which the Supreme Court had delivered. I would like to draw the attention of the House to one very salient aspect of that judgement which has been overlooked in the Amendment Act and that is the right to be forgotten.

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With your permission, I would like to just read a few lines from the concurring judgement of Justice Sanjay Kishan Kaul. Para 636 says:

> "The European Union Regulation of 2016 has recognized what has been termed as the Right to be forgotten. This does not mean that all aspects of earlier existence are to be obliterated, as some may have a social ramification. If we were to recognise such a similar right, it would only mean that an individual, who is no longer desirous of his personal data to be processed or stored, should be able to remove it from the system where the personal data information is no longer necessary, relevant, or is incorrect and serves no legitimate interest."

The judgement further goes on to elaborate the conditions under which this particular right may not be exercised. However, this Bill, which has been brought by the Government gives the child the right that when he attains majority, he can possibly have his Aadhaar Card or his Aadhaar identity to be cancelled. Now, the germane question which arises is that when that right is available to a child, why is that right not available to an adult.

In this world, the number of people who are there in the digital space and equal number of people also want to exercise the Right to be Forgotten, they want to exercise the inalienable Right to Privacy, which has been upheld as a Fundamental Right by the majority judgment or a unanimous judgment of the Supreme Court.

I would like to submit to the hon. Minister for his consideration that the Right to be Forgotten must also form a part of the Aadhaar Act. Therefore, if somebody's Right to be Forgotten does not transgress and impinge upon certain very essential national security prerequisites, he should have the right to be able to delete his Aadhaar Number and be not a part of the Aadhaar ecosystem. I

would like the Minister to kindly consider this suggestion because there is a difference between deactivation and cancellation. The Aadhaar Act provides for deactivation under certain circumstances -- most essentially that if you do not use your Aadhaar Number for three years. But there is an inherent distinction between deactivation and the right to voluntarily be able to cancel your Aadhaar Number.

There are just a few more things that I would like to flag for the Government's consideration. Now, Section 33 (1) of the Aadhaar Act provides for oversight by the Government in case of release of Aadhaar data. I would like to ask myself that 'why does this oversight have to be executive oversight?' The Supreme Court in its judgment has called for judicial oversight. May I very humbly submit for the consideration of the Government and this House that 'why can this not be substituted by Parliamentary oversight?' There has been a long pending demand that even the functioning of the intelligence agencies should be subject to Parliamentary oversight. I remember that when I was a Member of not the previous, the Lok Sabha before that, I had moved a Private Members Bill in that regard.

Therefore, this may just be your good place to begin that when the personal data of citizens has to be disclosed, that oversight should not be exercised by the Executive; that oversight should be exercised by the Legislature because I do not think that in our Constitutional scheme, even with the Doctrine of Separation of Powers, if the Legislature was to exercise that oversight, it would fall foul of the Constitutional scheme.

Madam Chairperson, the third thing, which I would like to flag for the consideration of this House and the Government is the Chapter on Civil Penalties, Clause 33(b) (1) of the Bill. The Bill mandates that the decision of the Adjudicating Officer, who is a Joint Secretary rank officer of the Government of India, should actually be subject to an appeal before the TDSAT. I ask myself a

question that 'why do you not make the decision of the Adjudicating Officer subject to the writs jurisdiction of the court?' The reason I say this is that because if you look at the structure of the Telecom Disputes Settlement and Appellate Tribunal, in 2004 we had entrusted it with the function of adjudicating disputes in addition to Telecom, which arise in the broadcasting sector. Then, we decided to also make it the Cyber Appellate Tribunal and the Appellate Tribunal of the Airports Economic Regulatory Authority. The TDSAT is already overloaded. It is not able to discharge these multifarious functions.

So, under these circumstances, rather than entrust another responsibility upon the TDSAT, may I submit to the hon. Minister that perhaps it would be appropriate, since the decision of an Adjudicating Officer is an Executive decision, and in any case, is subject to the writ jurisdiction of the courts, it may be worthwhile to pro-form that in the Bill, rather than have an appeal to the TDSAT?

Let me come to my two most fundamental objections to this particular Amendment Bill, which have already been flagged by my colleagues earlier; and they pertain to Clause 24 and 25 that seek to amend the Telegraph Act and the Prevention of Money Laundering Act.

Now, a bare reading of the Supreme Court Judgement, which upheld the *vires* of the Aadhaar Act, makes it very evident that it partially struck down Section 57 of that Act which deals with private cooperate entities being able to access Aadhaar data.

Now, there is a certain amount of chicanery which is involved, if I may use the word, in the formulation of this particular provision. It adds the word 'voluntary'.

SHRI RAVI SHANKAR PRASAD: I do not think, it is Parliamentary.

SHRI MANISH TEWARI: Well, in the sense, if it is not Parliamentary, it can be expunged or you can move an objection to that Mr. Minister.

PROF. SOUGATA RAY (DUM DUM): The word 'chicanery' is not unparliamentary.

SHRI MANISH TEWARI: Anyway, the Minister or the Government can move an objection to that.

SHRI RAVI SHANKAR PRASAD: Sougata Roy ji, a little humour should be allowed in the course of this long debate. That is what I told the hon. Member.

SHRI MANISH TEWARI: The point is well taken Mr. Minister. In so far as Section 57 is concerned, the intent of the Supreme Court Judgement was to have an explicit bar with regard to private entities being able to access Aadhaar data. Now, by amending the Telegraph Act, 1885 and the Prevention of Money Laundering Act, 2002 as also allowing telecom companies and banking companies to be able to access Aadhaar data by simply inserting the word 'voluntary', it essentially means nothing. If you are in a situation whereby that is the only method in which you will be able to access a particular service, it goes against the Constitutional scheme where the citizen is at the core of the Indian Constitution. Therefore, the Minister may consider amending or revisiting this particular provision.

My final point is this. If data is the new oil and the Government is in possession of the personal data of 122 crore citizens, what stops the Government from becoming a data refinery? The reason why I make this point consciously is that if you read the Economic Survey in juxtaposition with certain provisions of this particular Bill, it makes it amply evident that the intent of the Government, as expressed in the Economic Survey, is to allow corporate entities to be able to monetise that particular data.

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I think, under those circumstances, Madam Chairperson, these are extremely serious concerns which would impinge upon the Right to Privacy and I would urge the Government to consider all these objections very very seriously.

Thank you very much.

HON. CHAIRPERSON: Dr. Shrikant Eknath Shinde. You have five minutes and please stick to the time because there are several other speakers to speak. We have to also keep time for Division, etc.

[Translation]

DR. SHRIKANT EKNATH SHINDE (KALYAN): Hon. Chairperson, Madam, I would like to thank you very much for giving me an opportunity to express my view on Aadhaar.

Today, the work of providing subsidy amount under different schemes to common people is being done through Aadhaar, when the question of providing any kind of subsidy directly to a common man arose, then the biggest problem before the Government was that the common men had no access to the banking system. Only the Hon. Prime Minister Shri Narendra Modi ji has done the work of making the banking system as a part of life of the common man. Under this, 'Jan-Dhan' Yojana was launched and about 30 crore accounts were opened. After that, the work of linking these bank accounts with Aadhar has also been completed. Later on, 'Jan-Dhan' and 'Aadhar' have become an example of relationship between the Government and common man.

The aim of bringing amendments to the Act of the year 2016 is very comprehensive. *[English]* The aim is the targeted delivery of financial and their subsidies, benefits and services. *[Translation]* The Supreme Court has also given

its verdict in favour of this Bill. The Supreme Court has said that in regard to 'Aadhaar' right to privacy is the fundamental right.

I would like to thank the Government for solving the issue related to privacy and security to a great extent by making amendment in this Bill and has prohibited also the misuse of data privacy. After this amendment, every person will have the freedom to give his Aadhaar Number to any company or not. *[English]* There will be no compulsion on anyone.

In this, there will be an amendment under which one number will be enough under which the real Aadhaar number can be hidden. It is not only the fundamental right to privacy but respect of security of a person is also its objective. After attaining the age of 18 years, an adult child can cancel his or her Aadhaar number. It will not be compulsory but I would like to urge the Government that whenever any person comes with the request to cancel his or her Aadhaar number then his or her complete data should be deleted. Whether it is Iris scan or it is biometrics of that person, all his record should be deleted. If all types of record remain with the Government, then perhaps the chance of its misuse may increase in future. Today, 112 crore people have their Aadhaar, it means that Aadhaar card has become the pivot of the mechanism of the whole country.

[English]

Aadhaar has become an important tool for transformation, good governance, and empowerment of people. It has brought transparency in delivery system and stopped leakages. Now, because of Aadhar, benefits directly reach the beneficiary. *[Translation]* Now, there is no need of any middleman, whether it is DBT, LPG subsidy, scholarship, MGNREGA or Pension, in all cases the Government has stopped the business of middlemen. Today, I would like to give

a small example here. *[English]* Pre-Aadhaar, the demand for jobs in drought-stricken areas was lower by eight per cent than in unaffected areas. Post-Aadhaar, the number of people demanding work was higher by 17 per cent in drought prone areas. *[Translation]* the objective of MGNREGA has been fulfilled after the introduction of Aadhaar, *[English]* Total savings because of Aadhaar linkage in just two-and-a-half years, in just a few schemes were Rs. 49,000 crore. *[Translation]* The Government has so far transferred 7.4 lakh crore rupees in the accounts and has saved 1.4 lakh crore rupees. I would like to give one more example.

[English]

An interesting event happened in Bangalore in July of 2017; three mentally challenged kids were reunited with their long-lost parents. Narendra, Omprakash, and Neelakanta were three differently abled kids in an orphanage in Hosur. Their lives witnessed a miracle when the UIDAI team in its drive of enrolling them for Aadhaar found they were already registered, for good. It took very less time for the officials to then trace the kids to Indore, Jharkhand, and Tirupati respectively. One can feel how thankful and blessed the parents should have felt. Aadhaar is definitely starting to prove its mettle.

Compliance through Aadhaar is now voluntary. But most Indians are not aware of how their personal information can be used or misused. Neither are they aware of their legal rights. Reportedly, there also have been some errors in the registration process. Some people had received Aadhaar with wrong photographs or fingerprints. The detailed personal information is not being treated with the required sensitivity for privacy concerns. Major financial transactions are linked with information collected in Aadhaar. Data leaks are a gold mine for criminals who now use sophisticated hackers.

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Aadhaar's principal goals were to end fraud and to reach welfare schemes to the poorest. So, I urge upon the Government to look into this data leakage and I would also like to suggest that data stored by mobile companies or by any other agencies should be permanently deleted so that its misuse can be prevented. The Government therefore needs to find a solution that would not compromise individual privacy concerns while making the process of identity authentication easy and cost-effective. With this, I and my Party, Shiv Sena, support this Bill. Thank you.

***SHRI M. SELVARAJ (NAGAPATTINAM):** Madam Chairperson. Vanakkam. I thank you for allowing me to speak on Aadhaar and related laws Amendment Bill. I wish to express my views on this Bill where we discuss the use and need of Aadhaar card. Aadhaar is an identity of the common man. This is the slogan of the Union Government. At the time of its introduction, Government called it as private data pertaining to an individual. Every citizen of this country has various identity cards. At the time of birth we get birth certificate. While getting education, we acquire school certificates. Once we attain 18 years of age, we get Voter I card. After marriage we get ration card as an identity. We have commercial license when engaged in a profession. We have PAN card when we pay tax; and driving license for driving vehicles. Government employees do possess an identity card issued by their Office. Even though we have different identities, whether or not we want this Aadhaar is a question bothering our minds very often. I wish to remind that Hon. Supreme Court has not made Aadhaar mandatory. Moreover what is the need for giving importance to Aadhaar card by this Government. Aadhaar is a private document of an individual. Generally, in order to get a mobile connection, the Aadhaar card details are sought by the private companies like Jio, Airtel, Vodafone and others. I want to ask how the privacy of the individual concerned is protected.

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*English translation of the speech originally delivered in Tamil.

Nowadays bank accounts and other documents are linked with Aadhaar. Anti-scoial elements engage in fraudulent acts to siphon off money from the people be it an ordinary poor person or a rich one. Through hacking and cracking these anti-social elements take away the hard earned money without the knowledge of the innocent people. They fall prey to these anti-social elements. These incidents are taking place throughout the country. Police personnel through cyber crime department are trying to nab these culprits.

But already Aadhaar has the biometric information. Now the Amendment 2AA talks about eco system. Aadhaar eco system included enrolling agencies, register requesting agencies, offline verification seeking entities or any entity or group of entities as may be specified by the regulation. While seriously looking into collection of biometric information for Aadhaar, it is important to say that we came to know through newspapers, one of the pillars of democracy, and on social media that Aadhaar Cards were thrown away near banks of the rivers, on the road side, and near garbage centres. This is due to the private companies which are authorised to print Aadhaar cards. They have done the maximum damage to this system. With the advent of technology, morphing and mimicry are used to cheat people. The future of poor people is at stake. Aadhaar is not mandatory for receiving subsidies from the Government. In that case what is the need for an amendment to the Aadhaar Act of 2016?. Madam, I entirely oppose this Bill. Thank you. Vanakkam.

SHRI P. RAVEENDRANATH KUMAR (THENI): Madam, thank you for the opportunity to place my views on the Aadhaar and Other Laws (Amendment) Bill 2019 on behalf of my AIADMK Party.

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I wholeheartedly support this Aadhaar and Other Laws (Amendment) Bill, 2019.

The present Bill is brought forward by the Government with an aim to ensure the safeguard for personal information of Aadhaar card holders and their individual identity.

The issue of Aadhaar card was conceptualized a decade before but it has been implemented effectively only after the year 2014 by our hon. Prime Minister. There was a perception at the initial stage of this scheme that the technology envisioned for this scheme is unrealistic, and when this is being encountered with operational problems, that would be amplified in a large scale. Further, in view of the fact that our country has different kinds of people with different culture and tradition, maintenance of Aadhaar card system was considered as a challengeable one.

But now this has been achieved by the Government under the great leadership of hon. Prime Minister, Shri Narendra Modi Ji, and this amendment is the perfect example of his ability for overcoming challenges.

Aadhaar is now backed by a robust and healthy law. This Act is playing a significant role in linking the physical with the digital to facilitate seamless delivery of services in a transparent manner. The JAM trinity, that is, 31 crore Jan Dhan bank accounts, 123 crore Aadhaar and 121 crore mobile phones, the delivery of welfare measures and benefits directly to the bank accounts of the poor under the DBT, have led to a saving of Rs.1.41 lakh crore during the past five years because the digital identity removes middlemen and fictitious claimants.

This Bill will amend three laws, namely the Aadhaar Act, 2016, the Indian Telegraphs Act, 1885 and the Prevention of Money-Laundering Act, 2002.

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Out of 130 crore people in the country as many as 123 crore people have reposed faith in Aadhaar. Our hon. Prime Minister, Shri Narendra Modi Ji strengthened it with the Aadhaar and Other Laws (Amendment) Bill, 2019. It empowered people, significantly reduced corruption and improved public service delivery to benefit poor citizens.

Subsequent to this amendment, no individual shall be compelled to provide proof of possession of Aadhaar number or undergo authentication for the purpose of establishing his identity unless it is so provided by a law made by Parliament.

The move is aimed at making Aadhaar 'people friendly'. The new amendment uses the word 'voluntary' repeatedly in order to highlight the voluntariness of Aadhaar verification.

It will also pave the way for the use of alternative virtual identity number to conceal the actual Aadhaar number of an individual. The Bill seeks to give a child an option to exit from the biometric ID programme on attaining 18 years of age. Earlier, a young adult did not have the provision of opting out.

The proposed amendment makes a provision in Section 8 of the Aadhaar Act which provides an alternative means of identification if a person fails to authenticate himself through Aadhaar due to illness, injury or infirmity owing to old age or any other technical reason.

It proposes deletion of Section 57 of the Aadhaar Act relating to use of biometric identifier by private entities.

This amendment gives power to the UIDAI to issue directions to any entity in the Aadhaar ecosystem.

The changes proposed include a civil penalty of up to Rs.1 crore on entities that violate the provisions of the Aadhaar Act, with an additional fine of up to Rs.10 lakh per day in case of continuous non-compliance.

With a vision to transform India into a digitally empowered society and knowledge economy, which is the focal point of our hon. Prime Minister, Shri Narendra Modi Ji's, this 'New India' push is centred on Digital Aadhaar with three key areas, namely (1) utility to every citizen, (2) governance and services on demand and (3) digital empowerment of citizens.

Whichever Government had proposed Aadhaar, our hon. Prime Minister, Shri Narendra Modi Ji, who, having ultimate noble intentions of ending corruption in the welfare of the citizens, deserves all the praise for cordially implementing Aadhaar to eradicate all malpractices of multiple and false documents, throughout the country. In view of these good features, I support this amendment. Thank you.

SHRI ASADUDDIN OWAISI (HYDERABAD): Thank you, Madam, Chairperson. I stand here to oppose the Bill. This is a classic example of *halala.* The Supreme Court has said that the private entities cannot get the Government data. The marriage was dissolved between the Government and the private entities. So, this is the classic case of halala.

HON. CHAIRPERSON: I hope you are against it.

SHRI ASADUDDIN OWAISI: Madam, there is no *halala* in Islam. But in the governance, this is *halala*. …*(Interruptions)*

This Government is dancing to the tune of private industry and commercial profit rather than protecting the privacy of individuals. This purported Bill, which the hon. Minister has moved, is a marriage between the State and the corporate powers which consolidated and centralized all the powers in their hands.

Thirdly, this Bill also shows us the ill effects of electoral bonds. If an electoral bond is given to any party, including mine, the world does not know who has given it. There is a saying in the public – 'you give us electoral bond,

after you come in power, we will make you James Bond'. This is the classic case of that.

Madam, why do I say that? Let us see clause 24, which amends Section 4 of the Act. This completely violates the fundamental rights, the right to livelihood, the right to equality and everything. Unfortunately, this Government does not believe in jio aur jeene do. This Government only believes in 'Jio, Jio, Jio, Jio and Jio'. That is why they have brought in this Bill.

Madam, they have asked for humour, I request them not to take me seriously. …*(Interruptions) [Translation]* It seems as if you will do my encounter…*(Interruptions)*

SHRI RAVI SHANKAR PRASAD: Owaisi ji, I even take your humour seriously.

SHRI ASSADUDDIN OWAISI: Sir, thank you very much. But, your face expressions show that you will do my… *(Interruptions)** Sir, please do not do so…*(Interruptions)*

[English]

Madam, what does the Supreme Court says in respect of Section 33(1)… *(Interruptions)*

[Translation]

SHRI GANESH SINGH (SATNA): Hon. Chairperson Madam, whatever he has said, is not true at all. There should be expunged from the proceedings… *(Interruptions)*

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* Not recorded.

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SHRI ASSADUDDIN OWAISI: O.K. expunges them from the proceedings… *(Interruptions).* Sorry Sir, you are angry, please take some water …*(Interruptions)*

[English]

HON. CHAIRPERSON: The words used by the hon. Member may please be removed. That should not go in record.

SHRI ASADUDDIN OWAISI: Madam, you are an eminent lawyer, you can understand my language, the Minister cannot.…*(Interruptions)*

In respect of Section 33 (1), the Supreme Court said that Aadhaar holder should be heard and not just the UIDAI. You do not do that.

In respect of Section 33 (2), again the Supreme Court asked to have a sitting High Court judge. But you do not follow it. You are violating it.

Then, what did the Supreme Court say about private entities not getting the information? They called that dissemination and spread of private information to private entities is a vice. You are making it a virtue. I congratulate you. You do not see a vice in it but see a virtue in it. That is why you bring in this Bill.

Madam, when the Government says that it is 'voluntary', I want to say that it is not 'voluntary'. If you read the Bill carefully, it says, 'the relevant entity shall identify clients'. As a law student we are taught what the word 'shall' mean. You cannot pull over our eyes. You want to help private entities. I do not know why this Government has so much love for private entities. Why are you afraid of them? A man living in a huge building in Mumbai cannot take on the Government of India in New Delhi. Why are you succumbing to him?

Madam, I will conclude after talking about clause 8. Bringing it in the Bill means you are decreasing the powers of Parliament. Why are you doing it, when you believe in the separation of powers? The Parliament is sovereign. Clause 8,

which mentions about Section 23 under clause 9, will make UIDAI impartial arbitrator. You will have no control over it. The UIDAI can appoint anyone, who will have conflict of interests. How can you stop them? The Revenue Secretary is the Head of GSTN. The same can happen over here. Why are you reducing the powers of Parliament? Why are you bringing down the dignity of this august House? Today you are a Minister, tomorrow you may not be there. Today I a Member, tomorrow definitely I will not be here. But why are you demeaning this House by bringing in this Bill?

Then, comes the issue of offline verification.

Madam, a terrorist attack happened in Pathankot despite our Prime Minister going to Sharif's house. Did those terrorists have Aadhaar Card? This online and offline verification will lead to fraud. I do not know why you are bringing this.

Madam, I conclude because of paucity of time. The Minister says that they have brought it because of the Supreme Court's judgement. Sir, let me bring it to your notice as you are an eminent lawyer. Your clause 5 violates the judgement mentioned on page 387. Your clause 5(7) violates paragraph 319 of the judgement. Your clause 6(a) violates paragraph 390 of the judgement. Your clause 2(aa) violates paragraphs 402 and 333 of the judgement. Your clause 11 violates paragraph 408 of the judgement. Your clause 12 violates paragraphs 408 and 333 of the judgement. Your clause 18 violates paragraph 409 of the judgement. Your clause 23 violates the judgement of the Supreme Court as mentioned in page 410. So, this is unconstitutional.

Be rest assured that if you pass this Bill on the basis of brute majority, this will be challenged in the Supreme Court of law. You are doing a crime over here for which the coming generation will have to suffer.

Thank you.

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SHRI RAM MOHAN NAIDU KINJARAPU (SRIKAKULAM): Madam Chairperson, I thank you for giving me an opportunity to speak on this very important Bill, the Aadhaar and Other Laws (Amendment) Bill, 2019. I have been listening to all other senior Members who have spoken before me and most of the points I wanted to raise have already been put on the table. So, I would like to be very concise since the time is also very concise and put forward the points that I want to make on behalf of my party.

Firstly, I do not think that there is any discussion on what the Aadhaar is intended to do. The way it started, it was for the betterment, for the efficiency and transparency in the way the Government wanted to disburse its funds to the poor and rendering of Government services or money reaching the poor. That is something which is still agreed upon by all Members on each and every side.

What is for discussion right now is the other side of this Aadhaar Bill which infringes on the personal privacy and the data security. These are the two issues that have been mentioned in the Supreme Court judgement also in the K.S. Puttaswamy *versus* Union of India. The judgement said that the Aadhaar Number and the Aadhaar-based authentication by private entities is unconstitutional and mandated linking of mobile connections with Aadhaar is disproportionate and unreasonable State compulsion and also linking of Aadhaar with bank accounts is also unconstitutional. This is what the Supreme Court says in its judgement.

Now, I would like to ask the Government what part of this is missing from the Bill. The Government is bringing this Bill just to show to this House and to the country that the Supreme Court has said something regarding Aadhaar and I will need to do something, but how much of the Supreme Court judgement is being translated into this Bill is not shown clearly. That is what I want to point out right now. What is the privacy issue? The other Members have also mentioned that the Data Protection Act is the need of the hour. It has to be brought forward first. That needs to be tabled and discussed thoroughly. Until each and every

citizen of this country is sure about whatever data is going out from his privacy, it is being protected, I cannot make sure to pass this Aadhaar Bill. That is not clearly shown by this Government.

The other thing is that allowing the private companies to still hold Aadhaar data is not right. They have put in the word 'voluntarily', but that is not the case. What is there on the paper is very much different from what will happen on ground. So, the hon. Minister needs to answer clearly how deleting data from these private entities will be made possible.

First of all, I will quote some words from the prominent telecom companies. After the Supreme Court judgement, one of them says that 'Aadhaar based verification addresses the security concern of the country and is inconvenient to the customer'. That is against what the Supreme Court is saying. The other one, much important bigger player, which Owaisi saheb has also mentioned, says that '90 per cent of subscription for our company was through Aadhaar. So, Aadhaar authentication should continue and Central Government should make a law so that this Aadhaar-enabling continues.' I would only like to ask this to the Central Government. Is it listening to the common citizens of this country or is it listening to the private entities of the country? What happened is that to save our constitutional right to privacy, people had to go to the Supreme Court to protect it.

And the private entities, to save their own companies, have approached the Government and they have got this Bill. Doing this is a serious shame on this country. That is why I appeal to the Government again to re-deliberate this whole thing. This was the speech that I prepared. But after coming here and listening to what Shrimati Supriya Sule ji had quoted from the Economic Survey, I feel the whole debate goes to another level. Now that the data is being monetised, you can sell the data. This is the intention of the Government. Now, if this is the intention of the Government, we, from our Party, demand that this Bill needs to

be further deliberated. It needs to be sent to the Committee. Proper discussions need to take place at all levels. All stakeholders need to be brought in. We need to give the confidence to the citizens of India, not to any private company in this country. That is what the Central Government should make sure.

If you give me thirty seconds more, I will make one thing clear. Members from YSR Congress Party, while giving their speeches, made baseless allegations on the Telugu Desam Party. I would request you to expunge them. This is a data which was there in public domain. …*(Interruptions)* I would not have raised this had they not raised it. …*(Interruptions)* It is my right. …*(Interruptions)*

HON. CHAIRPERSON: Shri Naidu, we will go through the records and then a decision will be taken.

… *(Interruptions)*

SHRI RAM MOHAN NAIDU KINJARAPU: I request you to delete it from the records. …*(Interruptions)*

HON. CHAIRPERSON: It will be done only after going through the records.

… *(Interruptions)*

SHRI RAM MOHAN NAIDU KINJARAPU: I would not have mentioned it had they not mentioned it. …*(Interruptions)*

HON. CHAIRPERSON: We will go through the records. I do not want this slanging match to go on.

SHRI RAM MOHAN NAIDU KINJARAPU: They are making baseless allegations.

[Translation]

SHRI RAMESH BIDHURI (SOUTH DELHI): Madam, you have given me an opportunity to speak on Aadhaar and other laws Amendment bill. Aadhaar means

targeted delivery of financial and other subsidies, benefits and services. So much is being said in this regard. Someone is saying that he has studied abroad. Someone is the son of the educated parents, but these people want to misguide other people in different ways. These people sitting in front had brought the Aadhaar in the name of bringing something unique. When they brought this, then there was no such law. By giving contracts to their favourite companies, they tried to earn money and favoured Bangladeshi people and Rohingya people and created vote bank for themselves. These people had brought Aadhaar with this mindset only. When our Government and Hon. Prime Minister brought this Aadhaar, then they started shouting making hue and cry over it saying that they had brought this bill. But the fact is that when in the year 2016 when it was brought after enacting a law then BN Srikrishna committee was constituted on 27th July, 2018 *[English]*. It is for free and fair digital economy protecting privacy and for empowering Indians. The Committee had recommended certain amendments to Aadhaar Act in its Report. *[Translation]* Therein Hon. Supreme Court has said. I think, the amendment that has been brought is only in regard to one point made by the Supreme Court. *[English]* The Supreme Court decided on an important issue. Privacy is a fundamental right under Article 21. *[Translation]* Article 21 says that every person has his fundamental right that his privacy should remain intact and it should not be publicized. Today, Aadhaar cards of 120 to 125 crore people have been made since its inception. It's cost is ten thousand crore rupees according to the company. During four years tenure, within one year only, the Government has saved 1.4 lakh crore rupees which goes to the poor as subsidy. Shri Rajiv Gandhi ji used to say that when we give one rupee, then only 15 paise goes to the poor people… *(Interruptions)* Then, where does that 85 paisa go? While some have served a term in jail many times, some are sitting in the House. They are having such mentality. With this Bill validity of Aadhaar Act was upheld. So far as validity is concerned, previously there was a provision in this Bill that the parents will make Aadhaar for their child up to the age of 18

years, but when the child attain the age of 18 years then he will have the right to cancel his Aadhaar Card and he/she can make his card with his own will, he/she can say that he/she does not want to keep this Aadhaar anymore. After the amendment of this Aadhaar , the Supreme Court has directed to make more amendments in Aadhaar and the Government is bringing with the same amendment. The court has said that though the bill it has some salient features but the unique authority is toothless. As one of the MP was speaking earlier that if that is unique authority, then how can there be a chance to leak or blackmail its data. He was foreign returned also. He was speaking in the morning and I was listening to him. He was also saying that when any card goes to the Sarpanch then its data will be leaked. He does not know that now a days if a telephone sim is issued then it is also issued after taking thumb impression only. Now, Aadhaar card is not issued so easily. Now, even mobile sim is also not issued so easily. Earlier, it was working like that who give shelter to terrorists after talking to them and do the work of increasing their vote bank here. I fail to understand that they speak of patriotism here and support those who raise slogans such as "Bharat tere tukde honge".

Madam, two numbers will be issued under Aadhaar. Hon. Minister is present here, he knows better than I do. One number will be with that concerned department to whom we give that card. Rest is the secret number, which will be with the cardholder and the company. The rest of his information will not be disclosed, through this Bill. As far as the use of Aadhaar is concerned, as I have told accordingly in the year 2009 it was started in the name of unique card. In the year 2016, Hon. Prime Minister has started the work of Aadhaar card under this Bill to stop corruption and the work of Aadhaar card will be completed. Within a time limit it will be issued to the people. For 122 crore people, out of the total population of 130 crore in the country, Aadhaar cards have been made by this Government. Two senior Members of Parliament were saying that this is

like a Halata Act, now as they are feeling that Triple Talaq Bill is coming so……* There will be nothing to enjoy. The enjoyment……..* is going to end. Therefore, they will see the same thing for Triple Talaq everywhere. We should not oppose just for the sake of it. We have to move ahead in the direction of Make in India, New India. The Hon. Supreme Court has asked to amend under this Bill. Article 21 is the fundamental right of every person and he should keep it secret. This is particularly provided under this Bill. I, therefore, support this Bill. I thank you for giving me an opportunity to speak.

* Not Recorded.

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[English]

SHRI N. K. PREMACHANDRAN (KOLLAM): I thank you, Madam, for giving me this opportunity. Though my name was listed as the Mover of the Motion, unfortunately, I couldn't be present. So, kindly I may be given some bonus time.

Madam, Chairperson, I rise to oppose both the Ordinance as well as the Bill because it violates the fundamental rights of the citizens of the country. Regarding the Ordinance, I need not reiterate that there were no compelling or extraordinary circumstances prevailing for the promulgation of this Ordinance on 2nd March 2019. Let the Hon. Minister explain to the House what is the exigency/emergency/urgency in promulgating an Ordinance, which is violating the fundamental right – right to life and right to livelihood of the citizens of the country.

Regarding the Bill, it is well established by Mr. Owaisi, Supriya Sule Ji and almost all the learned Hon. Members. I fully support the arguments advanced by my learned friends in this House.

Madam, Chairperson, you may be well aware about Article 21 of the Constitution. No person shall be deprived of his life and personal liberty except in accordance with the procedure established by law. What is the procedure established by law? The Hon. Law Minister is well aware of all these facts. In A.K. Gopalan vs. The State of Madras case, the Hon. Supreme Court has elaborately discussed regarding the procedure established by law.

Finally, they have come to the conclusion that procedure established by law in the Constitution of India in Article 21 is equivalent to that of the due process of law in the American Constitution. So, the due process of law means that the right of a person can be curtailed or restricted only on certain grounds. Those grounds should be fair, just, equitable and it should comply the principles

of natural justice. This is the accepted/adopted dictum of judgement. It is adopted and accepted throughout the country.

If that be the case, kindly examine the Supreme Court judgement dated 26th September, 2018. Due to paucity of time, I am not going to read the judgement. On two grounds, the validity of the Aadhaar Act has been adopted or approved. The Constitutional validity of Aadhaar Act, 2016 was accepted by the Hon. Supreme Court on two grounds. One is, obtaining the consent of the guardian or father of the children who are being enrolled in the Aadhaar list and the second is, which is very important, providing for informed consent for authentication and Madam, I would like to reiterate – limiting the authentication only to purposes permitted by law. The use of Aadhaar data can only be limited to the purposes permitted by law.

Madam, Chairperson, I would like to seek a clarification from the Hon. Minister.

What does 'all purposes permitted by law' mean? It means 'permitted by law' dictum in the Supreme Court judgement as well as the procedure established by law is equivalent to that of the due process of law, which is almost similar. Therefore, the law, which is being brought before the House should comply with the principles of natural justice. It should be fair, reasonable, just and equitable.

The main question to be considered by this august House is whether the law or the Bill that is being introduced or being taken for consideration is complying with the principles that have been elucidated in the A. K. Gopalan Vs. State of Madras. According to me, it is not. Hence, it is unconstitutional and is in violation of Article 21 of the Constitution -- the right to life and personal liberty is curtailed without any reasonable restriction because right of privacy is a fundamental right that comes within the purview of Article 21 of the Constitution. Therefore, I would like to say that this is absolutely unconstitutional. It is not

going to hold good in the court of law. It will be struck down in the court of law. So, I would like to urge upon the hon. Minister to please send this Bill to the Standing Committee or Select Committee whichever the Government may like.

I will mention six points and conclude my submission. It is not only regarding Article 21, but with regard to the contents of the Bill also I oppose on the following grounds. Firstly, the Ordinance violates the Supreme Court judgement in the sense that it is restricting the use of Aadhaar only for such schemes that have the colour of subsidy, benefit and services, which are paid out of the Consolidated Fund of India. The judgement explicitly prohibits the use of Aadhaar by private parties by declaring Section 57 of the Aadhaar Act unconstitutional. The court has already struck down Section 57, and the Government further comes with a legislation so as to give right to the private or corporate companies, especially, the telecom service providers like Jio or some other companies who will be getting the liberty to have the data of the persons of this country, which will be misused. Therefore, this is against the spirit and soul of the judgement.

By amendment of Section 4 of the Aadhaar Act and incorporating a Clause 7 you are making authentication mandatory. Similarly, amendment to Section 4 of the Indian Telegraph Act -- by virtue of incorporating Clause 24 and inserting a new Section 11A in the Prevention of Money Laundering Act -are also against the spirit of the Supreme Court judgement. Both amendments allow Aadhaar-based authentication and off-line verification.

Secondly, the Ordinance allows private entities to hold Aadhaar data in disregard to the Supreme Court judgement. As per the Supreme Court judgement, all private entities are required to delete Aadhaar authentication logs, which they are having. Such specific direction is also there in the judgement that all the private companies have to delete the Aadhaar data, but unfortunately, you are giving further permission to the private entities so as to have the Aadhaar logs.

Thirdly, privacy and security concerns related to Aadhaar remains unaddressed. Madam, I will conclude within 2-3 minutes.

Fourthly, the Ordinance re-opens the door for commercial exploitation by private companies. Though the Aadhaar number is always declared as a voluntary ID, but in practice, it has become a pre-condition for any service and thereby it has become mandatory. Clause 5 of the Bill speaks about the various forms of voluntary Aadhaar authentication including off-line verification. Nothing in this Bill prevents the private entities from doing authentication. Use of Aadhaar by private entities is not permitted as per the Supreme Court judgement. Allowing private parties to have access to database is violation of citizens' right of privacy and is unconstitutional.

Fifthly, the Ordinance introduces off-line verification, but fails to specify how it will be done. An hon. Member from the TMC has also spoken regarding the Bill. If you examine the Bill, it is mentioned 'as may be prescribed' or 'as may be by the regulation' or 'as may be notified', but the delegated legislation is absolutely with the Government. We do not know what is going to happen.

Sixthly, the Bill gives greater power to Unique Identification Authority of India (UIDAI) with lesser accountability. Can the UIDAI be impartial in discharging their duties? As Mr. Owaisi has rightly said that the present Chief Executive Officer of UIDAI is the Revenue Secretary as well as the Chairman of the GST Network.

My last point is that the Bill disregards the Supreme Court striking down the disclosure of information exception. What has the Supreme Court said about it? The Supreme Court has said that it should be a higher official than the Joint Secretary for the judicial review.

17.00 hrs

But hon. Minister, judicial review is missing here. The Supreme Court has directed them to have judicial review but here it is missing. Madam, kindly allow me to complete, otherwise, it would be incomplete.

Madam, the Sri Krishna Committee recommendation is very specific. The Government has to come up with a data protection law. Instead of coming up with a data protection law, it has come up with this Bill. It is unfair and unconstitutional. Hence, I oppose this Bill. Thank you very much, Madam.

[Translation]

SHRI HAUNMAN BENIWAL (NAGAUR): Hon. Chairperson, Madam, thank you very much for giving me an opportunity to speak on Aadhaar (Amendment) Bill. Before me, many Hon. Members of Parliament have expressed their views. The Hon. Supreme Court has stayed the imperative of Aadhaar card and has asked to bring a new legislation through which the privacy, secrecy of common man could be maintained. I would like to thank the Government of Shri Modi ji that they have launched 'New India, Digital India'. All the laws enacted during the year 2014 to 2019 and all the Bills that are being passed since last many days are definitely related to the common men and poor people. This Aadhaar Bill will control corruption to a great extent. Money that reaches to the poor and common man will reach directly into their accounts. Crores of farmers will be benefited by the money given to them under Pradhan Mantri Kisan Samman Nidhi'. That too will reach to the last man in the village.

Many of our friends in the Opposition have not supported the bill. Many people will also suffer for the sake of increasing their vote bank but it is true that Aadhar will give a person his identity. This Aadhaar card will also help in collecting criminal data. The stay imposed by the Hon. Supreme Court on making it mandatory has done a great harm to common people. The benefits availed by

the poor people was stopped. I would like to thank the Government for this Bill. Earlier, it was stayed in the year 2018. In the year 2009, when UPA Government had launched this with the name of unique card, then it had given contracts to its favourite companies ,therein too corruption was dominant. In the year 2016, the BJP and NDA Government passed a law making it mandatory. Now, under the law enacted after the direction of the Hon Court, two numbers are provided in the Aadhaar Card so that the privacy and secrecy of any person should not be leaked and its usefulness should also be maintained.

17:02 Hrs. *(Shri A. Raja in the Chair)*

Hon. Chairperson, the World Bank has appreciated this scheme of India. It has provided the access of the Government services to lakhs of poor people by giving them their official identities. This is a matter of pride for the country that today the whole world is ready to follow our schemes. Aadhaar is made as per the best international standards and arrangement of Biometric Locking system has been made for additional security of its data. Therefore, there is no chance of its secrecy being leaked.

Hon. Chairperson, the Government of India has made Aadhaar Number mandatory for many Government and non-government activities. Now, Aadhaar has become mandatory for many services including opening of bank accounts, receiving LPG subsidy, pension, passport etc. In this context, we can easily understand that how it is very important.

Hon. Chairperson, I am supporting this Bill. People are benefitted by Aadhaar. The subsidy worth Rs. 7. 3 lakh crores is directly deposited in the account of the poor people. The Government of India has saved 1. 4 lakh crore rupees through it.

Sir, it has got privacy. It is as per the Constitution of India. Many Hon. Members have referred to the Constitution of India then, I would like to say that this law has been made as per the provisions of Article 21 of the Constitution to ensure the compliance of Article 21 of the Constitution of India.

This law has been made so that no person should feel that his privacy is being compromised. One more provision has been made in this law that if any company leaks the data of the property of any person, then there is a penalty of one crore rupees for this. I would like to thank the Hon. Minister that he has done so much of hard work to enact this law, he has also consulted senior experts. There are very experienced Members of Parliament from our Bhartiya Janata Party and NDA and Shri P.P. Chaudhary is also one among them, who is an advocate in the Supreme Court and his opinion has also been taken. It is for the welfare of the people and it will control corruption and as per the Hon. Modi ji's vision of New India and Digital India, now it has been ensured in the country that Delhi has become safe for the next 15-20 years. Now, you do not have to worry at all, about Delhi, should rather concentrate on your State. As Shri Owaisi ji was saying that you may face some problem in States in same matter or the other. Here, the case is such that your National President has also left. The situation has become so worse that their captain has quit his captaincy. When he has left his captaincy then this football match has become one sided, so we people are playing the game of football on our own. I support this Bill... *(Interruptions)*

[English]

HON. CHAIRPERSON: Please conclude. There are other hon. Members to speak.

[Translation]

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SHRI HANUMAN BENIWAL: Hon. Chairperson, Now I will not take much time. I will take only one minute. I am only saying that. I support this Bill. I would like to thank the Hon. Minister who has done so much hard work with his comprehensive idea so that the corruption should be stopped in the entire country and privacy of the people should not be leaked, which will definitely benefit the entire country during the next five years. The Congress Party which has won 50 seats will confine to only 12 to 13 seats next time… *(Interruptions)* this Aadhaar Bill will benefit the people of this country to a great extent… *(Interruptions)*

[English]

HON. CHAIRPERSON: Nothing will go on record…

(Interruptions)[*]

[Translation]

[**]DR. THOL THIRUMAAVALAVAN (CHIDAMBARAM): Hon. Chairman Sir, Vanakkam. I strongly oppose the Aadhaar Bill which is against the interests of the people. This Bill is basically unconstitutional. This is against the Aadhaar related judgement of the Hon. Supreme Court. Therefore this Bill is against the interests of the people of this country. This Bill should be either withdrawn or should be referred to a Parliamentary Standing Committee for complete scrutiny. Hon. Prime Minister Shri Narendra Modi led Government has invited criticism for not serving the people of this country rather engaged in serving the interests of the corporate companies. It is a matter of concern that the Bill tries to prove the criticism against the Government to be true. Hon. Members have already spoken about the provisions of the Bill which are against the verdict of Hon. Supreme Court. I do not want to list them again. I want to particularly state that

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[*] Not Recorded.

[**] English translation of the speech originally delivered in Tamil.

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Children shall not be asked to register for Aadhaar mandatorily. Even if they register and when they attain the age of 18 years, if they wish, they can go out of the Aadhaar eco system. This Bill is also amended to support this. The Section 3A provides for this Option. It is clearly evident that there is no correlation between what the Government says and intends to do. Children can enrol themselves with Aadhaar voluntarily and if they attain 18 years of age, if they wish, they can cancel that Aadhaar card. This is how they say. But if you look at the ground reality, Unique Identification Authority of India (UIDAI) contacts each and every school authority compulsorily and insisting the students to enrol for Aadhaar. On this particular aspect, the Government contradicts with what it says and what it intends to do. The Government says something and tries to do something else. As the Government is making efforts against the verdict of the Hon. Supreme Court, this will be construed as contempt of court. The Government, which has pledged to uphold the Constitution, should respect the judgements of the Hon. Supreme Court. I wish to remind that the Government is showing disrespect to the judgement of the Hon. Supreme Court. As you say that it is not mandatory and children, if they wish, can cancel their Aadhaar card after attaining the age of 18 years. At the same time, this Government has not mentioned any alternative. If you say that students may not enrol for Aadhaar, in that case, if need be, what other identity card they are supposed to show or what identity they should use? This has not been specified in any part of this Bill. Basically there is no connect between what the Government says and what it intends to do. This Government is contradicting with itself and which in a way is helping the corporate companies. I wish to state that the Government is engaged in giving away the individual rights, individual data and individual privacy of the people to private companies. This Amendment Bill will in not in any way help to protect the individual rights, individual data and individual privacy of the people. Therefore I strongly oppose the Bill. This Bill should be referred to the

Parliamentary Standing Committee for complete review. Thank you for this opportunity. Vanakkam.

***SHRI GIRISH BHALCHANDRA BAPAT (PUNE):** I would speak in Marathi, first of all, I would like to thank our Hon. Minister Shri Ravi Shankar Prasad ji that he has brought a very good amendment Bill in this House. I was listening to the discussion going on in this House. Few are saying it would breach privacy and some other said it would help corporate and businessmen. I have due respect for the Hon. Court. This Government is committed to do justice to everybody. I am witnessing a new world due to bio-metric and digitalization. This is a revolution never happened before. When I was a minister of PDS department in Maharashtra cabinet, we would provide foodgrains to the poor people. Now farmers are getting loans easily. Poor women are provided with LPG gas connections easily. The poor and needy are getting funds transfer to their accounts easily. It is helping to check corruption as funds get transferred directly to the beneficiaries accounts. Of course, we will stick to the law. But I am more concerned about the poor people who have to sleep famished, the tribal students who have got no school uniforms and those who have no access for medical treatment and medicines. Earlier, crores of public money were siphoned off but now this Aadhaar has curbed this kind of corruption. If there are drawbacks in the Aadhaar, we would definitely try to correct them.

But, I wish to support this bill wholeheartedly because crores of poor and needy people have been benefitted due to Aadhaar. Many people commented baselessly on Aadhaar but I always feel that we should support the common man of this country whose life has been changed just because of Aadhaar.

This is the government of Shri Narendra Modi and we are standing firmly with the poor. Those who are talking against Aadhaar never opposed emergency

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* English translation of the speech originally delivered in Marathi.

imposed in 1977. But today, in the name of corporates and businessmen, they are opposing it.

We represent the poor, the tribals and the needy students and women of this country. We are going to create a new history through this Aadhaar. We will surely take care of the short comings, if any. But it has to stay. Hon. Ravi Shankar Prasad ji, you have taken a historic decision. I welcome this Bill and support it too. Lastly, I have a request for you.

Shri Ravi Shankar ji, I was doing work on biometrics and Aadhar in Maharashtra in the capacity of a Minister , at that time you had spoken about children but the labourers, the farmers, the carpenters are facing problems in their biometrics. You should pay attention to how this work could be done in a better way through research to solve their problems. The Government of Hon. Narendra Modi ji will work to help the poor people of the country through Aadhaar, this Bill is in support of this. I conclude and support this Bill. Jai Hind, Jai Maharashtra.

17:15 hrs. *(Hon. Speaker in the Chair)*

[Translation]

HON. SPEAKER: Hon. Minister, Sir, please wait for a minute.

[English]

DR. SHASHI THAROOR (THIRUVANANTHAPURAM): Sir, under Rule 355, I would like to seek a clarification from the Minister. The fact is that he has already assured the House during Question Hour that he is going to bring a Data Protection Bill. Since, this Aadhaar Bill would have to be amended later to be in conformity with the Data Protection Bill, will the Minister explain why he has

brought this Bill before that one? That is going to be the underpinning based on the Supreme Court judgement of the entire principle and then this law can follow to be in conformity with the Data Protection Bill.

Thank you, hon. Speaker, Sir.

[Translation]

THE MINISTER OF LAW AND JUSTICE, MINISTER OF COMMUNICATION AND MINISTER OF ELECTRONICS AND INFORMATION TECHNOLOGY (SHRI RAVI SHANKAR PRASAD): Hon. Speaker, this discussion has been going on for long and many learned Members have sincerely participated in this serious discussion. I have been associated with the Parliament for many years but I have become a Member of Lok Sabha for the first time. I have the honour of introducing many important Bills in the House. Shri Nishikant ji you have also spoken on this.

Hon. Speaker Sir, today, I would definitely speak one thing that when this House is in the mood of doing a good discussion then the level of discussion in the House goes up. I would like to congratulate the whole House that today there has been a very good discussion. Many questions were asked by the Government, why we have introduced the Bill, under whose pressure it has been brought and what is the name of the corporate House? I would like to make an humble point certainly in this House that Hon. Shri Narendra Modi ji comes under the pressure in the interest of India only and none else. We know that some people work under pressure. My hon. friend, Shri Chaudhary ji had asked me many questions, why were you in a hurry, why did you bring the Ordinance? Now, I will not ask how many ordinances your Government brought.

SHRI ADHIR RANJAN CHOWDHURY: You give us the details.

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SHRI RAVI SHANKAR PRASAD: Hon. Speaker, Sir, I have disturbed you… *(Interruptions)* Hon. Minister of Home Affairs has explained you in detail, therefore, I am not repeating it, you please leave that matter.

Sir, today, I would like to tell you some fundamental things. I feel that a lot has to be made clear. I will reply all the questions subject-wise, but first of all it is necessary to understand what Aadhaar is? Prior to it, I would like to say one thing that I had said in the beginning as to how much we have saved through it? We have saved about 1 lakh 41 thousand crore rupees in 154 schemes. We have transferred 7.48 crore rupees under DBT in 275 schemes and saved 1 lakh 41 thousand crore rupees. That data of that time is very interesting. That data is- we have removed 4.23 crore fake LPG connections as a result of Aadhar. 2.98 crore fake ration cards were cancelled that were detected through Aadhar. I would like to say that 1 lakh 41 thousand crore rupees were saved, that was the money of tax payers and poor people. Does not this make us happy? Hon. Giriraj ji has done a good job by reminding me, we all know that labourers in villages were not getting their due money under MGNREGA payment and fake registers were being made. Today, they get their accounts and they feel happy. They know that when country becomes honest then some people are in trouble. We want that they should be in trouble. The Government of Hon. Narendra Modi ji will work with honesty. Today, Aadhar has become a very big medium of honesty.

Sir, I would like to tell you some more points about Aadhaar. What is Aadhaar? This is my Aadhar card, I would like that this House should try to understand this with my point of view. What does it contain- there is my photo, my name and that I am a male and at the back side of the card there is my permanent address of Patna and name of my father. The things that are not mentioned in it are my caste, my community, my religion, my integrity, my medical record and my health record but our biometric is there in the system. What is our Biometric? These are my iris and my fingerprints. Iris is called core

biometrics. A person can change his name but he cannot change the marks of his iris and his fingerprints, this is core biometrics.

Here, privacy has been discussed in detail. Shri Adhir ji, it would have been better if you had brought this law. Shri Atal ji took this initiative.

HON. SPEAKER: Hon. Minister, please address the Chair.

SHRI RAVI SHANKAR PRASAD: We have welcomed the Congress, it would have been better if the Members of the Congress Party would have told that we had started this, they should have told that Dr. Manmohan Singh ji's Government has done this, but perhaps the name of Dr. Manmohan Singh ji is never mentioned. This is a separate matter, let us leave it.

Sir, I am reading the Section 29 of the Original Aadhar Act *[English]* No core biometric information collected or created under this Act shall be shared with anyone for any reason, whatsoever. *[Translation]* It means if the iris and fingerprints are cantered in the system then they get encrypted. Today, welcoming the Aadhaar, I would like to tell this House that about 2.5 crore authentication is done daily and there are 123 crore Aadhaar. The total machinery is made in India and it is fully safe and secured. This cannot be out, if billion of people will try, even then it will not be out. This can be out only for two reasons, if it is necessary to do so either in the national interest or in the interest of National security. In that case, earlier, the Joint Secretary level officer had to certify and now the Secretary level officer has to certify. The Supreme Court has given directions and we have brought amendment in this regard. Secondly- if there would be any Court order, previously it was done by the District Judge, now it is being done by the High Court judge. I am the IT Minister, communications Minister, Law Minister, even if I give direction to anyone to release core biometrics of any person then action can be taken against me also and I can be punished for three years. We have made this law. Sir, people are repeatedly

saying this, they are opposing the Supreme Court, they are opposing the paragraph. Hon. Speaker, Sir, I have already told this earlier also and I want to say it again today also that the House should not be made a court.

The people of the country have given us the sovereign power to enact laws and we should exercise the right to enact a law. As a student of the Constitution and law I would very humbly like to submit before this House that this house also has the power that we can undo the judgement, we can change Aadhaar. We have so much power. If the Supreme Court has said this then why are you doing so? We respect the court. *[English]* I would urge the hon. Members of this august House not to minimise their power for Heaven's sake. The people of the country have given them sovereign power to frame laws. That is their right. They have to understand that.

[Translation]

I do not know where Shri Owaisi ji is now. He was advising me many things, he can wait to make sarcastic remarks till we discuss Teen Talaque, Let that issue be raised. Today, in his absence, I would like to suggest very humbly that so far as you talkhi is concerned, please wait till Triple Talak, let it come, we will discuss that also. I am reading the judgement of the Supreme Court on privacy of case of Aadhaar, it says:-

[English]

> "The court is also of the opinion that the triple tests laid down in order to judge the reasonableness of the invasion to privacy has been met. The aadhaar scheme is backed by statute, that is, the Aadhar Act. It also serves a legitimate state aim which can be discerned from the introduction of the Act."

[Translation]

In this, it is said that it does not violate any way the law of privacy. Sir, I consisted of judge benches. I would like to read out the 5-6 line of judgement of nine-bench judge judgement.

[English]

I hope Shri Premachandran is listening to me. It says:

> "An invasion of life or personal liberty must meet the threefold requirement of law: legality, which postulates the existence of a law; need, defined in terms of a legitimate state aim; and proportionality, which ensures a rational nexus between the objects and the means adopted to achieve them. the legitimate aim of the state would include for instance protecting national security, preventing an investigating crime, encouraging innovation and the spread of knowledge, and preventing the dissipation of social welfare benefits."

The Supreme Court itself had permitted these legitimate state aims for which even privacy could be invaded if it could be justified. Therefore, I would request the very distinguished Members who are quite enlightened to understand this aspect of it.

[Translation]

What have we done in this law? I would like to tell you in brief. Firstly, it was the direction of the Supreme Court that a child has the right to say that he/she wishes to exclude himself or herself out from it. Secondly, the Supreme Court has said that what you have done under Telegraph Act and Money laundering Act that was done through a circular and under a rule. Now, this should be done under an Act. I would like to say one thing categorically, I would like to read that provision, which has been very broadly discussed. *[English]* I would like hon. Members to kindly listen to what I am saying. First, aadhaar is voluntary in the case of telephone; aadhaar is voluntary in the case of the

Prevention of Money Laundering Act. I will just read that. Secondly, there is a clear injunction that they cannot store any aadhaar data or biometrics. *[Translation]* If they will do so then one crore rupees fine will be imposed on them. Second important thing is that if any entity requests for Aadhaar then it will be permitted but there would be three conditions for it. *[English]* First, it must be backed by a law of Parliament. Secondly, it must be for a legitimate State objective, which I have read from the Supreme Court. Thirdly, the UIDAI must be satisfied that privacy and security concerns have been addressed. *[Translation]* Until these three conditions are fulfilled, he or she will give it on voluntary basis. The third and the most important thing is that if anybody does not has Aadhaar then we would not deny service to anybody. *[English]* This was being debated repeatedly. The present amendment clearly postulates – section 5 (4) of the Telegraph Act and also the amendment to the Prevention of Money Laundering Act – that they shall not deny anyone the benefit of this whole scheme in the absence of Aadhaar.

[Translation] Sir, now let me read it very quickly, so that whatever objection are going on, will be completely cleared. Sir, I am reading from clause 5.

[English]

> "Explanation—For the purposes of this section, voluntary use of the Aadhaar number by way of authentication means the use of such Aadhaar number only with the informed consent of the Aadhaar number holder"

[Translation]

Sir, after that, it is very clearly mentioned in Clause 6:

[English]

"Shall not deny any service to him for refusing to or being unable to undergo authentication."

[Translation]

Sir, now I also read a paragraph from the Telegraph, because it was very widely discussed.

[English]

> "If, for identification of a person, authentication under clause (a) of sub-section (3) is used, neither his core biometric information nor the Aadhaar number of the person shall be stored."

[Translation]

Now, I read Clause 5:

[English]

> "The use of the modes of identification under sub-section 3 shall be a voluntary choice of the person who is sought to be identified and no person shall be denied any service for not having an Aadhar number."

[Translation]

So, it is in the telegraph Act also and in this also, it is absolutely voluntary, it is with the consent and you will not deny to me.

Now, I would like to raise one question before this House. Privacy is being talked about. Big things are being said, if crores of people of this country are happy with Aadhaar then what is the problem of the House? I am raising this question very seriously, 68 crores of people are using this Aadhaar to purchase sim card. Hon. Members, Shri Patel ji had raised a question that what will you do with the rest, I would like to say that as soon as the Bill is passed, apart from passport we will identify the other modes also like ration card etc. through

regulation. But, it would be done after passing of the Bill. I again ask you a question that some people are worried about their privacy. If the poor people of the country do not have any problem who are getting LPG subsidy, who are getting payment of MGNREGA and who are getting pension and if they are happy with Aadhaar that money is transferred to their bank accounts then why some section of this House have any problem? I cannot understand this. It is very important to understand this. I would like to tell you that common service centre scheme was also started by you. This was 80 thousand in IT Department I have raised this up to about three and a half lakhs. Today, there are common service centres in two and half lakhs Gram Panchayats in the country. This is a digital window. People use it for making PAN Card, passport, ticket and also for pension. These are the benefits that people of villages are getting through Aadhar Card. Previously, our sisters and daughters were going to cities to get their payment of MGNREGA and they had to take one day's leave. Now a day, they work for all the seven days, because with the help of Aadhaar they can get their payments in their villages itself. Recently, our Government has won the election and for that I would like to say very humbly that in the year 2014 our Hon. Prime Minister had said that this Government is for the poor and this Government of 2019 has been formed by the poor people because these people have seen change at the grass root. I think that due to these changes some people have problems. They should try to improve themselves. We were willing that they should have introduced Aadhaar online. Now, it is said that the case was filed earlier. Our friends from that side should forgive us.

[English]

The case was filed before we came to power in 2014. Why was the case filed in the Supreme Court challenging Aadhaar? The first area of challenge was, Aadhaar is being conducted without any legislative sanction. No law is there. That was the first challenge. *[Translation]* and I remember when I became the

Minister then our Hon. Prime Minister had said to find out as to what could be its uses. Today, Shri Arun Jaitely ji is not present here. He is not well. At that time, he was present, we were present and other people were also present. First of all it was decided to bring legislation in this regard, so the legislation was brought and privacy was also considered. We are aware of all these things so I would like to assure this House very earnestly.

[English]

The proposed amendment is strictly in compliance with the Supreme Court's order. It is completely voluntary. The voluntary nature of compliance is based upon the consent of the owner of Aadhaar. The private entities are exempted from taking any biometrics, Aadhaar Number, etc. and if they do, they can go to jail and a penalty of Rs.1 crore can also be imposed subsequently.

Therefore, all these safeguards – whereby they are prohibited from violating the regime – have been in place.

[Translation]

Sir, some important things have happened. Shri Manish ji is not here at present… *(Interruptions)* Thank you… *(Interruptions).* You have changed your seat. I was looking for you there … *(Interruptions)*

HON. SPEAKER: Hon. Minister Sir, you search him here, not there.

[English]

SHRI RAVI SHANKAR PRASAD: The second part is the 'right to be forgotten'. I need to compliment the hon. Member for raising a very interesting issue. But I would like to gently remind him that the right to be forgotten is a concept which flows from the data protection laws. Even in the GDPR, the European Union's data protection law, there is such a concept. But we need to

also acknowledge that the right to be forgotten is a concept which is still evolving. The norms are still to be concretised globally.

Now, as far as data protection law is concerned, I wish to assure this House, as I have said earlier, that the work is in progress. Justice Srikrishna Committee report has come about. The widest consultation had happened in the country for more than two years. After the report came, we had also put it on website. Now, some more inter-ministerial consultation is going on. The work is in progress. But let me share my general view on the data. I am happy that this issue has been raised. Pinaki Ji has raised this issue. We are very clear that India is fully supportive of data sovereignty of India. India's data sovereignty needs to be respected clearly and categorically.

The second point is this. Let the law come, you will see that. The second point is very important. I am very concerned and keen about it. India - being populated by 1.3 billion people, generating billions of data – must become a centre of data analytic. *[Translation]* Today data analysis and data processing can be a very important issue and we have to consider that, we are doing that and we should do that. The third thing is very important that data should be available. Suppose, a disease is spread in any region, then data related to that should be available so as to find out the cause of that disease. Data should be analysed. We will have to make a decision after considering all these matters. *[English]* As I have said earlier, let me also repeat in this House, there has to be a fine blend.…*(Interruptions)*

SHRIMATI SUPRIYA SADANAND SULE (BARAMATI): There is no medical information in the Aadhaar.

SHRI RAVI SHANKAR PRASAD: That is a separate chapter altogether. Madam, Aadhaar is separate.

What I am simply saying is that data availability, data utility, data innovation, data privacy, all have to be worked together and the law will surely respond to that.

Now, two issues were raised by the hon. Member. You are sitting here. I was looking for you there. The issue raised was about abuse of data by hospitals. …*(Interruptions)* Take a light banter.

Hon. Speaker, Sir, I wish to tell her that if any hospital denies medical aid or benefit to a patient in the absence of Aadhaar, it is not right and fair. The ecosystem of Aadhaar is very clear. I would urge her that if she has any specific information make a complaint to the health department concerned there and also bring the matter to my notice. I assure you that we will take appropriate measures.

Lastly, today, Aadhaar is being globally feted.

[Translation]

Sir, there is a great American economist-Paul Romer, I shall not quote him fully due to paucity of time. *[English]* He said: "The Aadhaar platform in India is something to be really followed globally. The way it is saving public money is a matter of great appreciation."

[Translation]

Sir, with you permission, I would like to share one thing with this House that about one year ago, I have been to Bahamas to attend commonwealth Law Ministers' Conference and there digitalization was also one of the many subjects that were discussed there. Much discussion was done on these subjects but Ministers from Africa and other countries asked us about Aadhaar. They said that they want to learn about the Governance in India that has come as a result of Aadhaar.

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I would like to urge very humbly this House that 'Aadhaar' is being discussed all over the world, India is being appreciated, you should also learn to appreciate it. Hon. Shashi Tharoor ji, it was your Government that has introduced this. You were also a Minister in that Government. I would like to say that you have the right to criticize, you have the right to oppose but perhaps in some cases, this House should stand together. 'Aadhaar' is such an achievement *[English]* which is bipartisan. Yes, it was conceived during the regime of Shri Atal Bihari Vajpayee.

Now, why was this Ordinance? *[Translation]* in the end, this question was raised by Hon. Shri Pradyuman ji, why did we bring Ordinance? Now, let me tell you that crores of people have Aadhaar. The Supreme Court has told to link it with banks only and for other services; it has told to bring law, then whether we should leave other people? Whether we should leave the poor people that they cannot do this work. You cannot change the sim of your phone. Such common people were in crores, we have brought this law for them in their interest in emergency.

Sir, in the last Lok Sabha, this Bill was passed by this House, but it was held up in the other House. I will not discuss here the reasons why it was held up. Our friends know those reasons. There is a provision in the Constitution that if a Bill is not passed in the tenure of a House then this has to be brought back again. Therefore, we have introduced it again here. I would like to submit in this House very humbly *[English]* that it is wholesome amendment in compliance with the Supreme Court order. It makes Aadhar voluntary with proper safeguards. I would urge that House *[Translation]* that please trust the common man of the country. The common man of the country understands. If any common man complaints me that he is having trouble with 'Aadhaar' then I will definitely think in this regard. I have been IT Minister for the last five years till date. The work of 'Aadhaar' is under my Ministry. Not a single Indian common

man has complained me that he is having trouble with 'Aadhaar' we are benefiting from 'Aadhaar'. I would like to say that you should also support it. Due to these reasons, I would very humbly appeal the House that please pass this amendment fully. Thank you.

[English]

SHRI ADHIR RANJAN CHOWDHURY: Sir, I am entitled to the right of reply. Please give me a little protection.

First of all, I would like to say that you have exhausted all your resources to appropriate the credit of Aadhaar. *[Translation]* You have listened to all our statements. You felt that we are not happy with 'Aadhar'. How did you say this in the House that perhaps we are not happy. Therefore, we oppose it… *(Interruptions)*

SHRI RAVI SHANKAR PRASAD: You support it… *(Interruptions)*

SHRI ADHIR RANJAN CHOWDHARY: We had for the first time started Direct Benefit Transfers as a pilot project in India. *[English]* Aadhaar is the brainchild of the UPA Government. Secondly, earlier you said that we should not reduce Parliament to an Adalat. *[Translation]* you had said this earlier also and even today you have mentioned this. Our court will remain. You have mentioned the court in respect of many subjects. It means that *[English]* all legislations are destined to be scrutinized by our judiciary. *[Translation]* We consider Parliament to be a necessity. We will not accept the Parliamentary Supremacy. The Constitution of India does not accept Parliamentary Supremacy. You sense and repeatedly say that this should not be made a court. We have not reduced it to a Court (Adalat). You want all the credit and appreciation of Aadhaar for yourself. It appears that your majority should be accountable to you only. I would like to raise two issues. *[English]* Until a Government notification is issued, authentication can be done only through Aadhaar number and passport.

However, if an individual does not have a passport, the only verification method will be through Aadhaar number. Therefore, it may be asked whether this will result in Aadhaar number becoming mandatory for authentication. The question arises that whether Aadhaar number will become mandatory for authentication or not. This Notification has not been issued.

The Bill defines biometric information to include photograph, finger prints and iris scans. Further, it empowers UIDAI authority to specify other biological information that may be collected. Therefore, UIDAI can prescribe other categories of biometric information. The question is whether these types of biometric information which may be collected should be prescribed by Parliament, or whether it should be left to regulation notified by UIDAI.

[Translation]

Sir, you will have to accept this fundamental question. You are exaggereting; we do not say such things. We all are happy with 'Aadhaar' we all want that 'Aadhaar' should be effective, perfect and flawless and there should not be any loophole in it, therefore, we are warning you to be careful again and again. Through scrutiny, you are bringing reforms in it. We have already said that this is such a important issue to be forwarded to in the Standing Committee. You have said it earlier also, even today you have said about the data protection Bill, but when will the data protection Bill come? Sometimes you say that data is oil. Hon. Prime Minister himself is saying that data is gas, whether it is oil or gas but it should be brought before everyone. You do not listen so I move my resolution.

[English]

SHRI MANISH TEWARI: Hon. Speaker, Sir, I have a specific query. I would like to draw the attention of the hon. Minister to Section 57 of the Aadhaar Act. Insofar as it allows the sharing of Aadhaar data with private entities is concerned, it was struck down by the Supreme Court. Now, you have, through an amendment

to the Telegraph Act and the Prevention of Money Laundering Act, allowed the sharing of the data on a voluntary basis. My specific question is this. Does the Supreme Court judgement permit sharing of that data even on a voluntary basis with a private entity? Or, are you, in this amendment Bill, going beyond the Supreme Court judgement? That is my specific question to the hon. Minister.

SHRI RAVI SHANKAR PRASAD: Hon. Speaker, Sir, I will reply in brief. I stated that you started it. On the floor of the House, in course of my reply, I said that your Government concretised it, the late Atal Bihari Vajpayee thought about it. This I will surely say that the people thought that the Narendra Modi Government will better implement it. Therefore, we have come to power. Be very clear about it.

On the second part, I again say that it is voluntary. As to what Shri Manish Tewari ji said, I would request him to go through the judgement once again. The circular under the Telegraph Act and the rules of Money Laundering Act were debated before the Supreme Court and the Supreme Court said that you cannot do it by a circular or by a rule. It has to be done by a law. Therefore, there is a separate amendment.

Sir, as regards the amendment to clause 4 and 5, I said that there are three injunctions, which are very clear for an entity also. Firstly, it has to be on a voluntary basis. Secondly, it must be for an objective backed by a law of Parliament. Thirdly, otherwise it must be for a clearly stated State objective, which is what the Supreme Court has said, subject to the authority confirming it, the requirement of privacy and security. All these proper safeguards are there in place. For the other provisions, as I said, the Srikrishna Committee has said, the authority should be reinforced and all other things are there.

[Translation]

Sir, I would like to urge upon this House that crores of people of the country have accepted 'Aadhaar'. I would like to urge upon this House also to accept this and pass this amendment.

DR. NISHIKANT DUBEY (GODDA): Hon. Speaker Sir, I have a point of order.

HON. SPEAKER: Under which rule are you having your point of order?

DR. NISHIKANT DUBEY: Sir, under Rule 368 of the Constitution of India. Just now he has said that the Parliament is not supreme. The Supreme Court does not believe this so… *(Interruptions)*

HON. SPEAKER: Hon. Member, please do not cross talk. Please address the Chair.

… *(Interruptions)*

DR. NISHIKANT DUBEY: Sir, point-V of Rule 368 says that.

[English]

> "For the removal of doubts, it is hereby declared that there shall be no limitation whatever on the constituent power of Parliament to amend by way of addition, variation or repeal the provision of this Constitution under this article."...*(Interruptions)*

[Translation]

HON. SPEAKER: I shall now put the statutory resolution moved by Shri Adhir Ranjan Chowdhury to vote of the House.

The Question is:

"That this House disapprove Aadhaar and other laws (Amendment) Ordinance, 2019 (No. 9 of 2019) promulgated by the President on 2nd March, 2019."

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The Motion was negatived.

HON. SPEAKER: The question is:

"That the bill to amend Aadhar targeted delivery of financial and other subsidies, Benefit and Services Act, 2016 and the bill further to amend the Indian Telegraph Act, 1885 and Prevention of Money Laundering Act, 2002 be taken into consideration."

The Motion was adopted.

HON. SPEAKER: Now, the House shall take up clause by clause consideration of the Bill.

Shri N. K. Premchandran.

[English]

Clause 2 ***Amendment of Section 2***

SHRI N. K. PREMACHANDRAN (KOLLAM): I beg to move:

"Page 2, line 10,--
after "individual"
insert "after ensuring the protection of right to privacy". (1)

Page 2, line 11,--
after "sub-section (4) of that section"
insert ",without infringing the right to privacy". (2)

Page 2, line 15,--
after "entities"

insert "connected to Aadhaar system and bound to protect the right to privacy". (3)

Page 2, line 26,--

after "such offline modes"

insert ",without affecting the right to privacy,"." (4)

[Translation]

HON. SPEAKER: Now, I put amendment nos. 1 to 4 presented under Clause 2 by Shri N.K. Premchandran to the vote of the House.

The Motion was negatived.

[English]

Amendment made:

Page 2, for lines 6 and 7,--

substitute '2. In the long title of the Aadhaar (Targeted Delivery of Financial and other Subsidies, Benefits and Services) Act, 2016 (hereafter in this Part referred to as the principal Act), after the words "the Consolidated Fund of India", the words "or the Consolidated Fund of the State" shall be inserted.'. (35)

(Shri Ravi Shankar Prasad)

HON. SPEAKER: the question is:

"that Clause 2, as amended, stand part of the Bill."

The Motion was adopted

Clause 2, as amended, was added to the Bill.

[English]

Motion Re: Suspension of Rule 80(i)

SHRI RAVI SHANKAR PRASAD: I beg to move:

> "That this House do suspend clause (i) of rule 80 of Rules of Procedure and Conduct of Business in Lok Sabha in so far as it requires that an amendment shall be within the scope of the Bill and relevant to the subject matter of the clause to which it relates, in its application to the Government amendment No. 36* to the Aadhaar and Other Laws (Amendment) Bill, 2019 and that this amendment may be allowed to be moved."

HON. SPEAKER: The question is:

> "That this House do suspend clause (i) of rule 80 of Rules of Procedure and Conduct of Business in Lok Sabha in so far as it requires that an amendment shall be within the scope of the Bill and relevant to the subject matter of the clause to which it relates, in its application to the Government amendment No. 36* to the Aadhaar and Other Laws (Amendment) Bill, 2019 and that this amendment may be allowed to be moved."

The motion was adopted.

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* Vide Amendments list No. 5 circulated on 4.7.2018.

New Clause 2A

Amendment made:

Page 2, *after* line 7,-

insert "**2A.** In section 2 of the principal Act, --". (36)

(Shri Ravi Shankar Prasad)

[Translation]

HON. SPEAKER: The question is:

"That the new clause 2A be added to this Bill"

The Motion was adopted

The new clause 2A was added to the Bill.

[English]

Clause 3 ***Amendment of Section 3***

[Translation]

HON. SPEAKER: Shri Premachandran ji, are you moving your amendment?

[English]

SHRI N. K. PREMACHANDRAN: Sir, I am not moving Amendment No. 5 to clause 3.

[Translation]

HON. SPEAKER: The question is:

"That Clause 3 stands part of the Bill."

The Motion was adopted.

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Clause 3 was added to the Bill.

Clause 4 ***Insertion of new section 3A***

[Translation]

HON. SPEAKER: Shri Premachandran ji, are you moving you amendment?

[English]

SHRI N. K. PREMACHANDRAN: I beg to move:

"Page 2, line 41,--
for "six months"
substitute "one year". (6)

Page 3, line1,--
a*fter* "section 7".
insert "or any other provision of this Act"." (7)

[Translation]

HON. SPEAKER: Now, I put amendment nos. 6 and 7 under Clause 4 presented by Shri N.K. Premachandran to the vote of the House.

The Motion was negatived.

HON. SPEAKER: The question is"

"That Clause 4 stands part of the Bill"

The Motion was adopted.

Clause 4 was added to the Bill.

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Clause 5 ***Amendment of Section 4***

[Translation]

HON. SPEAKER: Shri N.K. Premchandran ji, are you moving your amendment?

[English]

SHRI N. K. PREMACHANDRAN : Sir, in this case, the hon. Minister has read out, – "informed consent". So, my amendment is that it should be "informed written consent". It will be safer. Kindly accept that amendment.

I beg to move:

Page 3, line 14,--
for "informed"
substitute "written". (8)

Page 3, line15,--
for "authentication"
insert "by protecting the right to privacy". (9)

Page 3, line 32,--
after "place"
insert "only".
(10)

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SHRI RAVI SHANKAR PRASAD: Sir, if anyone cannot write, that means he cannot give.…(*Interruptions*) Therefore, we have taken good care of that.…(*Interruptions*)

[Translation]

HON. SPEAKER: Now, I put amendment Nos. 8 to 10 under Clause 5 moved by Shri N. K. Premachandran to the vote of the House.

Amendment Nos. 8 to 10 were put to vote and negatived.

HON. SPEAKER: Shri Asaduddin Owaisi ji, are you moving your amendments?

[English]

SHRI ASADUDDIN OWAISI (HYDERABAD): I beg to move:

Page 3, lines 10 and 11,--

Omit " or in such other form as may be notified, in such manner as may be specified by regulations". (14)

Page 3, line14,--

For "the informed consent"

substitute "the free, prior and informed consent". (15)

Page 3, for lines 15 to 32,--

Substitute "(4) The Authority shall not allow any authentication to be performed if it is found that the requesting entity:

(a) has been registered or has conducted operations for less than seven years as on the date on which such request is made; or

(b) employs or has itself contracted with any personnel who were, or any entity that was, previously penalised or sentenced to

imprisonment for more than three years or has paid a fine of more than 5000 rupees to a competent authority under law; or

(c) employs or contracts with personnel who have previously been found to conduct themselves in a manner that could result in a breach of privacy of any person; or

(d) possesses a record of having dealt with private information of individuals in a manner that is likely to endanger their privacy; or

(e) is subject to pending criminal or regulatory action for non-compliance with, or violation of any, law in force; or

(f) is subject to complaints with respect to non-compliance with extant standards of data security and privacy.

(5) No entity shall be allowed to perform authentication unless –

(a) The Authority is satisfied that the requesting entity is compliant with any standards of privacy and security specified under the law;

(b) The Authority is satisfied that the requesting entity is permitted to offer authentication services by or under any law for the time being in force;

(c) The Authority provides reasons in writing as to why such authentication is being permitted to perform;

(d) The Authority issues a notice, at least 14 days prior to the performing of authentication, seeking any objections from the public if any; and

(e) The Authority has received an undertaking from the requesting entity, explaining the specific need to require Aadhaar number for authentication and elaborating why no alternative mode of authentication was considered by the requesting entity.

(6) The Central Government shall, by rules, determine whether requesting entity shall be permitted the use of the actual Aadhaar number during authentication or only an alternative virtual identity.

(7) Every requesting entity to whom an authentication request is made under sub-section (3) shall, for the purposes of identification, at the first instance offer to undertake identification through any valid identification document issued by or under any law for the time being in force.

(8) No person shall be denied any service solely for refusing to, or being unable to, under authentication: -

Provided that, for the purposes of this action, "free, prior and informed consent" is obtained only when all material information has been provided in an unambiguous and legible manner." (16)

[Translation]

HON. SPEAKER: Now, I put amendment nos. 14 to 16 under Clause 5 presented by Shri Asaduddin Owaisi to the vote of the House.

Amendment Nos. 14 to 16 were put to vote and negatived.

HON. SPEAKER: Dr. Shashi Tharoor ji, are you moving the amendments?

[English]

DR. SHASHI THAROOR (THIRUVANANTHAPURAM): Sir, I am just going in the same direction as the Minister's assurance that the service is not to be made compulsory by private providers. So, it is very much in the same direction as the Minister's Statement. But I will move amendment no. 33 and 34

because private service providers getting Aadhaar is unconstitutional. So, just remove the word 'private' and say 'any Government service', and it is done. Thank you.

I beg to move:

Page 3, lines 31,--
for "any service"
substitute "any government service". (33)

Page 3, *after* line 32, --
insert "Provided that nothing in this section shall provide for mandatory authentication of an Aadhaar number holder for the provision of any private service or service provided by a private entity". (34)

[Translation]

HON. SPEAKER: Now, I put amendment No. 33 and 34 under Clause 5 presented by Dr. Shashi Tharoor to the vote of the House.

Amendment No. 33 and 34 were put to vote and negatived.

HON. SPEAKER: The Question is:

"That Clause 5 stands part of the Bill."

The Motion was adopted.

Clause 5 was added to the Bill.

04.07.2019

Motion Re: Suspension of Rule 80 (i)

SHRI RAVI SHANKAR PRASAD: Sir, I beg to move:

> "That this House do suspend clause (i) of rule 80 of Rules of Procedure and Conduct of Business in Lok Sabha in so far as it requires that an amendment shall be within the scope of the Bill and relevant to the subject matter of the clause to which it relates, in its application to the Government amendment No. 37* to the Aadhaar and Other Laws (Amendment) Bill, 2019 and that this amendment may be allowed to be moved. "

HON. SPEAKER: The question is:

> "That this House do suspend clause (i) of rule 80 of Rules of Procedure and Conduct of Business in Lok Sabha in so far as it requires that an amendment shall be within the scope of the Bill and relevant to the subject matter of the clause to which it relates, in its application to the Government amendment No. 37* to the Aadhaar and Other Laws (Amendment) Bill, 2019 and that this amendment may be allowed to be moved. "

The motion was adopted

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* Vide Amendments list No. 5 circulated on 4.7.2018.

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New Clause 5A

Amendment made:

Page 3, *after* line 32,-

insert '***5A***. In section 7 of the principal Act, after the words "the Consolidated Fund of India", the words "or the Consolidated Fund of the State" shall be inserted.'. (37)

(Shri Ravi Shankar Prasad)

[Translation]

HON. SPEAKER: The question is:

"That the new Clause 5A be added to the Bill"

The Motion was adopted.

New Clause 5A was added to the Bill.

Clause 6 ***Amendment of Section 8***

HON. SPEAKER: Shri Asaduddin Owaisi ji are you moving your amendments?

SHRI ASADUDDIN OWAISI: Sir, I am moving this amendment because the present amendment of the Government *[English]* that goes against the basic constitutional principle. An informed consent is not given. *[Translation]* Sir, this is very unfortunate for this House that these people create problems and we solve them.

I beg to move:

The following should be substituted instead of Page 4 lines 15-18

"6. In Section 8, Sub-Section 2 of the original Act-

i. In Clause (a) after words "will take the consent" words, "in case of a child will take his or her consent only after attaining majority", words shall be inserted.

ii. The following proviso shall be inserted after Clause (b) namely but the Requestor's existence due to old age or illness or damage, or inability or weakness or otherwise or due to technical or any other reason in case of failure in providing the identity of a person such alternative or practical sources shall be provided which shall be accepted by the law time being in force".

(17)

HON. SPEAKER: Now, I put amendment No. 17 under Clause 6 moved by Shri Asaduddin Owaisi to vote of the House.

Amendment No. 17 was put to vote and negatived.

HON. SPEAKER: The question is:

"that Clause 6 stands part of the Bill."

The Motion was adopted.

Clause 6 was added to the Bill.

Clause 7 Insertion of New Section 8A

HON. SPEAKER: Shri N.K. Premachandran ji are you moving your amendment?

[English]

SHRI N. K. PREMACHANDRAN: Sir, I am moving amendments No. 11, 12, and 13 in which there are two amendments – "the written consent" as well as "without infringing the right to privacy".

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I beg to move:

Page 4, line 4,--

after "of this section"

insert "without infringing the right to privacy". (11)

Page 4, line 6,--

for "the consent"

substitute "the written consent".

(12)

Page 4, line 11,--

after "verification"

insert "without infringing the right to privacy". (13)

[Translation]

HON. SPEAKER: Now, I put amendment no. 11 to 13 under Clause 7 moved by Shri N.K. Premachandran to vote of the House.

Amendment No. 11 to 13 were put to vote and negatived.

18.00 hrs

HON. SPEAKER: The question is:

"That Clause 7 stands part of the Bill."

The Motion was adopted.

Clause 7 was added to the Bill.

Clause 8 was added to the Bill.

HON. SPEAKER: Hon. Members, if it is the consent of the House then the proceeding of the House should be extended till the conclusion of this subject.

SEVERAL HON. MEMBERS: Yes Sir.

HON. SPEAKER: The time of the House is extended till the passing of the Bill.

Clause 9 ***Insertion of new section 23A***

[Translation]

HON. SPEAKER: Shri Asaduddin Owaisi ji, are you moving your amendment?

[English]

SHRI ASADUDDIN OWAISI: Sir, this amendment is very important because unless and until there is a public debate on what the Authority is going to decide, it will be a one-sided decision; this will be against the principle of natural justice. So, I move my amendment.

I beg to move:

Page 4, *after* line 30,--

insert "(3) The Authority, prior to issuing directions under sub-section (1) of this section, shall—

1. seek approval for the draft directions from the Central Government in a form prescribed by the Central Government;

2. place the drafts of such directions in the public domain for at least fifteen days prior to their notification; and

3. provide sufficient opportunity to be heard to any person who may be impacted by the direction.". (18)

[Translation]

HON. SPEAKER: Now, I put amendment No. 18 in Clause 9 moved by Shri Asaduddin Owaisi to vote of the House.

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Amendment was put to vote and negatived.

HON. SPEAKER: Shri Adhir Ranjan Chowdhary ji are you moving your amendment?

[English]

SHRI ADHIR RANJAN CHOWDHURY: Sir, my amendment is a small amendment. Regarding intentional disclosure, in the original Act there is no amendment to the penalty set on such disclosure, but still there is a fine of Rs.10,000 only or imprisonment up to three years. So, I move my amendment.

Sir, I beg to move:

Page 4, *after* line 39,--

Insert "(3) Where the Authority fails to discharge its functions under this Act or fails to issue directions at appropriate time, the officers of the Authority responsible for such failure shall be punished with a fine which may extend to fifty thousand rupees.". (28)

[Translation]

HON. SPEAKER: Now, I put amendment No. 28 in Clause 9 moved by Shri Adhir Ranjan Chowdhary to the vote of the House.

Amendment was put to vote and negatived.

HON. SPEAKER: The question is:

"That Clause 9 stands part of the Bill."

The Motion was adopted.

Clause 9 was added to the Bill.

Clause 10 was added to the Bill.

Clause 11 ***Amendment of Section 29***

[Translation]

HON. SPEAKER: Shri Adhir Ranjan Chowdhary ji, are you moving your amendment?

[English]

SHRI ADHIR RANJAN CHOWDHURY: Sir, I am not moving amendment nos. 29 and 30.

[Translation]

HON. SPEAKER: The question is:

"That Clause 11 stands part of the Bill."

The Motion was adopted.

Clause 11 was added to the Bill.

Clause 12 was added to the Bill.

Clause 13 ***Insertion of New Chapter VIA***

HON. SPEAKER: Shri Asaduddin Owaisi ji, are you moving your amendment?

[English]

SHRI ASADUDDIN OWAISI: Sir, I move amendment nos. 19 and 20.

I beg to move:

Page 6, *omit* lines 6 to 20,-- (19)

Page 7, *for* lines 5 to 11,--

Substitute "(2) Every appeal under this section shall be preferred within a period of forty-five days from the date of the decision or order appealed against:--

Provided that the Supreme Court may entertain an appeal after the expiry of the said period of forty-five days if it is satisfied that a substantial question of law requires its decision.". (20)

[Translation]

HON. SPEAKER: Now, I put amendment No. 19 and 20 in Clause 13 moved by Shri Asaduddin Owaisi to vote of the House.

Amendments were put to vote and negatived.

Hon. Speaker: The question is:

"That Clause 13 stands part of the Bill."

The Motion was adopted.

Clause 13 was added to the Bill.

Clause 14 and 15 were added to the Bill.

Clause 16 ***Substitution of new section for section 40***

HON. SPEAKER: Shri Adhir Ranjan Chowdhary Ji, are you moving your amendments?

[English]

SHRI ADHIR RANJAN CHOWDHURY: Sir, these amendments urge the Government for substitution of the term from three years to five years and

suggesting fifty thousand rupees instead of ten thousand rupees. So, I move my amendment nos. 31 and 32.

I beg to move:

Page 7, line 28,--

for "three years"

substitute "five years". (31)

Page 7, line 29,--

for "ten thousand rupees"

substitute "fifty thousand rupees". (32)

[Translation]

HON. SPEAKER: Now, I put amendment Nos. 31 and 32 in Clause 16 moved by Shri Adhir Ranjan Chowdhary to the vote of the House.

Amendments were put to vote and negatived.

Hon. Speaker: The question is:

"That Clause 16 stands part of the Bill."

The Motion was adopted.

Clause 16 was added to the Bill.

Clause 17 to 23 were added to the Bill.

Clause 24 ***Amendment of Section 4 of Act 13 of 1885***

HON. SPEAKER: Shri Asadudding Owaisi ji, are you moving your amendment?

[English]

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SHRI ASADUDDIN OWAISI: Sir, it is very important to control private companies from not misusing and exploiting this data. That is why, I move these amendments.

I beg to move:

Page 8, *for* lines 41 to 43,--

substitute "(3) Any person who is granted a license under the first proviso to sub-section (1), shall identify any person to whom it provides its services by—". (21)

Page 9, *for* lines 6 to 15,--

substitute "(d) use of any other modes of identification that are valid by or under any law for the time being in force.

(4) No person who is granted a license under the first proviso to sub-section (1), shall use authentication under clause (a) of sub-section (3), unless he has first attempted identification through modes of identification under clauses (b) to (d) of sub-section (3).

(5) The use of modes of identification under sub-section (3) shall be a voluntary choice and no person shall be denied any service for not having an Aadhaar number.". (22)

Page 9, *for* lines 19 to 122,--

substitute "(7) The Central Government shall, from time to time, prescribe such rules as may be necessary to further strengthen protections and safeguards under this section.". (23)

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[Translation]

HON. SPEAKER: Now, I put amendment No. 21 to 23 in Clause 24 moved by Shri Asaduddin Owaisi ji to the vote of the House.

Amendments were put to vote and negatived.

HON. SPEAKER; The question is:

"That Clause 24 stands part of the Bill."

The Motion was adopted.

Clause 24 was added to the Bill.

Clause 25 ***Insertion of new section 11A***

[Translation]

HON. SPEAKER; Shri Asaduddin Owaisi ji, are you moving your amendment?

[English]

SHRI ASADUDDIN OWAISI : Yes, I am moving my Amendments.

I beg to move:

"Page 9, lines 35 and 36,--

omit "if the reporting entity is a banking company". (24)

Page 9, lines 40 and 41,--

for "as may be notified by the Central Government in this behalf".

substitute "by or under any law for the time being in force". (25)

Page 9, *for* lines 42 to 46,--

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substitute "(2) No reporting entity shall use authentication under clause (a) of sub-section (1) to identify any person to whom it provides its services, unless the reporting entity has, at the first instance, attempted to undertake identification through all other modes of identification under clauses (b) to (d) of sub-section (1).

(3) The use of modes of identification under sub-section (1) shall be a voluntary choice of the person who is sought to be identified and no person shall be denied any service for not having an Aadhaar number.

(4) If, for identification of a person, authentication under clause (a) of sub-section (1) is used, neither his core biometric information nor the Aadhaar number of the person shall be stored.

(5) The Central Government, shall, from time to time, prescribe such rules as may be necessary to further strengthen protections and safeguards under this section.". (26)

Page 10, *omit* lines 1 to 21." (27)

[Translation]

HON. SPEAKER: Now, I put amendment No. 24 to 27 in Clause 25 moved by Shri Asaduddin Owaisi to the vote of the House.

Amendment No. 24 to 27 were put to vote and negatived.

HON. SPEAKER: The question is:

"That Clause 25 stands part of the Bill"

The Motion was adopted.

Clause 25 was added to the Bill.

Clause 26 to 28 were added to the Bill.

Clause I, Enacting Formula and the Long Title of the Bill were added to the Bill.

HON. SPEAKER: Hon. Minister may now move that the Bill as amended be passed.

SHRI RAVI SHANKAR PRASAD: Hon. Speaker, Sir, I beg to move:

"That the Bill and amended be passed."

HON. SPEAKER: Motion moved:

"That the Bill as amended be passed."

[English]

SHRI N. K. PREMACHANDRAN : Hon. Speaker Sir, I am coming to the third reading of the Bill. It has its impact and consequences while the Bill is passed. So, I am not taking much time. The impact is very massive. So, I would like to seek an assurance from the hon. Minister, whether the Minister will bring the Data Protection Bill at the earliest so as to protect the interest of the people, so as to protect Right to Privacy.

SHRI RAVI SHANKAR PRASAD: The interests of the people of India are very much protected by the Aadhaar Act, which is already working very well. People are very happy and as regards the data protection, I have already said that the work is in progress and surely, we will come up.

[Translation]

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HON. SPEAKER: The question is:

"That the Bill as amended be passed."

The Motion was adopted.

HON. SPEAKER: The House stands adjourned till 11:00 of the clock on Friday, July 05, 2019.

18.08 hrs

The Lok Sabha then adjourned till Eleven of the Clock on Friday, July 05, 2019/ Aashadha 14, 1941 (Saka)

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